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Pradoshiya Sabhas Act, No. 15 of 1987 [Certified on 16th April, 1987] L.D.-0 14/86 AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF PRADESHIYA SABHAS WITH A VIEW TO PROVIDE GREATER OPPORTUNITIES FOR THE PEOPLE TO PARTICIPATE EFFECTIVELY IN DECISION-MAKING PROCESS RELATING TO ADMINISTRATIVE AND DEVELOPMENT ACTIVITIES AT A LOCAL LEVEL; TO SPECIFY THE POWERS, FUNCTIONS AND DUTIES OF SUCH SABHAS AND TO PROVIDE FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO. BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows : -

1. This Act may be cited as the Pradoshiya Sabhas Act, Short title No. 15 of 1987, and shall come into operation in and date respect of all or any of its provisions on such date or dates

of onera tion.- as the Minister may appoint by Order published in the Gazette. PART
I CONSTITUTION OF PRADESHIYA SABHA\S

2. (1) The Minister may, with a view to facilitating the Constitu tion of effective participation of the people in local government Pradeshiya Sabhas. and development functions, by Order published in the Gazette declare any area to be a Prarleshiya Sabha tlrca fur the purposes of this Act and shall define the administrative limits of the area so declared. The administrative limits of every Pradeshiya Sabha area so declared shall, as far as . possible, correspond to limits of an Assistant Government . Agent's division excluding any areas comprised in a Muni- . cipality or a town (within the meaning of the Urban Coun cils Ordinance) which falls within the . limits of such Assistant Government Agent's division. Th_e . Minister may by th~ same Order or by a subsequent Order, constitute a. Pradeshiya Sabha for 'such Pradeshiya Sabha area and assign a name to suGh Sabha. (2) Every Pradeshiya Sabha constituted by an Order under subsection (1) shall be a body corporate with perpe tual succession and a common seal and shall hav.e power, subject to the provis·ons of this Act, to acquire, hold and sell property and may sue and be sued in such name.

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., 2 Pradeshiya Sabhas Act, No. 15 of 1987 I ' : (3) The conunon seal of the Pradeshiya Sabha shall remain in the custody of the Secretary of such Sabha, and shall not be affixed to any contract or other instrument on behalf of the Pradeshiya Sabha, except in the presence of the Chairman and the Secretary of such Sabha, who shall sign their names to such contract or other instrument in token of their presence. (4) No act or proceeding of a Pradeshiya Sabhc1. conititu• ted by an Order under subsection (1) shall be deemed to be invalid by reason only of the existence of a vacancy among its members or any defect in the election of a member thereof. Functions 3. The Pradeshiya Sabha constituted for each Pradeshiya of the Sabha area shall be the local authority within such area Pradeshiya Sabhas. and be charged with the regulation, control and administra tion of all matters relating to public health, public utility services and public thoroughfares and generally with the protection and promotion of the comfort, convenience and welfare of the people and all amenities within such area. Members 4. A Pradeshiya Sabha constituted by an Order ender of Pradeshiya subsection (1) of section 2, shall consist of a Chairman, Sabhas. Vice-Chairman and such number of elected members as may be determined by the Minister by Order published in the Ga?.ette, having regard to the extent. population a:1d the level of economic development of the Pradeshiya Sabha area for which such Pradeshiya Sabha is constituted. Term of 5. (1) The term of office of each member of a Pradeshiya office of members. Sabha elected at a general election shall- .(a) in the case of the first general election be calculated from the date specified by the Minister under sec tion 6'; and (b) in the case of a member eleced at a r,eneral election subsequent to the first general elP.ction, be calculated from the date of expiration of the term of office of th members of the imMediately preceding Pradeshiya Sabha, and shall; unless such member vacates office earlier by _death, resignation or removal be for a period of forty-eight months.

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Pradeshia Sabhas Act, No. 15 of 1987 3 (2) The Minister may, by Order published in the Gazette, (a) curtail the term of office referred to in subsection (1) by appointing, in substitution for the date on which the term of office expires, a day of any month preceding the month on which such term of office expires in that year or in the year immediately preceding that year; (b) extend such term by appointing, in substitution for the date on which the term of office expires under subsection (1) or on the date appointed under paragraph (a) of this subsection a day of any month after the day on which the term of office expires in that year or in any year subsequent to the year so specified or appointed and thereafter from time to time extend such term by appointing in substitution for the date of expiry of such term specified in the last Order, a later date: Provided, however, that the period by which such term is extended or the aggregate of the periods by which such term is from time to time extended shall not exceed twelve months. (3) Where a member is elected in place of a member of a Pradeshia Sabha who dies, resigns or otherwise vacates office, he shall subject to the provisions of this Act, hold office for the unexpired period of office of his predecessor. 6. The term of office of each Pradeshia Sabha to be constituted under this Act shall commence on such date as term of the Minister may appoint by Order published in the office of Pradeshia Gazette. Such date shall be deemed to be the date of the Sabha and date constitution of such Pradeshia Sabha for all purposes of this Act, and such Pradeshia Sabha shall be deemed to be such Pradeshia constituted on that date. Sabha. 7. Any member of a Pradeshia Sabha who without Vacation of office leave of the Pradeshia Sabha first had and obtained fails to attend meetings of the Pradeshia Sabha for a period of three months shall ipso facto vacate his office.

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Pradeshia Sabhas Act, No. 15 of 1987 Chairman 8. (1) The Chairman of a Pradeshia Sabha shall be the and Vice chief executive officer of the Pradeshia Sabha. and all ChairlllUL executive acts and responsibilities which are by this Act or any other written law directed or empowered to be done or discharged by the Pradeshia Sabha may, unless the contrary intention appears from the context, be done or discharged by the Chairman. (2) The Chairman may by order in writing delegate to the Vice-Chairman or Secretary or any other officer of the Pradeshia Sabha any of the powers, duties or functions conferred or imposed upon or vested in the Chairman by this Act or any other written law. (3) The exercise, discharge or performance by the Vice Chairman or the Secretary or any other officer of the Pradeshia Sabha of any power, duty or function delegated to him by order of the Chairman, shall be subject to such conditions and restrictions and limited to such terms, scope or purposes as may be specified in the order: and any such delegation may at any time be varied or cancelled by order of the Chairman. (4) During the period of absence of the Chairman on account of illness or other unavoidable cause, the Vice Chairman may exercise the same powers and perform the same duties as the Chairman. 9. (1) There shall be appointed a fit and proper person, to be or to act as the Secretary of the Pradeshia Sabha. powers and duties of (2) The Secretary of a Pradeshia Sabha shall be the Secretary. chief administrative officer of the Pradeshia Sabha and shall exercise, perform and discharge such powers, duties and functions as are conferred or imposed upon him by this Act or any rules made under this Act or by any other written law for the time being in force. (3) Where a Pradeshia Sabha is unable to discharge

its functions by reason of the Chairman and Vice-Chairman ceasing to hold office, the Secretary shall, during any period that elapses between the occurrence of the vacancies in respect of those offices and the filling of those vacancies in accordance with the provisions of the Local Authorities Elections Ordinance, have, exercise, perform and discharge all the rights, privileges, powers, duties and functions vested in or conferred or imposed on the Pradeshiya Sabha, the Chairman or Vice-Chairman by this Act or by any other written law. . . 1

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Pradeshiya Sabhas Act, No. 15 of 1987 5 MEETINGS 10. The Chairman or in his absence the Vice-Chairman shall preside at all meetings of the Pradeshiya Sabha and Chairman if both the Chairman and Vice-Chairman are absent; the members present shall elect one of their own number to preside at the meeting. of the Pradeshiya Sabha. 11. (1) Ordinary meetings of a Pradeshiya Sabha shall be held for the despatch of business on such dates or at such intervals as may be fixed by by-laws or rules made or deemed by any written law to have been made under this Act. (2) A special meeting of a Pradeshiya Sabha may be convened by the Chairman whenever he considers it desirable and shall be convened whenever a written requisition is presented to him signed by members of that Pradeshiya Sabha not less in number than the quorum prescribed for ordinary meetings of the Pradeshiya Sabha. (3) The special meeting in compliance with any requisition shall be convened within seven days of the receipt of the requisition by the Chairman. (4) If the Chairman of any Pradeshiya Sabha refuses or wilfully neglects to convene a special meeting within seven days of the receipt of any requisition presented to him, it shall be lawful for the Assistant Commissioner to convene a special meeting at any time thereafter and to preside or to depute a public officer to preside over that meeting. (5) Not less than two days' notice of the date appointed for each special meeting under this section and of the business to be transacted thereat shall be given to, or left at the residence of, each member of that Pradeshiya Sabha. 12. (1) A Pradeshiya Sabha may, from time to time, appoint committees consisting either of members of the Sabha or partly of members of the Sabha and partly of other inhabitants of the Pradeshiya Sabha area and of the Chairman of the Gramodaya Mandalayas established within such Pradeshiya Sabha area for the purpose of advising the Sabha with reference to any of its powers, duties and functions; or any matter under the consideration of the Sabha, and may, from time to time, subject to such conditions as it may determine, delegate any of its powers and duties to such committees other than the power to raise any loan, to levy any rate or to impose any tax.

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6 Pradeshiya Sabhas Act, No. 15 of 1987 (2) A separate Committee shall be appointed under subsection (1) to advise the Pradeshiya Sabha on each of the following subjects:- (a) finance and policy making; (b) housing and community development; (c) technical services; and (d) environment and amenities. Subject to the foregoing, any number of Committees may be appointed under subsection (1). (3) Quorum. - 13. The quorum for any meeting of a Pradeshiya Sabha shall be one-third of the number of members in office on the date of that meeting. Where one-third of such number is an integer and fraction, the integer immediately higher to that integer

and fraction shall be deemed to be the one third for the purposes of this section. Powers of 14. (1) All matters or questions authorized by this Act Pradeshiya Sabhas to be decided by or by any other written law to be decided by a Pradeshiya Sabha constituted in the Sabha shall be decided upon by the majority of members present. (2) At any meeting of the Pradeshiya Sabha held in accordance with the provisions of this Act. (2) Where the votes of the members present at any meeting are equally divided in regard to any question, the Chairman, Vice-Chairman or other member presiding at the meeting shall, in addition to his vote as a member, have a casting vote. Minutes. 15. All proceedings, decisions, orders and acts of a Pradeshiya Sabha shall be entered in a book of minutes, and upon their confirmation, with such amendments as may be necessary at the next succeeding meeting of the Pradeshiya Sabha, shall be signed by the Chairman; and a copy certified by the Chairman, of any record so entered and signed, shall be admissible in evidence in any court or tribunal in Sri Lanka. PART II STATUS, POWERS AND DUTIES OF PRADESHIYA SABHAS Vesting of 16. (1) All such movable or immovable property vested movable and in a Development Council and situated or used, in Pradeshiya Sabha area, on the day preceding the date appointed property under section 1, as may be determined by the Minister or his officers and assets by any officer authorized in that behalf in writing shall vest and lie in the Pradeshiya Sabha constituted for such Pradeshiya Sabhas in a Sabha area, with effect from the date of such determination. Sabha.

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Pradeshiya Sabhas Act, No. 15 of 1987 (2) Any dispute as to whether any movable or immovable property is a movable or immovable property to which subsection (1) applies, shall be referred to the Secretary to the Ministry of the Minister and his decision thereon shall be final. (3) All assets and liabilities acquired, or incurred, by a Development Council in the exercise of its local government powers with respect to a Pradeshiya Sabha area, shall, with effect from the date appointed under section 1, stand transferred to, and vest in, the Pradeshiya Sabha constituted for that Pradeshiya Sabha area. (4) All rates, taxes, duties, fees or other charges levied, by a Development Council, under the Town Councils Ordinance or the Village Councils Ordinance or any other law relating to local government, in respect of any land or thing in a Pradeshiya Sabha area and remaining unpaid on the date appointed under section 1, shall be paid, from and after that date, to the Pradeshiya Sabha constituted for that Pradeshiya Sabha area. 17. (1) A vesting order, certificate or other record, signed by the persons authorized to make over any property vested in the Pradeshiya Sabha referred to in section 16 and by an officer of the Pradeshiya Sabha authorized to receive or accept such property on behalf of such land. half of a Pradeshiya Sabha shall be sufficient, and shall be deemed at all times to have been sufficient to vest such property and all rights, title and interest in such property in such Pradeshiya Sabha. (2) Nothing in section 16 or in the provisions of this section shall be deemed— (i) to affect or prejudice any right or title of the State to any such property, or the right of the State at any time to resume or dispose of such property for public purposes; or (ii) to affect or prejudice any right, title or interest which any military or other authority, in which lands are vested on behalf of the State, has or may have in such property; or (iii) to empower the Pradeshiya Sabha to sell or otherwise dispose of any such property otherwise than in accordance with such terms and conditions as may be set out in the aforesaid vesting order, certificate or other record relating to such property. 38— 094617 (86/12)

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8 Pradeshiya Sabhas Act, No. 15 of 1987 : (8) All property vested in Pradeshiya Sabhas shall be administered, and the revenue thereof shall be employed and made use of, for the purposes of this Act. 18. There shall be further vested in each Pradeshiya Sabha for the purposes of this Act, the following classes of property :— (a) all public parks, gardens and open spaces acquired by or otherwise transferred to the Pradeshiya Sabha, and all erections and other structures there- in and the equipment thereof, subject always to the terms of any trust or the conditions in any instruments by which any such property may have been transferred to the Pradeshiya Sabha; (b) all public roads, streets, canals and bridges except such roads, streets, canals and bridges vested in any other authority under any other enactment together with the lands used for the purposes thereof, and all the pavements, stones and other materials thereof, and also all erections, materials, implements and other things provided therefor; (c) all public markets and all works, erections or structures for the benefit or convenience of the public which may be constructed, erected or provided under this Act, or which may have been constructed, provided or erected under any repealed enactment, or may be otherwise transferred, or have been transferred to the Pradeshiya Sabhas and all sites, appurtenances, materials, furniture and equipment thereof, subject always to any such trust or condition as aforesaid; (d) all other public buildings constructed or provided in whole or in part out of the funds of the Pradeshiya Sabha or which may be otherwise transferred to the Pradeshiya Sabha, and all the sites, appurtenances, materials, furniture, and equipment thereof, subject always to any such trust or condition as aforesaid; (e) the property of and in all the lamps, lampirons, lamp posts, sluices, dams, pipes, posts, chains, piles, rails

- and other similar erections and things in, about, or belonging to' the roads, streets, and public places vested in the Pradeshiya Sabha and of and in all

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Pradeshiya Sabhas Act, No. 15 of 1987 9 the materials, furniture and things belonging there- to, except in so far as the same shall be otherwise regulated by contract with the Sabha or shall be otherwise shown to be private property or subject to private rights. 19. (1) For the purpose of the performance of its duties Powers of under this Act, a Pradeshiya Sabha (without prejudice to Pradeshiya any other powers specially conferred upon it) shall, subject Sabha. to the other provisions of this Act and to any rules made thereunder and the Local Government Service Law, No. 16 of 1974, have the following powers:— (i) to create all such posts or offices as it may deem necessary and. to assign to any such post or office, such salary, allowance or remuneration as the Pradeshiya Sabha may deem fit; subject how- ever, to the prior approval in writing of the Commissioner regarding such creation and assign- ment of salary; (ii) to make appointments to any post or office in the service of the Pradeshiya Sabhas; (iii) to remove any officer or servant of the Pradeshiya Sabha ; , (iv) to abolish any post or office in the service of the Pradeshiya Sabha; (v) to grant pensions to officers and servants of the Pradeshiya Sabha on their retirement from ' service; (vi) to enter into any agreement with any other Pradeshiya Sabha or other local authority for the joint execution of any work or for the em- ployment and remuneration of any officer or ser- vant, of such Pradeshiya Sabha ; (vii) to spend any part of the Pradeshiya Sabha Fund on maternity and child-welfare services, health education, maintenance of primary health centres, the training of midwives for the purpose of any maternity service established by the Pradeshiya Sabha,

housing schemes, such charities or such measures for the relief of distress caused by rain, floods, gales, fire, earthquake, famine or epidemics, or such other purpose as may be approved by the Minister; 4—e? 094617 (86/12)

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419 (viii) to purchase or take on lease any land or building ; (ix) to receive and hold property in trust for the in- habitants of the area for which such Pradeshiya Sabha is constituted or any section of such in- habitants, or for the purposes of any public ser- vice administered by the Pradeshiya Sabha, and to otherwise act as trustee for any public purpose ; (x) to sell or exchange with the prior approval in writing of the Minister, any land or building belonging to the Pradeshiya Sabha or vested in it . Otherwise than by virtue of section 16 and subject to the terms and conditions of the instrument by which such land or building was transferred to the Pradeshiya Sabha ; (xi) to let or lease with the prior approval in writing of the Minister, any land or building vested in the Pradeshiya Sabha by virtue of section 16 or section 18 and not required for a public purpose. and subject to the terms and conditions of the instrument by which such land or building was transferred to or vested in the Pradeshiya Sabha ; (xii) to let or lease any land or building belonging to the Pradeshiya Sabha or vested in such Pradeshiya Sabha, otherwise than by virtue of section 16 or section 18 and subject to the terms and conditions of the instrument by which such land or building was transferred to or vested in the Pradeshiya Sabha: Provided that no lease of any such land or building for a period exceeding three years shall be executed, without the prior approval in writ- ing of the Minister ; (xiii) to enter into any contract with any person for any work to be done, servico to be rendered, goods or materials to be supplied; (xiv) to spend any part of the Pradeshiya Sabha Fund for the construction or alteration, improvement or maintenance of village works, and for the purpose of administering any property vested in or acquired by or otherwise transferred to the Pradeshiya Sabha, or of carrying out the provi- sions of this Act or any by-law made or deemed by virtue of any written law to have been made thereunder ;-

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“pragesniya SaoAcnt, awls xe vy-2z00 ~ ~ ~ an it (xv) to establish ferries, to impose and to levy or to lease the right to collect tolls at any ferry estab- lished or maintained by the Pradeshiya Sabha, and for the prtectio of such ferry, to prohibit or restrict private ferries by by-laws made in that behalf; (xvi) in the case of a ferry established or maintained between any place within the limits of any Pradeshiya Sabha and any place within the limits of any other Pradeshiya Sabha or within the ad- ministrative limits of any other local authority, to distribute the tolls that may be imposed or levied in respect of any such ferry, in such manner or proportion as may be fixed by agreement entered into with any other Pradeshiya | Sabha or with such local authority, as the case may be, and to spend any part of the Pradeshiya Sabha Fund for any work of construction or maintenance to be carried out beyond the limits of the Pradeshiya Sabha area in connection with any such ferry; (xvii) to spend any. part of the Pradeshiya Sabha Fund in the conduct of experiments in agriculture and the breeding of domestic animals, and in the maintenance of experimental forms and studies for that purpose ; (xviii) to spend any part of the Pradeshiya Sabha Fund in the promotion of religion anc culture, includ- ing the making of contributions towards the

costs of the organization of religious ceremonies and festivals, the maintenance of Dhamma Schools and Sasana Rakshaka Mandalayas, the establishment of cultural centres, the organization of literary and cultural festivals, the publication of books of literary and cultural value and the award of prizes to artists, authors and craftsmen; (xix) to— (a) prepare and submit to the appropriate authority, a programme for the provision of educational facilities, such as buildings, furniture, playgrounds, hostels, teachers quarters, sports materials and library facilities, in the Pradeshiya Sabha area; (b) recommend to the appropriate authority, the opening, closing, amalgamation, naming and upgrading of, schools in the Pradeshiya Sabha area ;

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i * Pradeshiya Sabhas Act, No. 15 of 1987 (xx) to organize employment programmes for the °
' inhabitants of the Pradeshiya Sabha area; (xxi) to implement any scheme or work delegated to it by the Development Council established for the administrative district within the limits of which the Pradeshiya Sabha area is situated; (xxii) to spend any part of the Pradeshiya Sabha Fund, in promoting rural women's development activities, integrated development of selected villages, community development projects, and in making grants to rural development projects, Gramodaya Mandalayas and rural development organisations qualified to be represented on Gramodaya Mandalayas; (xxiii) to spend any part of the Pradeshiya Sabha Fund, in the provision of relief to poor people, the rehabilitation and care of destitute persons and physically, mentally or socially handicapped persons; (xxiv) with the prior approval of the Minister— (a) to engage in commercial and industrial enterprises for the manufacture and production of such machinery, equipment, articles, materials and goods, as may be required for the public services or the public utility services, as the case may be, which may be established and maintained by any Municipal Council or Urban Council under the Municipal Councils Ordinance or the Urban Councils Ordinance respectively, or under any other written law ; and (b) to sell such machinery, equipment, articles, materials or goods to any Urban Council or Municipal Council or to the public at such — prices as may be determined by the Pradeshiya Sabha and approved by the Minister ; (xxv) to make by its officers authorized in that behalf and the servants or workmen accompanying them, all such entries into lands and buildings and inspections thereon as may be necessary for the detection and abatement of nuisance, the detection

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Pradeshiya Sabhas Act, No. 15 of 1987 13 prevention and abatement of all contraventions of this Act or of by-laws or rules made thereunder, or for the performance of acts required to be done under this Act in respect of which the owner or occupier is, or may be deemed to be, in default ; (xxvi) by its Chairman or other officers authorized by him, to hold all inquiries which the Chairman may deem necessary for any of the purposes of this Act, and for the purpose of all such inquiries, to administer oaths and summon witnesses ;, (xxvii) to set apart such contributions from the Pradeshiya Sabha Fund as the Minister may approve towards the cost of any association of local authorities for the consideration of matters relating to local administration ; (xxviii) to spend any part of the Pradeshiya Sabha Fund in the payment of allowances to the Chairman, Vice-Chairman and other members at such rates as may be prescribed by rules ; (xxix) to spend any part of the

Pradeshiya Sabha Fund in the payment of travelling allowances to members of the Pradeshiya Sabha, for attendance at meetings of the Pradeshiya Sabha, or to members or officers of the Pradeshiya Sabha attending, with the approval of the Pradeshiya Sabha any meeting or conference of members or officers of Pradeshiya Sabhas for the consideration of matters relating to local administration ; (xxx) to institute or defend any legal proceedings which the Pradeshiya Sabha may deem necessary to institute or defend for the purpose of enforcing or protecting the rights of the Pradeshiya Sabha or of the public or of protecting its members or officers in the execution or intended execution of their duties ; (xxxi) to enforce by-laws made or deemed to have been made by it under this Act and to enter prosecutions in the Magistrate's Court for breaches — of such by-laws ; and

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14 Pradeshiya Sabhas Act, No. 15 of 1987 (xxxii) generally to do all things necessary for the effective exercise of the powers and duties of the Pradeshiya Sabha. (2) (a) The Minister may approve any commercial or industrial enterprise under paragraph (xx:v) of subsection (1) having regard to— (i) the economic viability of such enterprise; (ii) the benefits that may accrue to any Pradeshiya Sabha and the public by the operation of such enterprise; (iii) the financial position of the Pradeshiya Sabha engaged in such enterprise. (b) No sums of money appropriated or granted to a Pradeshiya Sabha by Parliament under paragraph (c) or (d) or (i) of subsection (2) of section 129 shall be utilized by such Sabha for the purpose of establishing or maintaining any commercial or industrial enterprise. , (c) Where the Minister is of the opinion that the continued operation of any commercial or industrial enterprise of any Pradeshiya Sabha would be prejudicial to the interest of such Sabha by reason of mismanagement or that it is likely to involve financial loss to the Sabha, he may, after consultation with the Sabha, by Order published in the Gazette terminate the operation of such enterprise and direct the Sabha to take charge of all books, records and assets of the enterprise and to take such measures that may be necessary to give effect to such Order. (3) The Minister or the Commissioner may, from time to time, give any Pradeshiya Sabha engaged in any com- -

- mercial or industrial enterprise general or special directions as to the carrying on or transaction of its business and such directions shall be carried out by the Sabha. (4) The Minister or the Commissioner may, from time to time, direct the Sabha in writing to furnish him in such form as he may require, returns, accounts and other information with respect to the business of such enterprise, and the Sabha shall carry out every such direction. Power to 20. (1) Whenever it appears to the Chairman of any - authorize Pradeshiya Sabha that an examination or a survey of any surveys, private land, building, or premises is necessary for any public purpose in the area for which the Pradeshiya Sabha is constituted, it shall be lawful for the Chairman to direct
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Pradeshiya Sabhas Act, No. 15 of 1987 15 any officer or servant of the Pradeshiya Sabha to make such examination or survey, and it shall thereupon be lawful for such officer or servant and his

workmen to enter such land, building or premises. and to do thereon any of the following acts :-- . (a) to make a survey and to take levels ; (b) to dig or bore into the sub-soil; (c) to do other acts to ascertain whether the land, building, or premises is or are adaptable to such public purpose ; (d) to set out the boundaries of any land which is to be acquired, or street lines, or the lines of any work proposed to be carried out ; (e) to make such levels, boundaries, or lines, by placing permanent marks on existing buildings, trees, posts, walls, fences, or other fixed objects, or by fixing new marks, or by cutting trenches as the case may require; (f) and where otherwise a survey cannot be completed or levels taken, or the boundaries and the lines marked, to cut down, and clear away any obstructions interfering with the execution of such work. (2) Where any damage is caused to any land or to anything thereon by the performance of any of the acts referred to in subsection (1), full compensation shall be paid by the Pradeshiya Sabha to the owner or other person entitled thereto. (3) No person shall enter any building or any enclosure attached to a dwelling house for the purposes of subsection (1) except with the written consent of the occupant thereof, or if such consent is withheld, with the written sanction of the Chairman of the Pradeshiya Sabha. (4) Every mark fixed on any land under this section shall be deemed to be the property of the Pradeshiya Sabha.

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16 Pradeshiya Sabhas Act, No. 15 of 1987 PART III Powers and Duties as to Thoroughfares 'THOROUGHFARES , 21. (1)

Subject to the powers and responsibilities

by Pradeshiya Sabha to be law committed to any other authority, the Pradeshiya the general authority for Sabha shall be the general administrative authority for the thoroughfares and purpose of all thoroughfares and communications, other communications. than principal thoroughfares, within its administrative limits, with all such powers as are vested in it under this Act, the Housing and Town Improvement Ordinance, and any other enactment from time to time enacted in that

'behalf. (2) Subject to such directions as may be given by the Minister from time to time by Order published in the Gazette, the Pradeshiya Sabha shall be the administrative authority for the purposes of the protection of any principal thoroughfare that may be situated within its area, and shall be entitled for such purpose to exercise or perform in relation to any such principal thoroughfare, any of the powers or duties conferred or imposed by sections 43 to 67 (both inclusive) relating to buildings along thoroughfares, ob-

- tructions to thoroughfares, encroachments on thoroughfares, injuries to thoroughfares and nuisances on thoroughfares.
- 1. Subject to the powers and responsibilities by Jaw General powers belonging to any other authority, it shall be the duty of oO. SParabdheas h.i ie the Pradeshiya Sabha and every such Pradeshiya Sabha is hereby empowered, to take all necessary measures for with regard to

securing and maintaining all public rights, interests, and thoroughfares arising out of, or in connection with, all thoroughfares and spaces within its area and for utilizing, opening, regulating, adapting, and developing such thoroughfares or open spaces for public purposes. Thoroughfare. 23. All thoroughfares within the Pradeshiya Sabha area, other than principal thoroughfares, except in so far as such vested in thoroughfares are already vested by virtue of any other Pradeshiya Sabha, enactment, shall be deemed to be vested in the Pradeshiya Sabha of that area.

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Pradeshiya Sabhas Act, No. 15 of 1987 17 v4, (1) It shall be the duty of every Pradeshiya Sabha Pradeshiya Sabha to within three years of the coming into force of these provisions or within such further period as may in the special publication of circumstances of any case be allowed by the Minister— roads and paths, " (a) to demarcate by permanent marks the limits of the roads and paths maintained by the Pradeshiya Sabha and cause to be prepared plans of all such roads and paths; and (i) to cause notices to be published in the prescribed manner setting out a list of such roads and paths. (2) Upon the publication of such notices any party claiming to be the owner of land from which such road or path has been demarcated shall within the time prescribed by such notice institute action in the appropriate court for establishing his title to such land. (8) After the expiration of a period of three months and before the expiration of a period of six months from the date on which the notice under subsection (1) is published in the Gazette, the Pradeshiya Sabha shall cause to be published a notice in the prescribed manner setting out a list of all such roads and paths as set out in the notice published under subsection (1)— (a) excluding those roads and paths or portions of roads and paths in respect of which no final determination had been made in any action instituted as required by subsection (2) ; and (b) with the necessary alterations made in the demarcation of the limits of such roads and paths and in such plans in respect of which a final determination had been made in any action instituted as required by subsection (2). (4) Where a final determination has been made on any action instituted as required by subsection (2) after the publication of the notice under subsection (3), the

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18 Pradeshiya Sabhas Act, No. 15 of 1987 Pradeshiya Sabha shall cause a notice, to be published in the prescribed manner, setting out a supplementary list of such roads and paths or portions of roads and paths.: Before the publication of this notice the necessary alterations shall be made in the demarcation of the limits of the roads and paths and in the plans on the basis of the final determination made in respect of any action instituted as required by subsection (2). (5) Upon the publication of such notice under subsection (3) or (4), all such roads and paths or portions of such roads and paths as defined in such notices and depicted by such plans shall be deemed to be vested in the Pradeshiya Sabha. (6) Whenever any road or path or any portion of any road or path vested in a Pradeshiya Sabha ceases to be used as a road or path the Pradeshiya Sabha shall publish an amendment to the notice under subsection (3) or (4). Prescription. 25. Neither the provisions of the Prescription Ordinance, nor those of any other law relating to the acquisition of rights by virtue

of possession or user, shall apply in the case of the roads within the limits of any Pradeshiya Sabha; and no person shall be entitled to any exclusive rights of ownership, possession or use over or in respect of any such road or any portion thereof by reason of his having, either before or after the coming into operation of this Act, had possession, or use of any description whatsoever of such road or portion thereof. Notices 26 Every notice required to be given under this part may how be served either personally upon such person, or by leaving it with some member of his household, or by affixing it to some conspicuous part of his residence. Power of Zi. The Pradeshiya Sabha of each Pradeshiya Sabha area Pradeshiya may within that area— Sabha . to construct (a) lay out and construct new roads, streets, bridges, new and tunnels or other thoroughfare;s improve existing (b) widen, oven, enlarge or otherwise improve or turn, thorough- divert, discontinue, or stop up, whether in whole fares, or in part, any public street or thoroughfare, not being a principal thoroughfare, and with the sanction of the Minister in charge of the subject of highways, any principal thoroughfare, making due compensetion to the owner or occupier of any property required for such purposes, or any persor whose legal rights are thereby infringed.

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Pradeshiya Sabhas Act, No. 15 of 1987 19 28. (1) If im connection with the turning, diversion, Acquisition of lands widening, opening, enlargement, or improvement of any required thoroughfare it becomes necessary for any Pradeshiya for diversions Sabha to take passession, for public use, of the land of any or -person, it shall be lawful for such Pradeshiya Sabha to enlarge~ ments. make an agreement with the owner for the compensation to be paid for such lend, and for any building, boundary wall, gateway, fence or tree standing thereon, either by allowing him to possess the ground, or part of the ground, of the former thoroughfare, or by the grant of other land in exchange or by payment of money or by any two or more of such methods. (2) Any land of which possession is taken by a Pradeshiya Sabha in pursuance of any agreement under subsection (1) shall vest in the Pradeshiya Sabha without any formal trans- fer thereof, and the certificate of the Chairman that any person has been allcwed by the Pradeshiya Sabha to possess any part of the ground of any former road or any land given in exchange under subsection (1), together with a survey thereof, shall be sufficient proof of the right of such person to such ground or land. — (3) Where a Pradeshiya Sabha cannot agree with the own- er of any land as to the compensation to be paid under sub- section (1), or where such owner cannot be found, or where the Pradeshiya Sabha does not deem it advisable to enter into any agreement with the owner of any land, then proceedings may be taken to obtain possession of such land, and for compensating to the owner, in the manner prescrib- ed by section 128. (4) Every agreement under subsection (1) shall be in writing, and section 2 of the Prevention of Frauds Ordin- ance shall not apply to any such agreement or to any certificate issued under subsection (2). 29. Ifin connection with the turning. diversion, widening, Gifts of lands opening, enlargement or improvement of any thoroughfare, required for it becomes necessary for any Pradeshiya Sabha to take diversion possession of the land of any person for public use, and if or enlargement the person claiming to be the owner of the land desires to of thorough- makea gift of the land to the Pradeshiya Sabha for such fare, purpose, a record in writing to that effect duly signed by

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20 Pradeshiya Sabhas Act, No. 15 of 1987 such person in the presence of the Chairman or of a person authorized by the Chairman in writing in that behalf shall be sufficient to vest the land in the Pradeshiya Sabha. No such record shall be deemed to be invalid or of no effect in law by reason only that the requirements of section 2 of the Prevention of Frauds Ordinance have not been complied with as to attestation by a notary public and by witnesses. 30. Whenever any street or other thoroughfare or any Power to part of any street or thoroughfare vested in a Pradeshiya dispose of dis- Sabha ceases to be used as a street or thoroughfare, the continued Pradeshiya Sabha, with the prior approval of the Minister, street, may sell, lease, or exchange such street or other thorough- fare or part thereof. Power to 31. In lavine out or constructing any new street or take thoroughfare, or in turning, diverting, widening, opening, land adjoining enlarging, or otherwise improving, any street or thorough- new street fare, a Pradeshiya Sabha may, in addition to the land requir- for building ed for the purposes of the carriageways and footways there- purposes. of, also purchase the land necessary for houses and buildings to form the said street or thoroughfare, and may sell, lease or otherwise dispose of the same, subject to the provisions of parasraphs (x), (xi) and (xii) of section 18 and subject to such stipulations and conditions as to the class and descrip- tion of houses or building to be erected thereon as the .Pradeshiya Sabha may think fit. Other 32. It shall be lawful for a Pradeshiya Sabha without powers prejudice to any other powers vested in it, to do any of the ofa Pradeshiya following acts :— Sabha. (a) to water the streets ; (b) to remove ‘encroschments and obstructions in or upon any street or thoroughfare subject to the condition that where the person responsible therefore is known to the Pradeshiya Sabha such action shall be taken by the Pradeshiya Sabha only after notice has been given to him, and he fails to remove such encroachments or obstructions within such time as may be specified in the notice or with due diligence; (c) to paint up the names of streets and the numbers of houses or tenements on any private property; (d) to shut up and secure deserted houses ;.

é Pradeshiya Sabhas Act, No. 15 of 1987 24 __.(e) to recover in the manner hereinafter provided, the expenses incurred by any action taken under paragraphs (b) and(d) hereof from the person whose act or neglect shall have rendered such action necessary. 33. The Pradeshiya Sabha may, at the request of the Roads for Ownr or owners of any one or more estates or industrial benefit of enterprises situated within its limits, in any case in which individual property the Pradeshiya Sabha is of opinion that the public interest owners. . would not otherwise justify the construction or maintenance of a road in such a locality, contract with such ownero.r owners, for the construction or maintenance of a road for the service of the estate or estates, or the enterprise or enterprises in question, subject to the payment of such contribution towards the expenses of such construction or maintenance as may be approved by the Pradeshiya Sabha and subject to the condition that by an appropriate instru~ ment such road is constituted a public road and is vested in the Pradeshiya Sabha, and all such agreed contributions shall be deemed to be special rates imposed upon the lands benefited, and shall be recoverable in the same manner as a rate imposed under this Act, and all the provisions of this Act relating to rates shall apply thereto. 24. A Pradeshiya Sabha may, subject to such prohibition Public vehicular or restriction as may be imposed in respect thereof by any communica- tions. other law, and, in so far as any principal thoroughfare may be thereby affected, subject to the approval of the Minister in charge of the subject of highways, organize and » maintain, either by itself and its officers, or by agreement With any promoter or promoters any form of public vehicular communication for the service of the inhabitants of any area within the administrative limits of the. Pradeshiya Sabha.

1. If any house, building, boundary. wall or gateway Houses adjoining any street or thoroughfare in any area or anything in a ruinous affixed thereon, be deemed by the Pradeshiya Sabha of that and area to be in a ruinous state, whether dangerous or not, or dangereus state. to he likely to fatl, the Pradeshiya Sabha shall immediately
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~ 22 Pradeshiya Sabhas Act, No. 15 of 1987 ” if it appears to be necessary, cause a proper hoarding or fence to be put up for the protection of persons using such street or thoroughfare, and shall cause notice in writing to be served on the owner or occupier forthwith to take down, secure, or repair such house, building, boundary wall, gateway or thing affixed thereon, as the case may require. 36. If any person, on whom a notice is served by or on Failure to comply behalf of a Pradeshiya Sabha under section 35, does not with begin to comply with such notice within three days of notice, the service thereof or does not complete the work with due diligence, the Pradeshiya Sabha shall cause all or so much of the work as it may think necessary to be carried out, and all the expenses incurred by the Pradeshiya Sabha shall be paid by such person and shall be recoverable as hereinafter provided. Sale of 27. If any house, building or wall, or any part thereof materials of be pulled down by any Pradeshiya Sabha under section 36, ruinous houses. the Pradeshiya Sabha may sell the materials thereof, or so much of the materials as may have been taken down, and apply the proceeds of such sale in payment of the expenses incurred, and shall, on demand, pay any surplus arising from such sale to the owner of such house, building, or wall: Provided always that, in case no demand for such surplus is made within twelve months by any person entitled to make such demand, the Pradeshiya Sabha shall be at liberty to pay the amount of such surplus to the credit of the Fund of the Pradeshiya Sabha, and shall be freed from any liability to pay or answer for or in respect of such unclaimed surplus : Provided, further, that the Pradeshiya Sabha, notwithstanding that it may have sold such materials for the purposes aforesaid, shall have the same remedies for compelling the payment of so much of the expenses as may remain due after the application of the proceeds of the sale, as by this Act are given to it for compelling the payment of the entirety of the expenses.

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/- “Pradeshiya Sabhas Act, No. 15 of 1987 — -28 MAINTENANCE AND REPAIR OF THOROUGHFARES “a9 It shall be lawful for the proper officer of the proper Pradeshiya Sabha and for the servants, workmen, and other employed labourers employed by or under him, at all time, and with to enter all necessary and proper carriages, carts, animals and other means, to enter upon any land adjacent or near to any for existing. or intended thoroughfare within that area, and & ree . p , a i o r f s, there severally to do and perform all acts, matters, and thorough- fares, things necessary for the purpose of tracing, _measuring, making, working, opening, altering, turning, repairing, clearing, improving, or fencing any such thoroughfare, or for building, excavating, repairing, clearing, or improving any bridge, fence, drain, dam, or ditch thereupon, or in any way connected therewith, or for performing any act, matter, or thing under the provisions of this Act. 39. It shall be lawful for the proper officer of the Power to take Pradeshiya Sabha and for the servants, workmen, and materials. labourers employed by or under him, at all reasonable times, and with all necessary and proper carriages, carts, animals, and other means, to search for, dig, cut, take, and carry away any water, timber, brushwood, stone, gravel, clay, or any other materials whatsoever, for ‘the purpose of tracing, measuring, making, working, opening, altering, turning, repairing, clearing, improving, or fencing, or In any way assisting in the tracing, measuring, making, working, opening, altering, turning, repairing, clearing, improving or fencing any existing or intended thoroughfare in that Pradeshiya Sabha area ; or of building, excavating, repair- ing,

clearing or improving any bridge, fence, drain, dam, or ditch thereupon or in any way connected therewith ; or for the construction or repair of any lines or any buildings whatsoever required on or near any such thoroughfare for the use of any officer as aforesaid, or any workmen, animals, carriages, carts, persons, or things employed in his service, in and from any land adjacent or near to any such thorough- fare, and to carry away the same through the land of any person, without being deemed a trespasser: Provided that no such materials shall be dug for, cut, or taken away, upon or from any yard, avenue, to a house, or lawn or any enclosed garden, plantation, field, or wood,

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24 Pradeshiya Sabhas Act, No. 15 of 1987 without the consent of the owner thereof, unless sufficient materials cannot conveniently be obtained from the neighbouring waste lands or common or abandoned grounds, in which case the said officer may take any of such materials where he can conveniently procure them: Provided, also, that reasonable compensation for all materials so taken and for the damage done in taking and carrying away the materials, shall be made to the owner thereof : Provided, further, that such officer shall rail or fence off any quarry or pit front which any such materials may be taken, so that it may not be dangerous to any person or animal. 40. It shall be lawful for the proper officer of the Power to erect Pradeshiya Sabha of any area when tracing, measuring, buildings making, working, opening, altering, turning, repairing, and keep clearing, or improving any existing or intended thorough- cutile fare within that area or building, excavating, repairing, &c, * clearing, or improving any bridge, fence, drain, dam, or ditch thereupon, or in any way connected therewith— 7 (a) to make and erect temporary buildings and any land adjacent or near thereto for the accommodation of the servants, workmen, labourers, animals, carriages, or things employed by him during the progress of the work; and (b) to keep all such animals as may be employed by him duly tethered and stabled upon any land near OF adjacent thereto, and to continue so to keep the animals on such lands for such time as may be necessary: Provided that no such building shall be erected, nor any such animal kept on any land which is under cultivation or is situated in any area where there are neighbouring waste lands or common or abandoned grounds available for the purpose : Provided, further, that reasonable compensation for any damage done to the Zand shall in all cases be made to the owner thereof. :

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Pradeshiya Sabhas Act, No. 15 of 1987 25 41. In the tracing, measuring, making, working, opening, Powe altering, turning, repairing, clearing, or improving of any t r o u b t b h i r s o z w existing or intended thoroughfare within any Pradeshiya a u d p j o a n ceng Sabha or building, excavating, repairing, clearing, or im- lands, proving any bridge, fence, drain, dam, or ditch thereupon or in any way connected therewith, it shall be lawful for the proper officer of any Pradeshiya Sabha of the area te throw upon any, lands adjacent or near to the thoroughfare such earth, rubbish, or materials as it may seem necessary te remove from the place of any such work: Provided that all earth, rubbish or materials thrown upon: - any such land by the proper officer shall be removed by him from such land within a reasonable time. 42. It shell be lawful for the proper officer of the 'Power to make Pradeshiya Sabha to make a temporary road through the temporarr grounds

adjacent or near to any existing or intended thoroughfare within the limits of the Pradeshiya Sabha, during the executing of any work thereupon or any work in any way connected therewith: Provided that such road shall not be made over any ground whereon any building stands or over any enclosed garden or yard. 43. It shall be lawful for the proper officer of the Power Xoeusd Pradeshiya Sabha to cut and remove, and place upon any adjacent or neighbouring land, all trees, bushes or shrubs, and all leaves or branches or roots of trees that shall grow on or overhang any thoroughfare within the limits of the , Pradeshiya Sabha or cause any obstruction therein, and for that purpose to enter upon any land or premises with such persons, animals and instruments as may be necessary, and to proceed to do therein all such things as may be necessary for the cutting, lopping or removing of such trees, bushes, shrubs, leaves, branches. or roots: Provided that all trees, bushes, or shrubs, and ail leaves or branches or roots of trees placed upon any such land by the proper officer shall be removed by him from such land within a reasonable time. 6—<s 004617 (85/13)

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26 Pradeshiya Sabhas Act, No. 15 of 1987 ower 44. It shell be lawful for the proper cflirer of the to put up Pradeshiya Sabha to put up or make fences, hedges, ditches, , fences. drains, or banks ky the side of any thoroughfare within the — limits of the Pradeshiya Sabha, whenever to him it shall appear necessary, and the owner or occupier of each land adjoining such fences, hedges, ditches, drains, or banks shall, and he is hereby required to keep them in good and substantial repair and order. 45. ‘The proper officer of the Pradeshiya Sabha shall Power to make have power to make, secure, cleanse, and keep open all and keep ditches, gutters, drains or watercourses along any thorough- open d.tches fare within the limits of the Pradeshiya Sabha and also to &e. make and lay such drains, watercourses, trunks, tunnels, and to lay *runks, plats, or bridges, as he may decm necessary for the protec- &c. tion, preservation, improvement, repair, or construction of any thoroughfare or intended thoroughfare in and through any lands or grounds adjoining or lying near to such thoroughfare or intended thoroughfare. 46. ‘The proper officer of the Pradeshiya Sabha shall have Power to ylaye ostmonan power to lay any heap of stone or gravel, or any log of wood, or any other matter or thing whatsoever, upon any thoroughfare within the limits of the Pradeshiya Sabha, and to allow such matter to remain there during the time such road is under repair, and for such time before the repairs are commenced and after the repairs are completed, ‘as may be necessary for facilitating the making of such revairs or fer preventing damage to such recently «repaired read, but he shall take due and reasonarle precaution for preventing danger or injury to persons passing along such road. BUILDING ALONG THOROUGHFARES Notice of 47. (1) It shall not be lawful for anv person to commence intended any building, boundary wall, gateway or fence along any building along a thoroughfare within the limits of any Pradeshiya Sabba thorough- or to erect any temporary fence or enclosure on any such fare. thoroughfare for the purpose of commencing er repaising any such building, boundary wall or gateway without giving one calendar month’s previous notice in writing 1 the Pradeshiya Sabha, (2) Any verson neglecting to give the notice preceibed| by subsection (1), or to remove any building, boundary wall, gateway or fence erected without such notice when he is required in writing to do so by the Pardeshiya Sabna

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Pradeshia Sabhas Act, No. 15 of 1987 27 under this sub-section, shall be guilty of an offence, punishable with a fine not exceeding twenty rupees, and with a further fine not exceeding twenty rupees for each day he suffers or allows such building, boundary wall, gateway or fence to remain after he is required to remove as aforesaid. (3) It shall be lawful for the Pradeshia Sabha to remove or cause to be removed any building, boundary wall, gateway, fence or enclosure, commenced or erected without the notice prescribed by subsection (1) and to recover the costs of such removal in the manner provided in subsection 59 for the recovery of the costs therein mentioned. (4) Nothing herein contained shall be deemed to deprive any Pradeshia Sabha of the power, hereinafter conferred on such Pradeshia Sabha, of removing any such building, boundary wall, gateway, fence, or enclosure, which may subsequently be discovered to be an encroachment on a thoroughfare, notwithstanding that no proceedings may have been taken by the Pradeshia Sabha on the notice given in respect of such building, boundary wall, gateway, fence or enclosure under subsection (1). 48. (1) Nothing contained in section 47 shall be construed to prevent any public officer, duly authorized in that behalf, from making temporary use of any part of any thoroughfare for the public service, or to prevent the Pradeshia Sabha from granting a licence to the inhabitants of the Pradeshia Sabha area for the erection of temporary fences and enclosures on any thoroughfare, in connection with the building, pulling down, or repairing of their houses and other buildings, or for temporary decorations within that area on such terms and conditions as the Pradeshia Sabha may deem proper, including conditions as to— (a) the length, breadth and height of such enclosure; (b) the space to be allowed for carriages and carts, or boats, to pass along the thoroughfare; and (c) the exhibition by the person obtaining such licence, daily between sunset and sunrise throughout the period during which the fence or enclosure is maintained or continued by him, of a light sufficient to indicate clearly the exact situation of the fence or enclosure or any obstruction caused thereby.

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28 Pradeshia Sabhas Act, No. 15 of 1987 (2) Every holder of a licence granted under subsection (1) who commits a breach of any of the conditions of such licence and every person who removed or extinguished any light placed and kept in accordance with the requirements of the conditions of such licence, shall be guilty of an offence, punishable with a fine not exceeding ten rupees, Building 49. Notwithstanding anything contained in the Housing Limits and Town Improvement Ordinance, or other law it shall not be lawful for any person— (a) to erect any building, boundary wall or gateway within a limit (hereinafter referred to as the “building limit”) of twenty-five feet from the centre of any road which is used or intended for vehicular traffic within limits of any Pradeshia Sabha and in respect of which street lines providing for a roadway exceeding fifty feet in width have not been defined under this Act or the Housing and Town Improvement Ordinance : Provided, however, that the Pradeshia Sabha, shall have power to authorize the erection of boundary wall or gateway on condition that the owners of the premises shall execute an undertaking that no compensation shall be payable in respect of such boundary wall or gateway in the event of the land on which such wall or gateway is situated being required for a public purpose; or (b) except under the authority of a licence granted by the Pradeshia Sabha to re-erect or to make any addition to any such building, boundary wall or gateway within

such limit: Provided always that nothing contained in this sub- section shall apply to any repairs effected in any building, boundary wall or gateway existing at the date of the constitution of the Pradeshiya Sabha or in the case of— (i) any street which is intended for foot traffic only and is not less than twenty feet in width; or

- (ii) any back lane or other service passage which is intended only for the purposes of scavenging or conservancy or other special sanitary purpose and is not less than ten feet in width,
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Pradeshiya Sabhas Act, No. 15 of 1987 29 where such street, lane or passage has been defined or approved by the Pradeshiya Sabha. For the purpose of the foregoing provisions of this subsection, “ repairs ” shall not be deemed to include any work of re-erection or re-construction or the addition of any new part. 50. (1) It shall be the duty of every Pradeshiya Sabha, Demarcation within three years after the date of the constitution thereof building or within such further period as may in the special limits. circumstances of any case be allowed by the Minister or upon the directions of the Minister, and within such period of time if any, which he may allow— {a) to demarcate by permanent marks the building limit rescribed by section 49 on every road referred to in that section ; 40) in the case of each road on which the building limit has been so demarcated, to ascertain and record the value of each building, boundary wall, or gateway or part thereof situated or extending within such limit; and {c) in the case of any road on which the building limit has not been demarcated, to ascertain and record the value of each building, boundary wall or gate- Way in respect of which a licence under section 49 is granted by the Pradeshiya Sabha for the purposes of any re-erection or addition. (2) The value of any building, boundary wall or gateway shall, for the purposes of subsection (1)— (a) be fixed by agreement between the Pradeshiya Sabha, and the owner or owners of the building, boundary wall or gateway ; or {b) where it is not so fixed by agreement, be determined by the arbitration of two arbitrators, one nominated by the owner or owners of the building, boundary wall or gateway and the other by the Pradeshiya Sabha, or if such arbitrators cannot agree upon the said value, by an umpire chosen jointly by the two arbitrators. (3) In determining the value of any building, boundary wall or gateway or any part thereof for the purposes of subsection (2), the following principles shall be followed :— (a) where any building, boundary wall or gateway. or any part thereof, the removal of which would render tne remaining part useless, is situated within the

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30 Pradeshiya Sabhas Act, No. 15 of 1987 building limit of any road, and where, for that reason, at the time of the widening of the road the removal of the entire building, boundary wall or gateway will become necessary, the value of the entire building, boundary wall or gateway shall be determined ; and such value shall be the difference between the market value of the premises, that is to say, of the building, boundary wall or gateway together with the land attached thereto, at the time of the demarcation of the building limit, and the market value at that time of the land as distinct from the building, boundary wall or gateway; (0) where only a part of a building, boundary

wall or gateway is situated within the building limit of any road, and after the severance and removal of such part the remaining part will be capable of adaptation either to the original purpose of the building, boundary wall or gateway or to any other purpose permitted by law, the value of the part within the building limit shall alone be determined; and such value shall be the aggregate of — (i) the estimated cost of the severance and removal of that part of the building, boundary wall or gateway; and (ii) the estimated cost, in the case of a building of adapting the part of the building which will then remain to the purpose for which the building is used at the time of the demarcation of the building limit, and in the case of a boundary wall or gateway, of completing such additions or repairs as may be necessary; (iii) where, at the time of the demarcation of the building limit on any road, the value of any building, boundary wall or gateway is found to have been increased by any alteration or improvement effected in the building, boundary wall or gateway after the date of the constitution of the Pradeshiya Sabha, then notwithstanding that the alteration or improvement may have been authorized by a licence under section 49, the amount of the

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Pradeshiya Sabhas Act, No. 15 of 1987 31 increase shall not be taken into account unless the alteration or improvement was necessary for the maintenance of the building, boundary wall or gateway in a proper state of repair. \ . (4) Every award or agreement made or entered into, as the case may be, under subsection (2) in respect of the value of any building, boundary wall or gateway or part thereof, shall specify the particular paragraph or paragraphs of subsection (3) in accordance with which the value aforesaid was fixed or determined. (5) The value of each building, boundary wall or gateway or part thereof situate within a building limit, fixed or determined as provided in subsection (2) shall be recorded in the office of the Pradeshiya Sabha together with all agreements or awards by which the value so recorded may be verified. (6) For the purpose of demarcating the building limit of any road it shall be lawful for any officer, servant or workman of the Pradeshiya Sabha, to enter upon any private land adjoining the road and to erect permanent marks at convenient places, taking all such precautions as may be necessary to ensure that as little damage as possible is caused to the land and compensation shall be paid by the Pradeshiya Sabha for any damage so occasioned. (7) Where the building limit of any road has been demarcated under this section, nothing in any of the other provisions of this Act shall be deemed to preclude the Pradeshiya Sabha, from letting or leasing any part of the road not included within such building limit for the purpose of affording building facilities along the road, or from using or permitting the use of any such part for any public purpose or permitting the use of any such part for any public purpose. (8) Nothing in this section shall apply to, or in the case of, any road in respect of which street lines providing for a roadway have been accepted or given effect by any Ordinance or any other law.

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1. Pradeshiya Sabhas Act, No. 15 of 1987 Condition 5i. (i) It shall be a condition of any licence granted by a Pradeshiya Sabha under section 49 for the re-erection of attaches to any building or for any addition to any building, boundary wall or gateway within the building

limit of any road that in the nmdr section. 4%, event of the land on which the building, boundary wall or faieway is situated being acquired at any time thereafter gor the purpose of the widening of the road. the compensation payable in respect of such building, boundary wall or gate _way shall be determined in accordance with the provisions wf section 53. (2) (a) Full particulars of every licence containing a sondition of the description set out in subsection (1), and of the iand and the building, boundary wall or gateway to which the condition relates, shall] be entered by the Pradeshiva Sabha in a register to be kept for that purpos¢ at the office of the Pradeshiva Sabha and the Chairman shall cause a certified copy of the entry so made in respect of each land and building, boundary wall or gatewsy, and the condition of the ticence relating thereto, to be registered in the office of the Register of Lands. The Registrar of Lands shall register sll such copies free of any charge or duty. (b) Upon the registration of any entry under this sub- section the condition of the licence set out in such entry shall be binding upon the land or building or houndary wail or gateway affected thereby, in accordance with the tenor of such condition, into whomsoever ownership OF possession the land or building or boundary wall! or gutcway may at any time pass. (c) The register kept at the office of the Pradcshiya Sabha shall be made available for inspection to any person interested, at any time when the office is open for the transaction of business. (d) The provisions of section 2 of the Prevention of Frauds Ordinance shali not apply to any entry or cupy of an entry referred to in this subsection. (3) Subject to the condition referred to in subsection (2) any person who is otherwise entitled to re-erect oF make any addition to any building, boundary wall oF gateway shail be entitled to a licence to re-erect or make such addition to such buildiag, boundary wall or guteway within the building limit specified in section 49 :.

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Pradeshiva Sabhas Act, No. 15 of 1987 33 Provided that no part of the building, boundary wall cr . gateway so re-erected oc added to shall, upon such re- erection or addition, extend nearer to the centre of the road than it so extended in its original condition. (4) The expression “re-erect”, with reference to a Suilding, includes the restoration of any wall forming part of the building or of any support to the building which has been demolished or otherwise destroyed to or within a distance of five feet from the ground, but does not include any operation, which, in the opinion of the Pradeshiva Sabha may reasonably be considered tc te a repaic to the wall or support. 52. If any person erects or re-erects any building, Power of boundary wall or gateway, or makes ary addition to any Pradeshiva Sabha to building, boundary wall or gateway, within the lin.its of deal with any Pradeshiva Sabha in contravention of any of the building, boundary provisions of section 49, the Pradeshiva Sabha snall be wall or entitled to cause such building, boundary wall or gateway, ‘pateway erected in or such addition, to be demolished or removed by any contraventiina officer or servant, and for that purpose the Pradeshiva oi law, Sabha shall have the same rights of entry and survey, and Shall have the same power of removal, abatement and recovery of costs as are vested by this part in a Pradeshiva Sabha for the purposes of the abatement or removal of any ofstruction or encroachment or supposed obstruction or encroachment upon a thoroughfare, and all the provisions of this Part relating to such obstructions or encroachments, so far as they are applicable, shall apply accordingly with such modifications as may be necessary. 53. (1) Where any Jand which is situated within the Principles of assessing building limit demarcated on a road, and which has

been compensated by the erection of any building wholly or partly within that building limit. is acquired for the purposes of land development— (a) the widening of that road, the determination of the compensation payable in such case under the Land Acquisition Act, shall be subject to the following special provisions, notwithstanding anything to the contrary contained in that Act— (a) no compensation shall be allowed in respect of any building, boundary wall or gateway which at any time after the date of the constitution of the Pradeshiya Sabha has been erected in contravention of section 49 or re-erected or added to without the licence required by that section:

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34 Pradeshiya Sabhas Act, No. 15 of 1987 (b) the value assigned to the land as distinct from the buildings thereon shall be the market value of the land at the time of the acquisition; (c) where the land is only a portion of any premises

- belonging to any one person or group of persons— (i) if the remaining portion of such premises is a building of the same character as the building which is to be acquired, the market value assigned to the land shall be one-half of the value at that time, of similar land in the vicinity possessing a road frontage; and (ii) if the remaining portion of such premises is not of sufficient depth for the purpose mentioned in sub-paragraph (i), the market value assigned to the land shall be the value at that time of similar land in the vicinity possessing a road frontage; (d) regard shall be had to any increase, in the value of any other land or building belonging to the same owner or owners, which is likely to accrue from any widening of the road carried out after the acquisition of the land or the demolition of any building, boundary wall or gateway situated thereon; (e) no additional compensation shall be allowed in respect of the compulsory nature of the acquisition whether in the case of the building or in the case of the land. (2) In any case referred to in paragraph (c) (ii) of sub-section (1), the owner shall have the option of requiring the Pradeshiya Sabha to acquire the entirety of his premises at the rate at which the portion which the Pradeshiya Sabha originally proposed to acquire, was valued under that paragraph. Power of 54. The Pradeshiya Sabha may, at the request of every Pradeshiya person whose right to build upon any land abutting upon Sabha to a road within its limits is restricted by the building limit acquire adjacent land demarcated upon that road, and who desires to erect a building upon the land, acquire for such owner at his own expense any land, situate at the rear of such first-mentioned limit, land and of sufficient extent to afford him building facilities of the same nature as he would have enjoyed but for such restriction. All lands required for any such purpose shall be deemed to be required for a public purpose; and the provisions of section 53 shall apply to the valuation of such land,
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Pradeshiya Sabhas Act, No. 15 of 1987 35 55. (1) Whenever it appears to any Pradeshiya Sabha Power to that any building, enclosure, or obstruction has been raised demand production or made in any thoroughfare under the control of the Pradeshiya Sabha, or on any waste or other land

immediately ceeds, adjoining such road and belonging to the State, it shall be lawful for the Pradeshiya Sabha by written notice served on the person claiming to be the owner of the premises on which such building, enclosure, or obstruction has been raised or made, to demand the production of every deed, document and instrument upon which such person found such claim. (2) In any of the following cases, that is to say— (a) where the occupier of any premises, not being himself the alleged owner, refuses to give full information respecting the name and residence of the alleged owner upon being requested so to do by the Pradeshiya Sabha; or (b) where the alleged owner of any premises refuses to produce within ten days, after being requested so to do, every deed, document, and instrument upon which he founds his claim to the premises and which is in his possession; or (c) where the alleged owner of any premises, not being in possession of any such deed, document, or instrument refuses to give full information to the Pradeshiya Sabha upon being requested so to do, of the name and residence of the person in whose possession they are; or (d) where any person having in his possession any such deed, document, or instrument refuses to produce it within ten days after having been requested so to do in writing by the Pradeshiya Sabha, every such occupier, alleged owner, or person so refusing shall be guilty of an offence, and shall be liable on conviction to a fine not exceeding five hundred rupees. 56. (1) Every deed, document or instrument the production of which is demanded by a Pradeshiya Sabha under section 55 shall be produced on the premises to which it relates, or at such other place as the Pradeshiya Sabha may require and the power given by that section to demand the 'Production thereof, shall be deemed to include the power to 'Make such examination and copies of such deeds, documents, and instruments as may be necessary.

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36 Pradeshiya Sabhas Act, No. 15 of 1987 (2) Every person refusing or failing to permit any person authorized by the Pradeshiya Sabha to examine any deed, document, or instrument, or to take copies thereof shall be guilty of an offence and shall be liable on conviction to a fine not exceeding five hundred rupees. Power to 57. In any case referred to in section 55(1), it shall be lawful for any person authorized thereto by the Pradeshiya Sabha to make such survey of the premises on which the building, enclosure, or obstruction has been raised or made, as may be necessary, to enable the Pradeshiya Sabha to ascertain whether an encroachment has been made thereby upon any thoroughfare or on any State land adjoining any thoroughfare and for the purpose of such survey to enter upon such premises and upon any other premises whatsoever which it may in his opinion be necessary to enter. Proof of 58. (1) Whenever it appears to any Pradeshiya Sabha that the line of any thoroughfare under the control of the Pradeshiya Sabha has been altered without proper authority, or has been stopped up, or obstructed, or encroached upon, the Pradeshiya Sabha shall give notice in writing to rest upon the occupier of the land from off which the thoroughfare is alleged or suspected to have been turned, or upon which such stoppage or obstruction or encroachment is alleged or suspected to have been made, that a survey of the premises has been made by the direction of the Pradeshiya Sabha, and is open to the inspection of such occupier at a place to be mentioned in the notice, and that unless within one month from the service of the notice, he, or the person under whom he holds, takes legal proceedings for establishing his title to such land, and for preventing the removal of any such obstruction or encroachment, the

Pradeshiya waona will proceed with the removal thereof in manner provided by section 59. . (2) If no legal proceedings are taken within the time specified in subsection (1) or being taken are not duly prosecuted, it shall be the duty of the Pradeshiya Sabha to cause any such obstruction or encroachment to be forth- with removed as provided by section 59. (3) Where legal proceedings are taken, it shall be in- cumbent on the party claiming to be the owner of the land from off which the line of any thoroughfare is alleged to have been altered or turned. or upon which the stoppage or obstruction or encroachment is alleged to have been made, fo prove his title to such land.

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Pradeshiya Sabhas Act, No. 15 of 1987 37 59. (1) It shall pe lawful for any Pradeshiya Sabha Removai of obstrute through any person authorized by the Pradeshiya Sabha in tions or that behalf, to give orders verbally or by notice in writing, encroach- ments to any person obstructing or encroach.ng upon any thoroughfare under the contro] of the Pradeshiya Sabha, forthwith to remove or abate the obstruction or encroach- ment; and if any person to whom such order is given ree fuses or neglects to comply therewith within a reasonable time, or, if there be any doubt as to who is the proper person to whom such order should be given after such notice has been affixed for a reasonable time to such obstruction or encroachment, it shall be lawful for the Pradeshiya Sabha to cause any such obstruction or en- croachment to be forthwith removed or abated. (2) For the purpose of removing or abating any obstruc- tion or encroachment under subsection (1) it shall be lawful for the Pradeshiya Sabha, or any person authorized in writing by the Pradeshiya Sabha to enter into any house, garden, enlosure, or other premises, together with such persons and with such implements and mater‘als as may be necessary, and to proceed to do or take therein or cause. to be done or taken all such acts or measures as may be necessary for such removal or abatement. . (3) The costs incurred by the Pradeshiya Sabha in the removal or abatement of any obstruction or encroachment shall be payable by the person whose failure to comply with an order under subsection (1) caused such costs to be in- curred; and such costs, where they are not paid by such person on demand, shall be certified by the Chairman of the Pradeshiya Sabha to the Magistrate’s Court having jurisdic- tion over the area where such person resides and shall ke recovered by that court in like manner as a fine imvosed by the Court. All moneys so recovered shall be paid s by the Court into the Pradeshiya Fund. (4) Where the removal or abatement of any obstruction or encroachment is effected after the due production of all deeds, documents, and instruments effecting the title to such premises and such premises are nevertheless adjudged to be the property of the varty laying claim to the same, such party shall be entitled to compensation from. the Pra- deshiya Sabha for all loss and injury occasioned thereby; but if the party cla‘ming to be the owner of such premises shall refuse or neglect to produce all such deeds, documents and instruments, of if such deeds, documents and instru- ments shal] not be produced within ten days after applica-

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38 Pradeshiya Sabhas Act, No. 15 of 1987 tion in that behalf, and any such Pradeshiya Sabha shall nevertheless have caused the removal of such building, enclosure, or encroachment, then, in the event of such pre- mises being adjudged to be the property of the varty claim- ing to be the

owner thereof, such party shall not be entitled to any compensation for any loss or injury occasioned thereby. INJURIES TO THOROUGHFARES, &C. Destroying 60. Every person who — milestone, bridge. &c, ° (i) wilfully or negligently destroys, pulls up, de- faces, throws down, breaks, or injures any miles- tone, mile-post, demarcation stone, demaracation post, lamp-post or direction post, or any bridge, culvert, paravet, arch, wall, dam, drain, sluice, lock, bank, abutment, mound, prop, post, lamp, railing, chain or fence belonging to any thorough- fare, or erected at or near any pit or quarry open- ed or used for getting road materials; or (ii) wilfully and unnecessarily removes any fence, post, stone, log, or other thing laid or erected by the direction of any competent authority on or in any thoroughfare for the temporary preven- tion of the use thereof, or for preventing danger or injury to persons passing along the same whilst undergoing repair; (iii) w'thout the permission of a competent authority gathers or heaps-up, or takes away, any stones, gravel, sand, or other material or any slutch dirt drift, or soil from any thoroughfare ; (iv) leads or drives any elephant, ox, horse, pig, OF other animal or any vehicle from or off or on OF into any thoroughfare in such manner as to cause injury to the thoroughfare or shall suffer any such animal to damage the thoroughfare; (v) being the owner or occupier of any land contigu- ous to any thoroughfare suffers the passage through or into his land of the water from such road, or from any ditch or drain leading there- from, to be obstructed, or suffers any water, filth, or other substance or thing to flow or run from such land or house into or upon any stch | thoroughfares, or suffers any accumulation of dirt or rubbish in any drain opposite to his house or land to impede the flow of water;

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Pradeshiya Sabhas Act, No. 15 of 1987 39 (vi) without the previous consent of the Pradeshiya Sabha, by any act on his land interferes with the free passage of water along or from any drain or culvert of any thoroughfares; (vii) hauls or draws upon any thoroughfare any timber stone, or other thing, otherw-se than upon a wheeled carriage, or suffers any timber, stone, or other thing carried principally or in part upon a wheeled carriage to drag or trail upon such thoroughfare to ithe damage thereof ; (viii) makes or causes to be made any dam, ditch, drain, or watercourse upon or across, or otherwise breaks up, or injures, the suriace of any thoroughfare ; a (ix) erects, sets up, lays down, or constructs, either permanently or temporarily in, along, under, or over any thoroughfare, any post, pillar, lamp, wire, pive rails or other plant, material or work . without the permission of the Pradeshiya Sabha or otherwise than in accordance with the terms and conditions of such permission; or (x) attaches additions to his house so as to project over the outer edge of the side drain of any thoroughfare, or by means of temporary supports or otherwise exposes goods or wares of any de- scription over any portion of a thoroughfare or its side drain, or by causing carts to be loaded or unloaded in front of his dwelling in anyway in- jures the side drain, shall be guilty of an offence and shall be liable on convic- tion to a fine not exceeding five hundred rupees. 61. Upon the construction of a new thoroughfare or upon Prohibi- tion of the execution of any repa'r to an existing thoroughfare, it riding or . Shall be lawful for the Pradeshiya Sabha having control of driving any such thoroughfare, by notice exhibited upon or so as to be. animal or visible from the thoroughfare, to proh'bit the riding or driv- vehicle, ing of any animal or vehicle on the thoroughfare for a speci- fied period not excceding one month after the completion of the work of construction or repair; and every person doing any act in contravention of such notice shall be gu'ilty of an , Offence and shall be liable on conviction to a fine not exceeding five hindred rupees.

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40 Pradeshiya Sabhas Act, No. 15 of 1987 Owner or 62. If the owner or occupier of any house or premises adjoining any thoroughfare, by the side of which a drain is bound to have been made or excavated, requires means of access to such house or premises from such thoroughfare, he shall be bound to place over the drain, to the satisfaction of the Pradeshiya Sabha a bridge, platform, or arch, which shall lead to his house. In no case shall the length of such drain be less than three feet of the length of such drain; and it shall be lawful for the Pradeshiya Sabha on being satisfied that any house or premises are so situated and that such bridge, platform or arch should be provided, to call upon the owner or occupant of the house or premises forthwith to construct such bridge, platform or arch, and if he fails to do so within a reasonable time, to cause the work to be done, and to recover the costs thereof in the manner provided by section 59 for the recovery of the costs therein mentioned. 63. Any person who allows any tree, upon any premises trees to of which he is the owner or of which he is in occupation, to grow in such a way as to cause injury to any thoroughfare way as after the service of a notice upon him by the Pradeshiya Sabha calling upon him to take the necessary measures to abate such injury, and after the expiration of such reasonable time as may be specified in the notice for the purpose, shall be guilty of an offence, and shall be liable on conviction to a fine not exceeding five hundred rupees, and in any such case the Magistrate before whom the offender is convicted may, in default of the necessary measures being taken by the offender, direct that such measures shall be taken by the Pradeshiya Sabha and that the costs thereof shall be recovered in the manner provided in section 59 for recovery of the costs therein mentioned. 64. (1) It shall be the duty of every person who proposes to undertake any operations for clearing, draining, or roughfaring through opening up any land in the vicinity of any thoroughfare as clearing are likely to cause injury to the thoroughfare, or to impair draining, the condition thereof by reason of any outflow or increased or opening outflow of water or silt—, * up neighbour— (a) to give notice in writing to the Pradeshiya Sabha of his proposed operations; and (b) in addition to such measures as may be taken by the Pradeshiya Sabha, to take at his own expenses all such measures as may be reasonable to prevent such injury to or such impairment of, the condition of such thoroughfare.

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Pradeshiya Sabhas Act, No. 15 of 1987 4} (2) Any person who undertakes any of the operations referred to in subsection (1) without giving the notice required by that subsection, or who otherwise makes default in compliance with the requirements thereof, shall be responsible for any damage occasioned by such operations, and for any expenses incurred by the Pradeshiya Sabha for the purpose of preventing or remedying any damage that may be occasioned or apprehended in consequence of such operations, and the amount of any such damage or expense may be recovered in the manner provided in section 59 for the recovery of the costs therein mentioned. NUISANCES ON THOROUGHFARES, &C. 65. (1) Every person who within the limits of a Pradeshiya Sabha turns loose or suffers to be turned loose any elephant, ox, buffalo, horse, sheep, goat or other animal on to or into any thoroughfare, or so that it makes its

way on to or into any thoroughfare; or ties or tethers or suffers to be tied or tethered any animal of any description in any manner which permits it to make its way on to or into any thoroughfare, unless such animal is so tied or tethered during the time required for loading or unloading of any cart or boat to which it may belong, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding five hundred rupees: Provided that where any such animal is found on or in any thoroughfare, or tied or tethered in such a way that it can make its way on to or into any thoroughfare, such animal shall be deemed to have been turned loose,- or suffered to be turned loose, or to have been tied or tethered, or suffered to be tied or tethered, as the case may be, by the owner thereof, unless he satisfies the court to the contrary. . (2) The owner of any pig found tied, straying, burrowing Or wallowing in any road or canal within the limits of a Pradesiya Sabha shall be guilty of an offence and shall be liable on conviction to a fine not exceeding fifty rupees; and it shall be lawful for any person to seize or shoot or otherwise destroy any pig that he may find tied, straying, burrowing, or wallowing in any such road or canal; and such person may, if he chooses take such pig to any peace officer or police officer, and such officer shall forthwith sell the pig, and pay the proceeds of such sale to such person. 6—d 094617 (86/12)

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42 Pradeshiys Sabhas Act, No. 15 of 1987 (3) Every person who within the limits of a Pradeshiya Sabha area— — (a) hang up or otherwise expose any mats, clothes, or any substances of any nature whatever on or at the side of any road in a manner calculated to obstruct the use of the thoroughfare; ; (b) leaves or permits to be left, on any thoroughfare any cart or other carriage, without the oxen, horses or other animal being yoked or harnessed thereto, unless such cart or carriage has accidentally broken down there, and in case of such accident, for a longer time than may be necessary for its removal ; (c). suffers any vehicle to remain in any thoroughfare between a quarter of an hour after sunset and a quarter of an hour before sunrise without having attached thereto the lights required by the Vehicles Ordinance, or the Motor Traffic Act; (d) leaves any boat or raft in any canal in such a way as to obstruct the use of such canal; (e) lays or throws any stones, bricks, raft, timber, sand, lime, dung, straw, rubbish or scourings of any ditch, or drain or other article or thing, on or in any thoroughfare, river, or canal and allows such article or thing to remain there, except for such period as may be absolutely necessary for the removal thereof ; if) leads or drives on any road any cart or other carriage with timber, boards, iron or other goods so that either end of any such goods projects beyond the' wheels or sides thereof ; (g) encroaches on any thoroughfare by making OF causing to be made any building, platform, hedge, ditch or fence, or other obstruction upon or in any thoroughfare ; (h) after having blocked or stopped any cart or other carriage in going up or down a hill or rising ground cause or suffers to be or to remain on any thoroughfare the stone, timber, or other thing with which such cart or other carriage may have been blocked or stopped ;

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Pradeshiya Sabhas Act, No. 15 of 1987 43 (i) in any manner wilfully prevents any other person, or any carriage, boat, raft or other conveyance -under his care, from passing along any thoroughfare, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding

five hundred rupees. (4) Every person who within the limits of a Pradeshiya Sabha area places, or continues any kraal or fence or any other obstruction in any canal or river so as to impede or in any way interfere with the convenient navigation thereof, shall be guilty of an offence and shall be liable to a fine not exceeding five hundred rupees, It shall be lawful for the Pradeshiya Sabha to cause any such kraal, fence, or obstruction so placed or continued, to be pulled up or otherwise destroyed, and to recover the cost thereof in the manner provided in section 59 for the recovery of the costs therein mentioned. G6. (1) It shall be lawful for any person, thereto Seizure of authorized by the Chairman of the Pradeshiya Sabha, to stray seize any ox, buffalo, horse, sheep, goat or pig which he cattle. may find tied, tethered or straying on or about any © thoroughfare within the limits of the Pradeshiya Sabha unless such animal belongs to any cart or boat to which it is tied or tethered whilst the cart or boat is being loaded or unloaded, and to place every animal so seized in the pound established by the Pradeshiya Sabha for the purpose. (2) No animal seized under subsection (1) shall be delivered to the owner thereof unless upon payment of such sum as the Pradeshiya Sabha may by resolution fix, from time to time, for the use of the person by whom the animal may have been seized, and of such further sum as the Pradeshiya Sabha may by resolution fix from time to time for each day during which the animal may have been 'kept in the pound. (3) If no person claims any animal placed in the pound or pays the dues required by subsection (2) within ten days after the seizure of the animal, it shall be lawful for the Pradeshiya Sabha to sell it by public auction, and after payment of such sum as the Pradeshiya Sabha may by resolution fix from time to time to the person by whom the animal was seized, and of a sum calculated at such rate per day as the Pradeshiya Sabha may by resolution fix from

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44, Pradeshiya Sabhas Act, No. 15 of 1987 time to time for the custody and maintenance of the animal! in the pound, to keep any balance of the proceeds of such sale in deposit and if such balance is not claimed and payment thereof is not obtained by any person entitled thereto within a period of one year from the date of the sale, to pay such balance into the Pradeshiya Sabha Fund. / (4) The provisions of this section shall have effect in every Pradeshiya Sabha area to which this Act applies, notwithstanding anything contained in the Animals Act, No. 29 of 1958. Inter- 67. Any person who removes any animal from the lawful custody of any person authorized to seize it under section with cattle 66 or under subsection (2) of section 65 or who in any way seizes, molests or obstructs such person in the exercise or discharge of his powers or duties, shall be guilty of an offence and shall on conviction be liable to a fine not exceeding five hundred rupees, SPECIAL USER OF THOROUGHFARES Power 68. Any Pradeshiya Sabha may from time to time, and so Pradeshiya either independently or in combination with any other Sabha Pradeshiya Sabha, subject to the terms of any special enactment to authorize in that behalf, enter into an agreement with any person or body of persons or any local authority of public thorough- constituted by law (hereinafter referred to as "the fares for special promoters"), to authorize such promoters for the purpose purposes. of the supply of gas, electrical energy, water or other public service (not being a tramway service or any other public vehicular communication service), or any private enterprise or object, to make such user of thoroughfares under the control of the Pradeshiya Sabha other than principal thoroughfares, to make such user of principal ' thoroughfare with the prior approval of the Minister in charge of the subject of thoroughfares, and to execute all such works and to set up or maintain all such erections or plants

thereon or therein as may in the opinion of the Pradeshiya Sabha be necessary for the purpose of the effective establishment or maintenance or the modification or development of such public service or such enterprise or object.

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Pradeshiya Sabhas Act, No. 15 of 1987 45 69. (1) For the purpose of any agreement referred to in By-law section 68 and for the purpose of securing the observance of the respective rights and obligations of the public, the Pradeshiya Sabha and the promoters in connection with any public service or any private enterprise or object to which the agreement relates, the Pradeshiya Sabha (except in so far as provision is made by any special enactment in that behalf) may make by-laws — (a) authorizing the promoters and their agents, servants, or workmen, or the agents, servants or workmen of the Pradeshiya Sabha, subject to such conditions as may be prescribed in the by-laws — (i) to break up the soil, metal, and pavement of any thoroughfare vested in the Pradeshiya Sabha; (ii) to open and break up any sewers, drains, or tunnels within or under such thoroughfare; (iii) to erect, set up, or lay down either permanently or temporarily in, along, under or over such thoroughfare, any post, pillar, lamp, wire, pipe-rails, or other plant, material or works; (iv) to alter the position of any public line, wire or other apparatus or plant in or about such thoroughfare for the purpose of any other public service; (6) requiring the promoters to do as little damage as may be in the execution of the powers granted by the said by-laws, and to make compensation for any damage which may be done in the execution of such powers; (c) requiring the promoters to complete any work which they may be authorized to execute under such by-laws with all convenient speed, and to reconstruct, repair or restore any thoroughfare, sewer, drain, tunnel, or any plant or apparatus which they may be authorized to remove, alter or interfere with, in pursuance of such by-laws; (d) requiring the promoters to remove and carry away all rubbish occasioned by their operations, and to cause proper precautions to be taken for the safety of the public in connection therewith;

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46 Pradeshiya Sabhas Act, No. 15 of 1987

- (e) prohibiting any interference with or obstruction to any operations authorized by any by-law under this
- section. (2) No by-law under this section shall authorize or empower any entry to be made, any material or plant to be erected or deposited or any work to be executed upon any building or land which is not vested in the Pradeshiya Sabha, without the consent of the owners and occupiers thereof first had and obtained. Expenses 70. (1) Where it appears to any Pradeshiya Sabha that, caused by having regard to the average expense of maintaining extraordinary thoroughfares in the neighbourhood, extraordinary expenses traffic, may have been incurred by the Pradeshiya Sabha in maintaining any thoroughfares of which it has control, by reason of the damage caused or likely to be caused by the carriage of any excessive weight or the passing of any extraordinary traffic thereon, the Pradeshiya Sabha shall be entitled to recover from any person by whose order, or in

consequence of whose order, such weight or traffic was carried or caused, the amount of such expenses as may be proved to the satisfaction of a competent court to have been incurred by the Pradeshiya Sabha by reason of the damage arising or likely to arise from such excessive weight or extraordinary traffic, or, where more than one person is responsible for such excessive weight or extraordinary traffic, may recover from each of such persons such proportion of the amount of the expenses so incurred, as in the opinion of the court may fairly be assigned to him. (2) Any person against whom expenses are or may be recoverable by a Pradeshiya Sabha under this section may enter into an agreement with the Pradeshiya Sabha for making payment to the Pradeshiya Sabha by way of compensation in respect of such weight or traffic, and, where payment is made in accordance with such agreement, no proceedings under this section shall be instituted or maintained against such person. (3) Proceedings for the recovery of any expenses under this section shall be commenced within twelve months of the time at which such expenses were incurred, or where any expenses incurred are the consequence of any particular contract or work extending over a long period, shall be commenced not later than six months after the completion of the contract or work.

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Pradeshiya Sabhas Act, No. 15 of 1987 47 | POWERS, DUTIES, AND RESPONSIBILITIES OF OFFICERS, &C. ii. In respect of all thoroughfares other than principal thoroughfares

— conferree. thoroughfares within the limits of a Pradeshiya Sabha, the Chairman of the Pradeshiya Sabha and all persons authorized in writing by him in that behalf, shall and may by them do works by whomsoever, their servants, workmen, and labourers, exercise the powers and authorities conferred by this Part on officers in charge of works to which this Part is applicable, 72. If any plan or survey, made by or by the direction of Surveyor, the Pradeshiya Sabha or any authority of which the Pradeshiya Sabha is the successor, is produced in evidence in any conclusive proceeding under this Part, such plan or survey shall be evidence, deemed and taken to be proof of the facts exhibited therein, in so far as the claim of the Pradeshiya Sabha is concerned, unless the contrary be established by the party contesting such claim, 73. Every person who sustains any loss or damage by reason of the exercise by or by the authority of the Chairman for injury to man or any Pradeshiya Sabha, of any of the powers or authorities conferred by this Part upon officers in charge of works authorized to which it is applicable, shall (except where the loss or damage is incurred through the act, default, or neglect of such person) be entitled to receive compensation for such loss or damage, if he makes application in that behalf to the Pradeshiya Sabha at any time before the expiration of three months after the claim for compensation has arisen, Where any such person fails to make such application within the aforesaid period, his claim to compensation for the alleged loss or damage shall be disallowed, and he shall be barred from recovering such compensation. | 74. Where, for any reason, the amount of any compensation payable under section 73 is not agreed upon between the Pradeshiya Sabha and the claimant, such amount may be determined by two arbitrators, of whom one shall be nominated by the Pradeshiya Sabha and the other by the claimant. If the two arbitrators cannot agree, they shall appoint an umpire, and the award of the arbitrators or umpire, as the case may be, given in terms of the reference agreed to by the Pradeshiya Sabha and the claimant, shall be final and binding.

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4 Pradeshiya Sabhas Act, No. 15 of 1987 Ofteers aiid 73. YF£ any officer of a Pradeshiva Sabha In charge of any vontractors work en any thotoughiare, or any person engaged upon any eaving one &xe., thoroughfare in pursuance of any contract with any Prade- | on thorough. shiya Sabha, lays, or causes to be laid any heap of stones, dares at night. gravel, rubbish, or other matter whatsoever upon the thoroughfare, and altows such heap to remain there at night, to the danger or personal damage of any p<rson passin along the thoroughfare (all due and reasonable precautions not having been taken by him to prevent any such danger or damage), such officer or person shall be guilty of an offence punishable with a fine not exceeding five hundred rupees. 76. Save as in sections 75 and 218 provided, nothing Road 'ficer or — contained in this Part shall render any officer of a Prade- ¥oad sontractor shiya Sabha in charge of any work on any thoroughfare, or aot Hable to fine any contractor under the Pradeshiya Sabha, Liable to any axcept in sertain prosecution or fine under this Part for any act done hy such S508, officer in the discharge of the duties of his office, or ty such contractor in the necessary exection or performance of ais contract. Ti. It shal be the duty of all officers of the police force Yolice officers gnd of all Grama Seva Niladharis generally, to aid and as- and Grama eva sist in the prevention cZ all offences against this Part within Niladharig %o enforce the areas for which they are respectively appointed. provisions of this Part. PART IV PoWERS AND DUTIES AS TO Pusiic HEALTH PUBLIC HEALTH _%. (1) Subject to the powers and responsibilities by law Pradeshiya Sabha committed to any other authority, the Pradeshiya Sabha to be general shall be the general administrative authority for the purpose public health of promoting and securing the public health within its limits authority. ond snall for that purpose be entitled to exercise all such powers as are vested in it by this Act, the Nuisances Ordi- nance, the Housing and Town Improvement Ordinance, and any other written law for the time beirg in force in that behalé

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Pradeshiya Sabhas Act, No. 15 of 1987: 49 (2) The Pradeshiva Sabha shall, in the exercise, discharge ana performance o! the powers, duties and functions vested in, assigned to or imposed on the Pradeshiya Sabha by or under this Act in matters relating to public health, act in consultation with the Medical Officer of Health within its limits. It shal] be the duty of the Medical Officer of Health to advise the Pradeshiya Sabha in all such matters and to gupervise and direct the carrying out in that area of Measures relating to public health. DRAINAGE 79. The Pradeshiya Sabha may from time to time cause Pradeshiys Sabha to to be made, altered or extended such public, main or other make drains, sewers and watercourses as may appear to he neces- publie drains. sary for the effectual draining of any area within the Pra- deshiva Sabha area, and, if necessary, the Pradeshiva Sacha may carry them through, across, or under any street or any place laid out as or intended, for a street, or any cellar or vault which is under any of the streets, and after reason- able notice in writing in that behali, into, through, or under any closed or other lands whatsoever, doing as little damage as may be and making full compensation for any damage done. 80. (1) The Pradeshiya Sabha shall maintain and from Duty of Pradeshly« time to time repair and as it sees fit, enlarge,- alter. arch Sabha to | over or otherwise improve all or any of the public drains, repair, alter

and culverts, gutters, and watercourses and may discontinue, discontinue Close up, or destroy such of them as it may deem useless or drains, unnecessary, but so that no nuisance is created by such act- (2) Where, by reason of the discontinuance, closing up, destruction or alteration of any drain, culvert, gutter or watercourse, any person is deprived of the lawful use there- of. the Pradeshiya Sabha shall with due diligence provide an effective substitute therefor. 81. Whenever a Pradeshiya Sabha has by a resolution determined that any natural watercourse, channel, lake, 'discharge of rain water or any part thereof into which rain water or drainage water and drainage. has thereto discharged, shall remain open for the reception of such rain water or drainage, any person who, after receiving a written notice of the resolution from the Pradeshiya Sabha. fills up or permits to remain filled up any such water- course, channel, lake or swamp in such a manner as to obstruct-

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50 Pradeshiya Sabhas Act, No. 15 of 1987

obstruct or interfere with the free flow of such rainwater or drainage, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding five hundred rupees : provided that— (a) such natural watercourse, channel, lake or swamp may be closed up if the owner thereof first provides such other channel or drains may be in the opinion of the Chairman, be sufficient and suitable for the reception and conveyance of such water or drainage ; and (b) the Pradeshiya Sabha may contribute in part or in whole to the cost of providing such other channel or drain. General 82. (1) Every private drain within the limits of any Pradeshiya Sabha shall be under the survey and control of the the Pradeshiya Sabha of that area, and shall be constructed, drains. altered, repaired, or kept in proper order as the Pradeshiya Sabha may require, at the cost and charges of the owners of the land or building to which such drain belongs or for the use of which it is constructed, ~ (2) If the owner of any land or building to which any such drain belongs neglects during eight days after the service of a written notice in that behalf by the Pradeshiya Sabha, to alter, repair, or put the drain in good order in such manner as may be specified in the notice, the Pradeshiya Sabha may cause such drain to be altered, repaired or put in good order in the manner required and the expenses incurred therein by the Pradeshiya Sabha shall be paid by the owner and shall be recoverable as hereinafter provided. 83. Whoever within the limits of any Pradeshiya Sabha without the written consent of the Pradeshiya Sabha first making unauthorised, makes or causes to be made any drain leading into or connected with any of the public sewers or drains, shall be guilty of an offence punishable with a fine not exceeding five hundred rupees and the Pradeshiya Sabha may cause the drain so made to be demolished, altered, re-made, or otherwise dealt with as it may think fit; and all the expenses incurred therein by the Pradeshiya Sabha shall be paid by the person convicted of the offence and shall be recoverable as hereinafter provided.

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Pradeshiya Sabhas Act, No. 15 of 1987 51 §4. No new buildings shall be erected over any public Buildings drain, sewer, culvert, gutter, or watercourse within the limits over drains, &c., of any

Pradeshiya Sabha area without the written consent not to be erected of the Pradeshiya Sabha and where any building is so erect- without ed, the Pradeshiya Sabha may cause it to be piled down or consent of the otherwise dealt with as it may think fit ; and the expenses Pradeshiya incurred therein by the Pradeshiya Sabha shall be paid by Sabha. the person convicted of the offence, and shall he recoverable as hereinafter provided. LATRINES 85. It shall be the duty of the Pradeshiya Sabha— Duty of Pradeshiya (a) to take effective measures to secure that adequate and Sabha as proper latrine accommodation is provided for all to latrine houses, builctings and lands within such area; accommo- dation. (b) to provide such public latrine accommodation as is necessary at all places of public resort witnin its limits ; and c {c) to ensure that all latrine accommodation both public and private within its limits is maintained in proper order and condition. 86. (1) In any case where the Pradeshiya Sabha is of Construc- Opinion that any latrine, water-closet or bathroom, or addi- tion of additional tional Jatrine, water-closet or bathroom should be attached latrines. to, or provided for. any house or building or land, the Pra- Geshiva Sabha, may, by notice in writing served on the owner of such house or building or land, require such owner, Within thirty days from the service of the notice, to cause such Jatrine, water-closet or bathroom to be constructed in accordance with the requirements contained in such notice. (2) Every owner who fails or neglects to comply with the requirements of any notice served on him under sub- section (1) within the said period of thirty days shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two hundred and fifty rupees, 87. (1) The Pradeshiya Sabha may. by notice in writing Duty of served on any person employing a large body of workmen employers of labourers to or labourers, require such person to— provide latrines, . (a) provide within such time as may be specified in the notice, such number of latr'nes, water-closets and urinals as may seem to the Pradeshiya Sabha neces-

- sary having regard to the number of labourers of

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52 Pradeshiya Sabhas Act, No. 15 of 1987 workmen employed by such persons; and in any case where persons of both sexes are employed or intended to be employed or are in attendance, to provide proper separate accommodation for persons of each sex ; and (b) cause 'he same to be maintained in a sanitary condi- tion and proper order, (2) Where any person served with a notice under sub- section (1) fails or negtecis to provide and maintain such latrines, water-closets, and ur:nals or to maintain the same in a sanitary condition or in proper order, the Pradeshiya Sabha may cause such latrines, water-closets and ur.nals to be constructed or to be maintained in a sanitary condition or in proper order, and that expenses incurred by the Pra- deshiya Sabha in resvect thereof shall be paid by the person aforesaid and, in case of default, shall be recoverable as hereinafter provided. (3) Every person who fails or neglects to comply with the requirements of any notice served on him under subsec- tion (1) within the time specified in the notcei, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two hundred and fifty rupees. Negtecting 88. (1) The owner or occupier of any house or building te enclose or land on which a latrine is situated shall have such latrine private latrine. shut out by a sufficient roof and a wall or fence from the view of persons residing in the neighbourhood or passing by, and it shall not be lawful for any such owner or occupier to keep any open latrine or a latrine with a door or trap door opening on to any street. (2) The owner or occupier of any house or building or land who fails

to comply with, or shall commit any breach of, any of the provisions of subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine of fifty rupees for each day during which such breach is continued : Provided that the Pradeshiya Sabha may in its discretion permit the continuance for such time as it may think fit of any open latrine or any latrine with a door or a trap door opening on to any street in any case where such latrine already exists and does not create a nuisance.

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Pradeshiya Sabhas Act, No. 15 of 1987 53 89. (1) All latrines and cesspits within the limits of any General Pradeshiya Sabha shall be under the survey and control of control of latrines, the Pradeshiya Sabha and shall be altered, repaired, or kept in proper order or any latrine may be converted to a water sealed latrine, as the Pradeshiya Sabha may require, at the cost and charges of the respective owners of the houses, buildings or lands to which the latrines belong, or for the use of which they are constructed or maintained. (2) If the owner of any house, building, or land to which any latrine or cesspit belongs, neglects during one month after service of notice in writing for that purpose by the Pradeshiya Sabha, or within such other period as may be prescribed by the notice, to alter, repair, and put the latrine or cesspit in good order in the manner required by the Pradeshiya Sabha or to convert such latrine to a water sealed latrine, the Pradeshiya Sabha may cause such latrine or cesspit to be altered, repaired or put in good order in the manner required or such latrine to be converted to a water sealed latrine and the expenses incurred by the Pradeshiya Sabha in respect thereof shall be paid by the owner, and shall be recoverable as hereinafter provided. 90. If any person within the limits of any Pradeshiya Penalty for persons Sabha—, making or altering (a) constructs any latrine or cesspit contrary to the directions of the Pradeshiya Sabha or contrary to the provisions of this Act, or any by-law made directions thereunder; or (b) continues the use of any latrine or cesspit which Sabha has been ordered by the Pradeshiya Sabha to be removed or closed ; such person shall be guilty of an offence punishable with a fine not exceeding five hundred rupees. 91. (1) The Pradeshiya Sabha or any officer authorized Inspection of latrines, by the Pradeshiya Sabha for that purpose may, subject to the other provisions of this Act, inspect any latrine or cesspit within its limits, and may for that purpose at any time enter upon any house, building or land, with such assistants and workmen as are necessary, and cause the ground to be opened, where such Pradeshiya Sabha or officer may think fit, doing as little damage as may be.

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54 Pradeshiya Sabhas Act, No. 15 of 1987 (2) If upon any inspection under subsection (1) it appears that any latrine or cesspit is not in good order and condition, or that it has been constructed after the date of the constitution of the Pradeshiya Sabha in any manner contravening the provisions of this Act or the by-laws made thereunder or contrary to the direction of the Pradeshiya Sabha, the expenses of such inspection shall be paid by the person to whom such latrine or cesspit belongs, and shall be recoverable as hereinafter provided. (3) If any latrine or cesspit is found to be in proper order and condition, and not to have been constructed in contravention of the provisions of this Act or the by-laws made thereunder or the directions of the Pradeshiya Sabha,

the Pradeshiya Sabha or the authorized officer of the Pradeshiya Sabha shall cause the ground to be closed and made good as soon as may be and the expenses incurred thereby shall in that case be defrayed by the Pradeshiya Sabha. \$2. (1) The Pradeshiya Sabha or any officer authorized Power of Pradeshiya by the Pradeshiya Sabha for that purpose may by written Sabha 'to direct notice require the owner or occupier of any house or building removal of dings or land within the limits of a Pradeshiya Sabha on latrine or closure which is situated a latrine or cesspit which, in the of cesspit. Opinion of the Pradeshiya Sabha or the officer, is structural- ly defective or unsuitable for the purpose to which it is put, or is liable to give rise to a nuisance, to repair, alter, reconstruct or remove the latrine or cesspit, or to substitute an earth-closet therefor. (2) If any owner or occupier neglects for a period of one month after service of notice in that behalf under subsection (1), or within such other period as may be specified in the notice to repair, alter, reconstruct or remove the latrine or cesspit to which the notice relates, or to substitute an earth-closet therefor, he shall be guilty of an offence punishable with a fine not exceeding five hundred rupees. (3) The Pradeshiya Sabha or the authorized officer may cause the latrine or cesspit referred to in subsection (2) to be repaired, altered, reconstructed, or to be removed and an earth-closet to be substituted therefor, and the expenses incurred by the Pradeshiya Sabha or the officer in respect thereof shall be paid by the owner, and shall be recoverable as hereinafter provided.

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Pradeshiya Sabhas Act, No, 15 of 1987 55 CONSERVANCY AND SCAVENGING 93. - It shall be the duty of the Pradeshiya Sabha, so far as Duty of Pradeshiya as is reasonably practicable to take all necessary measures Sabha as to Within its limits— conservancy (a) for properly sweeping and cleaning the streets, and scavenging, including the footways, and for collecting and removing all street refuse; (b) for securing the due removal at proper periods of all house refuse, and the due cleaning and emptying at proper periods of all latrines and cesspits ; and (c) for the proper disposal of all street refuse, house refuse and night-soil. . 94. All street refuse, house refuse; night-soil or other All refuse collected similar matter collected by any Pradeshiya Sabha under the to be property provisions of this Part shall be the property of the Pradeshiya Sabha, and the Pradeshiya Sabha shall have full Pradeshiya Sabha. power to sell or dispose of all such matter. 95. Every Pradeshiya Sabha shall from time to time Places for disposal provide places convenient for the proper disposal of all of refuse street refuse, house refuse, night-soil, or similar matter and keeping removed in accordance with the provisions of this Part and equipment. for keeping all vehicles, animals, implements, and other things required for that purpose or any of the» other purposes of this Act and shall take all such measures and 'precautions as may be necessary to ensure that no such refuse. night soil, or similar matter removed in accordance with the provisions of this Part is disposed of in such a way © as to cause a nuisance. INSANITARY BUILDINGS 95. It shall be the duty of the Pradeshiya Sabha to cause Duty of Pradeshiya to be made from time to time an inspection of every part Sabha as to insanitary within the limits of the Pradeshiya Sabha with a view to buildings. Securing that the houses or buildings within its limits are kept in such sanitary condition as is required by the provisions of this Act or any other enactment, and to undertake all necessary measures to enforce such provisions within that area.

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56 Pradeshiya Sabhas Act, No. 15 of 1987 Duty of - 97. (1) Whenever the Pradeshiya Sabha is satisfied that Pradeshiya any building or block of buildings are by reason of the Sabha as to concurrence of an epidem.c or of the manner in which such existing -buildings are crowded together, or of the want of drainage buildings. or the impracticabil.ty of scavenging, attended with risk to the health of the inhabitants thereo! or of the neighLour- hood, the Pradeshiya Sabha shall serve a notice on the owners or occupiers thereof, or, at its opt:on, on the owner of the land on which such buildings are constructed, to execute w:thin such time as may be specified in the notice, such operations including the alteration of such building as the Pradeshiya Sabha may deem necessary for the avoidance of such risk. (2) In any case where an owner or occupier served with a notice under subsect on (1) refuses or neglects to execute such operations within the time specified in the not:ce, any officer authorized by the Pradesyha Sabha in that behalf may cause the building to be taken down, or such operations to be verformed in respect thereof, as the Pradeshiya Sabha may deem necessary to prevent such risk. (3) Where any buildings are taken down under subsection (2) the Pradeshiya Sabha or the authorized officer shall cause une materials of each buildin g to be sold separately if such sale can be effected. and the proceeds shall be paid to the owner of the building, or if the owner be unknown or the title disputed, shell be held in deposit by the Prade- shiya Sabha until the person entitled thereto obtains the order of a competent court for the payment of such proceeds, Overcrowd- 98. Whenever it appeers to the Pradeshiva Sabha that ing of houses, any house is so overcrowded as to be dangerous or pre judicial to the health of the occupiers thereof, or of the neighbourhood, and the occupiers consist of more than one family, the Pradeshiya Sabha shall cause proceedings to be taken before a Magistrate to abate such overcrowding, and the Magistrate shall thereupon make such order as he — may think fit ; and each of the persons permitting such over- crowding shall be guilty of an offence and shall be liable ‘on conviction to a fine not exceeding one hundred rupces for each day after the date of such order during which such overcrowding shall continue. }

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Pradeshiya Sabhas Act, No, 15 of 1987 57 99. It shall be lawful for any person authorized Sn: that Power behalf by the Pradesh‘ya Sabha at any time between sunrise Pradeshiy+ ‘and sunset to enter into and inspect any house or building, Sabha and where it finds such house or building to ‘be in’ afi inspect and limewash unsatisfactory condition to direct by an order in writing, houses, all or any part thereof to be internally and externally limewashed or otherwise cleaned; and if the owner . or occupier of such house or building neglect to comply with such direction within sever days from the time when, the order shall have been served upon him, the Pradeshiya : Sabha may cause the work to be done, and the expenses thereby incurred shall be paid by the owner, and in case of default be recoverable as hereinafter provided. NUISANCES 100. It shall be the duty of the Pradeshiya Sabha to cause Inspectcm of to be made from time to time an inspection of its area with nuisances, a view to ascertaining what nuisances exist calling for abatement under the powers conferred by this Act or any other enactment, and to the enforcement of the provisions of this Act or such other enactment in order to ahate such nuisances, yal 101. (1) Where within the limits of any Pradeshiya Power to fill up Sabha any private tank or Jow marshy ground or any waste unwhole- some stagnant water, situated on any private land, appears to the on ‘ Pradeshiya Sabha to

be injurious to health or to be offensive private © premise to the neighbourhood, the Pradeshiya Sabha shall, by notice in writing, require the owner of that land to cleanse of fill up such tank or marshy ground or to drain off or remove such waste or stagnant water. 7 (2) If any owner on whom a notice under subsection (1): is served refuses or neglects to comply with 'the notice within such period as may be specified therein, the Chair- man, or the officers and workmen of the Pradeshiya Sabha may enter into the land and do all necessary acts for all or any of the purposes referred:to in subsection (1), and the . expenses incurred thereby shall be paid by the owner of the land; and, in cas e of default, shall be recov v e a r n a blvea sectahosa hereinafter provided. 78 094617 (86/12)

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58 Pradeshiya Sabhas Act, No. 15 of 1987 ! (3) Where the land referred to in subsection (2) is own- ed by more than one person, the expenses referred to in that subsection shall be apportioned among, and recovers- ble from, the several owners in such proportions as may be determined by the Pradeshiya Sabha having regard to the interests of such person in such land. Picomatng 102. (1) No place within the limits of any Praceshiya Shaugther Sabha other than a place provided by. the Pradeshiya Sabha house, Shall be used as a slaughter house, unless a licence for the use thereof as a slaughter house has been obtained from the Chairman of the Pradeshiya Sabha, who is hereby empowered to grant such licence and to suspend or revoke such licence as to him may seem necessary. (2) Every person who uses as a slaughter house any place (other than a place provided by the Pradeshiya Sabha) which is not licensed under subsection (1), or in respect of which any licence given has been suspended or revoked, shall be guilty of an offence punishable with a fine not exceeding six hundred rupees and a further fine not exceeding five hundred rupees for every day during which such offence is continued after notice has been served upon him by the Chairman requiring him to discontinue the use of such slaughter. house. Nuisance 103. Every person who, having the care or custody oy child. of any child under twelve years of age, fails to prevent such child from committing a nuisance in or by the side of any street, shall be guilty of an offence and shall be liable on conviction to a fine not exceeding one hundred rupees. Public 104. (1) The Pradeshiya Sabha may by puhtie notice bathing prohibit bathing or the washing of animals or clothes in _ any-public place not set apart for the purpose, or at times or by persons other than those specified in the notice and ail other acts which may in any manner pollute or render water in public places foul or unfit for use or may cause inconveni- ence or annoyance to persons using the bathing or washing places. Such notice shall be published in the Gazette in the Sinhala, Tamil and English languages and in at least one Sinhala, one Tamil and one English newspaper.

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Pradeshiya Sabhas Act, No. 15 of 1987 59 (2) Every person who bathes, washes, or does any act contrary to subsection (1) shall, be guilty of an offence and shall on conviction be liable to a fine not exceeding five hundered rupees. 105. Every person who bathes in, or washes any clothes Polluwvy.« of or other things in, or causes or suffers any dirt, refuse, or streams which impurity to flow into or otherwise in any manner pollutes flow into or contaminates any reservoir used for the purposes of the reser- voirs OF water-works belonging to any Pradeshiya Sabha, or any water stream or watercourse whereof the water flows into or works. feeds any such reservoir,

shall be guilty of an offence, and shall be liable on conviction to a fine not exceeding five hundred rupees, and, in the case of a continuing offence, to an additional fine not exceeding one hundred rupees for each day during which the offence is continued after conviction therefor, or after the date of service of the written notice from the Council directing attention to the offence. 106. (1) Any person who, within the Pradeshiya Sabha Pollution caused area, operates or causes to be operated any factory which by factories. causes pollution so as to endanger or prejudice the health of the neighbourhood shall be guilty of an offence. (2) Where a Magistrate after summary trial convicts a person of an offence under subsection (1) he shall, depending on the degree of pollution caused by such factory make order— (a) that such person pay a fine, equivalent to twice the fee payable for a licence issued under the provisions of this Act or any by-law made thereunder in respect of the premises on which that factory is situated notwithstanding that such amount exceeds the amount of fine which a Magistrate may e

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- 60 Pradeshiya Sabhas Act, No. 15 of 1987 impose in the exercise of his ordinary jurisdiction and the amount so recovered shall be paid into the Fund of the Pradeshiya Sabha; or (b) that operations in such factory shall cease. Power 107. (1) Where in any Pradeshiya Sabha area any tree of a Chairman or any branch, trunk, fruit or other part of a tree is causing or is likely to cause damage to any building, or is in a Sabha in regard condition dangerous to the occupants of any building, or to trees the safety of passers-by along any public thoroughfare, ~ ranches, the Chairman of the Pradeshiya Sabha of such area may, by a notice in writing served on the owner or occupier of fruits of trees the land on which such tree stands require such owner or endangering the occupier to tie up and make secure, or to cut down and safety of remove such tree or the branch, trunk, fruit or other part person of such tree within such time as may be specified in the or property. notice. (2) Every person on whom a notice is served under subsection (1), shall comply with the requirements of such notice within the time specified therein, and in the event of the refusal or neglect of such persons to comply with such requirements within such time, the Chairman, or any officer or workman authorized in writing in that behalf by the Chairman, may enter upon the land referred to in such notice and do what such person was required to do by such notice, and the expenses thereby incurred may be recovered from such person as a debt due to the Pradeshiya Sabha- For the purposes of section 104, section 195 and section 106 “pollution” means any direct or indirect alteration of the physical, thermal, chemical, biological or radioactive properties of any part of the environment by discharging, emitting or depositing wastes so as to effect any beneficial use adversely or to cause a condition which is hazardous or ‘potentially hazardous to public health, safety or welfare or to animals, birds, wildlife, fish or sedentary life, or to plants of every description. ;
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Pradeshiya Sabhas Act, No. 15 of 1987 ‘61 PUBLIC UTILITY SERVICES 108. -A Pradeshiya Sabha may, within its limits either Power of independently or in conjunction with any other local

Pradeshiya Sabha to authority or any other person, establish and maintain for establish the benefit of the persons inhabiting or resorting to such public utility area, the following public utility services : — services. (a) water supply ; (b) the lighting of streets, public places and public buildings; - (c) the supply of electricity or power ; (d) markets; (e) resthouses; (f) public baths and bathing places; (g) the manufacture and supply at cost price of squatt- ing plates for latrines; (hk) the provision of housing accommodation for the poorer classes; (i) any other form of public service which the Pradeshiya Sabha is authorized to establish, maintain or provide under any other provision of this Act, or under any other written law. 109. For the purpose of the establishment and Manner of Maintenance of any public utility service which a defraying Pradeshiya Sabha is authorized by or under section 108 to expenses of public establish and maintain, the Pradeshiya Sabha may— utility service. (2) provide for any expense involved out of the revenue of the Pradeshiya Sabha; or (b) subject to the sanction of the Minister, levy a special rate upon the area benefitted by such service, sub- ject to such limits and exemptions as may be prescribed by by-laws; or ‘(c) contract with the owners or occupiers of premises benefitted by such service for the supply of the service, und charge and enforce such rates in res- pect of such service as may be prescribed by by- laws ; or ae ' i]

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62 Pradeshiya Sabhas Act, No. 15 of 1987 (d) charge such fees as it may deem reasonable from persons -lervirg benefit from such service; or (e) where anv such public service is establish and mai- tained through any promoter or body of promoters, in pursuance of any agreement made with the Pradeshiya Sabha or under any licence issued by the Pradeshiya Sabha, authorize such promoter or promoters to charge such fees as may be approved by the Pradeshiya Sabha from persons deriving benefit from such service. Maximum 110. <A special rate levied by a Pradeshiya Sabha upon of special the area benefitted by a water service or conservancy ser- rate for vice established and maintained by the Pradeshiya. Sabha water or cénservancy shall not exceed nine per centum of the annual value of service. all buildings and lands situated within such area. Liability 111. (1) Where any land or building, which is situated for within the limits of any Pradeshiya Sabha area and is the special rates in property of the State, is occupied or held by any person respect of State under any lease or permit granted by the State, such land property. or building shall be liable to be assessed in respect of any special rate imposed under section 109 and such person shall be liable to pay and shall pay the special rate leviable in respect of that land or building. (2) No property of the State whether movable or immo- vable, shall be liable to be seized or sold for the recovery of any special rate which may be due from any person occupying or holding that property under any agreement, contract or permit, whether expressed or implied, with or from the State. Assessment 112. Every special rate under section 109 shall be assessed and and levied and, in case of default shall be recovered recovery of special summarily, in such manner as is prescribed by section 159. rates. Exemption 113. A Pradeshiya Sabha may by resolution, specially from special exempt any property from any special rate imposed under rate by resolution. section 109 on the ground of the poverty of the owner.

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Pradeshia Sabhas Act, No. 15 of 1987 63 WATER SUPPLY 114. A Pradeshia Sabha may, with the approval of the Supply to premises Minister and subject to the consent of the local authority in of any area adjacent to its limits, contract with the owners adjacent area, or occupiers of any premises situated in any such adjacent area for the supply of any public utility service to such premises, and may charge and enforce rates in respect of such supply. 115. For the purposes of the establishment and General maintenance of any public utility service which it is power of authorized to establish and maintain by or under this Act, Pradeshia Sabhas. any Pradeshia Sabha may enter into any contract and may, subject to the provisions of this Act, purchase, take upon lease, hire, construct, or maintain all premises machinery and apparatus required for such purposes and do and execute all such works, matters and things as may be necessary in that behalf. 116. Where the Pradeshia Sabha establishes and Rate-payers entitled maintains a public water supply for the benefit of the to free inhabitants living within its limits or any part thereof, water supply the owner or occupier of any premises in such area or from part, as the case may be, in respect of which the Pradeshia public stand Sabha levies a special water rate, shall be entitled to have pipes free of further charge, a supply of water from the public for domestic Stand-pipes for the domestic purposes: of himself and his purposes. household or of his tenants or other persons occupying the premises. 117. A supply of water for domestic purposes shall not: Meaning of include a supply of water for horses or cattle or for wash- " domestic purposes ", ing vehicles, where such horses, cattle, or vehicles are kept for sale or hire or a supply for any trade, manufacture or business, or fountains or swimming baths or for any ornamental or mechanical purpose or for purposes of irrigation, - 118. A Pradeshia Sabha may supply water for other Contract for than domestic purposes or allow a private service of water. private, service, to any premises for Domestic purposes in such quantities and upon such terms and conditions as may be agreed upon' between the Pradeshia Sabha and the person desirous of being so supplied, or as may be prescribed by by-laws. in that behalf.

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64 Pradeshia Sabhas Act, No. 15 of 1987 MARKETS Power . 119. It shall be lawful for a Pradeshia Sabha to establish peoosa lye and maintain within its limits such public markets and vil- Sabha as to ." Village... lage fairs as are required for the service of its inhabitants, fairs. and to provide for the proper regulation, supervision and contr of such fairs. Provision 120. Every licence issued by a Pradeshia Sabha for the applicable establishment and maintenance of a private fair shall be where a licence: is - subject to the following conditions :— . (a) every licence for a private fair granted on or after for a private ..°— - such date as the Minister may appoint by Order published in the Gazette shall be upon the condi- tion that should the Pradeshia Sabha at any time decide that it is in the public interest to establish a village fair in place of such private fair, the author- ity empowered in that behalf may refuse to renew the licence of such private fair, and that the owner of such private fair shall not be entitled to any

- compensation in respect of such refusal; ©) the authority empowered in that behalf may, on or after the date appointed under paragraph (a) of ' this section, refuse to issue or renew a licence for a private fair, if he is satisfied that the wants of the area are sufficiently provided for by the village and private fairs already in existence or in contemplation. Compensa- 121.

(1) Where a Pradeshia Sabha is satisfied that it is: tion for in the public interest that any private fair should be discontinued, either— (a) discontinued, or - (b) taken over by the Pradeshia Sabha and maintained as a private fair, the Pradeshia Sabha may either direct the discontinuance ; of such fair, or may take it over and maintain it as a public fair subject in either case to the payment of compensation in accordance with the provisions of this section. (2) Where any private fair is directed by Pradeshia Sabha to be discontinued, the compensation payable, unless otherwise settled by agreement, shall be the difference between the value of the premises if used as a fair under this Act, and the value of the same premises if used, not as a fair but for any other purpose to which similar premises in the same locality are or might be put to the best advantage, together with an allowance in respect of the cost of adapting — for any such purpose the buildings used for the fair.

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Pradeshia Sabhas Act, No, 15 of 1987 65 (3) Where any private fair is taken over by a Pradeshia Sabha to be maintained as a public fair, the compensation payable shall be the value of the premises when used as a private fair under this Act. (4) In estimating value of the premises used as a fair under this Act, regard shall be had to the depreciation likely to occur in the value of such premises in the event of a public fair or a new private fair being established in the same neighbourhood. 122. (1) Every Pradeshia Sabha shall have power to make or make from time to time such by-laws, not inconsistent with the provisions of this Act, as may be authorized or required by this Act. or may appear to the Pradeshia Sabha to be necessary for the purposes of the exercise of its powers and the discharge of its duties under this Act, and to amend, vary or rescind any by-laws so made. (2) A by-law made by any Pradeshia Sabha may provide the penalty of a fine for any contravention thereof, such fine not exceeding seven hundred and fifty rupees for any one act or omission constituting such contravention, and in the case of a continuing contravention, an additional fine not exceeding two hundred and fifty rupees for every day during which the contravention is continued after a conviction thereof by a court of competent jurisdiction or after service of a written notice from the Chairman or other authorized officer directing attention to such contravention. (3) (a) Where any person contravenes any by-laws made under paragraph (ix) of section 126, and where such person has not been previously convicted under this section, the Chairman shall compound such offence if so requested by the offender, for a sum of money equal to one-fourth of the maximum fine imposable for such offence under this section, and where a prosecution has been entered against any such offender, the Chairman shall compound such offence at any time before judgment with the consent of court. (b) Any sum of money accepted by the Chairman under subsection (i) shall be credited to the Pradeshia Sabha Fund, —

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66 Pradeshia Sabhas Act, No, 15 of 1987 123. (1) No by-law and no amendment, variation or Approval and publication rescission of any by-law under this Act shall have effect until of by-laws. it has been approved by the Minister, and notification of such approval is published in the

Gazette. (2) Every by-law made under this Act shall be published in the Gazette with the notification required by subsection (3). Supply of 124. Copies of all by-laws made under this Act shall be copies of kept at the office of the Pradeshiya Sabha to which they by-laws. rejate and at the office of the Commissioner, and shall be open for inspection and be available for sale to the public. By-laws to 125. Every by-law made under this Act shall, as soon be subject as convenient by may be after the publication thereof under “to disallowance section 123 be brought before the Parliament by motion that or amend- such by-law be not disallowed, and may, by resolution of ment. the Parliament, be rescinded or amended. Notification of the recission or amendment of a by-law by Parliament shall be published forthwith in the Gazette ; and such recission or amendment shall take effect from the date of such publica- tion out without prejudice to anything that have been done or any proceedings that may have been instituted under that by-law prior to that date. Subject of 126. The powers of anv Pradeshiya Sabha to make by- by-laws, laws under this Part shall, without prejudice tv the generality of the powers thereby conferred, include the power to make by-laws for or in respect of all or any of the foilowing purposes :— (i) meetings and procedure, including— (a) the intervals at which ordinary meetings are to be convened, (b} special meetings, (c) mode of convening a meeting, (d) conduct of meetings; (ii) officers and servants, including— (a) the creation of posts or officers, (b) appointments to posts or offices in the service of the Pradeshiya Sabha. nct being local government service posts within the meaning of the Local Government Service Law, No. 16 of 1974, s

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Pradeshiya Sabhas Act, No. 15 of 1987. 67 (c) the qualifications necessary for appoinments to posts or offices referred to in sub- paragraph (b), _ (d) the payment of salaries, allowances and remuneration to officers and servants of the Pradeshiya Sabha who aie not members of the Local Government Services, ' (e) the provision of pension or gratuities to the widow, children, next of kin or dependents of deceased officers and servants, (f) the establishment and regulation of a provi- - dent fund for the benefit of the officers and servants referred to in sub-paragraph (d), (g) the grant of leave of absence to officers and servants referred to in sub-paragraph (d) ; (iii) taxation including the recovery of any tax payable under this Act, for which no other express provision js made and the rendering of all returns - and information that may be required for the purpose of any such tax; (iv) leans, including— (a) the torm and manner of execution of securities, (b) the arrangements for liquidation, (c) the mode and order of repayment of securities, (d) the conditions of any loan and_ the appropriation of the sums advance; (v) the imposition, levey and recovery of rates and charges including— (a) the assessment of buildings, lands and tenements, (b) the rendering of returns and information required for the purposes of such assess- ment. ,

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68 Pradeshiya Sabhas Act, No, 15 of 1987 ‘ (c) the hearing and determination of objections, (d) the registration at the office of the Pradeshiya Sabha of mortgages over immovable property situated within the administrative limits of the Pradeshiya Sabha and of the addresses of mortgages, and the imeosition and recovery of fees for such registration, (e) the posting of notices in writing to such

registered mortgages of the sale of immovable property seized the recovery of rates, taxes, or charges ; (vi) land and property, including— (a) the provision, regulation, and management of ambalams and madams, open spaces, and places for public recreation, (b) the care of waste or public land, (c) the maintenance and management of immovable property vested in, or under the control of, the Pradeshiya Sabha, (d) the care, regulation, and provision of common pasture grounds, and the levy of fees for the same, (e) the putting up and preservation of boundaries and of fences for lands, whether private or public, (f) the authorisation of entry upon private lands for the purpose of the prevention of damage to, or the repairing or remedying defects in, any wires or apparatus or the supports thereof maintained for the purpose of any public service; (vii) roads and thoroughfares including— (a) the improvement, alignment level, width, and construction of new roads and paths in the area, (b) the cleaning, watering, and lighting of roads and thoroughfares, . .

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Pradeshiya Sabhas. Act, No, 15 of 1987 69 (c) the use of, and regulation of traffic in roads and paths, including the limitation of the weight and speed of vehicles, and the prevention or restriction of the use of vehicles upon any bridge, road, or path, or in any place where such use may be attended with danger to the public, or may be likely to damage such bridge, road, or

- thoroughfare, (d) the regulation of processions and assemblies and of the performance of music on roads, or thoroughfares, (e) the prevention, abatement, supervision, and regulation of obstructions, encroachments, projections and other interference with roads and thoroughfares, (f) the erection of hoardings and other temporary structures or any decoration of any type, on or abutting any street and the charging of fees for any permits issued in that connection, the charging of fees for the use of hoardings erected by the Pradeshiya Sabha, (g) the protection of the public against dangers resulting from building and other operations in or about roads and thoroughfares, (h) the control of parking of motor vehicles within the Pradeshiya Sabha area, by providing parking places and collecting the prescribed fee for parking such motor vehicles in such places: provided that the provisions of this sub-paragraph shall not apply in respect of the motor vehicles of the Sri Lanka Transport Board; (viii) buildings, building operations, and works, including—
| (a) the definition of areas to which the by-laws under this heading are to apply,
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\ 70 Pradeshiya Sabhas Act, No. 15 of 1987 (b) the regulation of the material of new buildings with a view to securing stability,

- preventing fire, and safeguarding health, (c) the space to be left about any building or — block of buildings to facilitate and secure free circulation of air and to facilitate scavenging, (d) the dimensions of doors and windows, the level of the floor, the height of the roof, general ventilation, and drainage, (e) the levy of fees for the examination and consideration of plans for new buildings or for alterations to existing buildings, (f) the number and nature of latrines, (g) foundation and stability of structure, (h) the line of building frontage; (ix) public health and amenities, including— (a) drainage, (b)

conservancy and scavenging and the charging of fees therefor, (c) the inspection, regulation, maintenance, and cleaning of drains, privies, cesspits, ashpits and sanitary conveniences and appliances, (d) the regulation and management of public sanitary conveniences, (e) the regulation, supervision, inspection and control of lodging-house and tenement buildings, (f) the abatement of nuisances including the regulation and control of the operation of gramophones, loudspeakers, amplifiers and other instruments ~ automatically of mechanically producing or reproducing sound,

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Pradeshiya Sabhas Act, No. 15 of 1987 71 (g) the seizure, forfeiture removal and destruction of unwholesome articles of food or drink, and the prevention of the sale or exposure for sale thereof, (h) the regulation, supervision, inspection and control of bakeries, eating houses, hotels and restaurants and tea and_ coffee boutiques, (i) the regulation, supervision, inspection and control of dairies and the sale of mi'k, (j) the sale of provisions including the inspection, regulation and control of shops and places (other than markets) used for the sale of meat, poultry, fish, fruit, vegetables, or other perishable articles of food for human consumption, and the licensing of shops and places used for the sale of fresh meat, fresh fish, or live animals, (k) the regulation, supervision, inspection, and control of trades deemed to be offensive or dangerous by the Pradeshiya Sabha, (l) the regulation of the dimensions and use of kraals in public lakes, rivers, lagoons, and estuaries for soaking coir husks, and the charging of fees for the use of such kraals, (m) the regulation, supervision, inspection, control and licensing of breweries and aerated water manufactories, (n) the compelling of owners and occupiers within the limits of the Pradeshiya Sabha _to keep their lands free of undergrowth and rubbish, and their dwelling compounds in clean and sanitary condition, (o) the prevention of malaria and the destruction of mosquitoes and disease-bearing insects,

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12 Pradeshiya Sabhas Act, No. 15 of 1987 (p) the draining, cleansing, covering, or filling up of ponds, pools, open ditches, sewers, drains and places containing or used for the collection of any drainage, filth, water, matter, or thing of an offensive nature or likely to be prejudicial to health, (q) the cleansing, purifying, ventilating, and disinfecting of houses, dwellings, and places of assembly or worship by the owners or occupiers and persons having the care or control thereof, (r) the prevention or mitigation of epidemic, endemic or, contagious diseases, and the speedy interment of the dead during the prevalence of such disease, (s) washing and bathing, including the establishment, maintenance, and regulation of public bathing places and places for washing animals and clothes, (t) the regulation and control of industrial waste, (u) the preservation of public health and the suppression of nuisances; : (x) itinerant vendors, including— (a) the supervision or control of itinerant vendors, (b) the issue of licenses for the purpose of such supervision or control, and the conditions to be attached to such licenses, (c) the refusal of licenses in prescribed circumstances, (d) the regulation or prohibition of the sale of any 'specified article or the sale of articles in any specified place or area; (xi) animals, including— ~ (a) the housing 'and penning of cattle, horses, sheep, goats, and pigs, —

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Pradeshiya Sabhas Act, No. 15 of 1987 73 (b) stray cattle, goats, and pigs, including the fixing, levying, and recovery of charges for the occupation of pounds, and the cost of the keep of the animals impounded, (c) the control of epidemic diseases among animals, the maintenance and regulation of quarantine stations for animals, and the levying of fees for the occupation thereof, the provision of facilities for vaccination and immunization of livestock and dogs, (d) the regulation and control of the collection and sale of the dung of cattle, horses, sheep, and goats, and the removal of such dung from any place within the limits of any Pradeshiya Sabha to any place outside such limit, (e) the protection and preservation of game and wild birds, (f) the destruction of stray dogs, (g) the prevention of cruelty to animals (including the restriction of the exposure for sale of live animals in any manner which in the opinion of the Pradeshiya Sabha is likely to cause unnecessary pain or suffering), (h) the regulation and supervision of cattle sheds, galas, night paddocks for cattle and halting places and the control of the location thereof, (i) the regulation, supervision, inspection and control of slaughter houses and the levy and recovery of fees for the use thereof, (j) the disposal of the bodies of dead animals and | (k) the branding of animals; (xii) public or private markets and fairs, including— (a) their establishment, maintenance and improvement, 8 —S 084617 (86/12)

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14 Pradeshiya Sabhas Act, No. 15 of 1987 (b) their regulation, supervision, inspection, and ' control including the regulation of the prices of articles sold therein, (c) their conservancy and scavenging, and the prevention of nuisances in connection therewith, (d) the control of traffic, and the preservation of order within them and in their immediate vicinity, (e) the provision, inspection, and control of latrines, slaughter houses, water supply, and lighting on the premises of markets, (f) the allotment of stalls, stands, seats or spaces, (g) the inspection of food and _ seizure of unwholesome articles of food, (h) the prohibition of the introduction or sale of any article or articles of food in cases where, there exists good reason for such prohibition, (®) the absolute prohibition, or the restriction by means of special licences, of the sale of any articles, and the charging of fees for such special licences, (j) the provision of security against fires, (k) the temporary closing of any market or fair, (1) the due performance of their duties by market-keepers and other employees, (m) the fixing and recovery of fees or rents for the use of the premises of a public market or any part thereof, or of the buildings thereon, and for the leasing of the right to collect any such fees or rents, (n) the declaration of a market area for each public market, and the licensing, restriction, or prohibition of private markets or of the sale of market accommodation within such area in any place other than the public market,

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Pradeshiya Sabhas Act, No. 15 of 1987 5 (o) the licensing of private markets or fairs, the conditions of the licence, and the fees payable in respect thereof, (p) the standards to be observed in respect

of accommodation, drainage, roads, air spaces, equipment, and sanitary requirements, in private markets or fairs, (q) the renovation, alteration, enlargement, and improvement of existing buildings, and the erection of new buildings after notice to the Pradeshiya Sabha and in accordance with plans to be approved by the Pradeshiya Sabha, in or about the premises of private markets or fairs; (xiii) water supply and waterworks including— (a) the provision, regulation, protection and maintenance of communal wells, spouts, springs or other watering places for the supply of water for domestic purposes, (b) the regulation and maintenance of watering places of any kind set apart by the Pradeshiya Sabha for bathing or for the washing of animals, clothes and other articles, (c) the regulation of the construction and maintenance of private wells in such manner as may be necessary to safeguard the public health and safety, (d) the regulation, control, protection and maintenance of the supply of water from any waterworks established or maintained by the Pradeshiya Sabha, (e) the prevention of waste, misuse, undue consumption or contamination of the water supplied for public or private use, (f) the direction of the use and prescribing the size, nature, strength and materials and the mode of arrangement, position, alteration, removal, renewal and repair of the pipes,

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76 Pradeshiya Sabhas Act, No, 15 of 1987 valves, cocks, cisterns, soil pans, water closets and other apparatus and receptacles or any of them to be used, respectively, for carrying, delivering, regulating and storing water, (g) the regulation of the public supply of water by stand-pipes and the use of the same, (kh) the regulation of the supply of water by private services and the materials and fittings to be used, (i) the regulation of the supply of water by measurement and the materials, meters, appliances and fittings used for such purpose or in connection therewith, (j) the regulation of the terms and conditions subject to which water will be supplied for domestic purposes or for other than domestic purpose and the price to be paid for water so supplied, (k) the prescribing of the procedure for the recovery of moneys due for the supply of water, (lt) every other purpose relating to the supply or control of the supply of water supplied from the waterworks as to the Pradeshiya Sabha may appear necessary; (xiv) public services, including all matters necessary for their establishment, maintenance, working and supply, for the imposition and recovery of charges in connection therewith, and for their protection against damage and against competition; (xv) the measure of dimension of bread, and the regulation of its manufacture and quality; (xvi) the regulation of weights and measures; (xvii) the prevention of accidents connected with toddy drawing, for the periodical inspection of the ropes and other appliances used for that purpose;

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Pradeshiya Sabhas Act, No, 15 of 1987 77 (xviii) the prevention of accidents caused by the setting of spring guns and traps; (xix) the fencing of wells and pits; (xx) the prevention of gambling and cock fighting and of cart racing on public paths or roads; {xxi) the prevention of disorderly conduct, or loitering in public paths or roads or public places, and of the use of abusive language; (xxii) the prevention of the sale to boys under sixteen years of age or to females, of any description of spirits or other intoxicating liquor or toddy drawn from any species of palm or the

fermented juice of the sugar cane; (xxiii) the regulation, supervision, inspection and control of hairdressing saloons and barbers' shops; (xxiv) the regulation, supervision, inspection and control of billiard saloons; (xxv) the regulation, supervision, inspection and control of forges; (xxvi) the removal of obstructions to coastal fishing; (xxvii) welfare facilities for fishermen; (xxviii) the licensing of persons as brokers; (xxix) the licensing of persons carrying on the business of money lending; (xxx) the regulation and control of advertisements displayed or exhibited so as to be visible from any thoroughfare and the charging of fees in respect of advertisements so displayed or exhibited. 127. For the purpose of section 3 of the Cemeteries and Pradeshiya Burials Ordinance every Pradeshiya Sabha shall be the proper authority under that Ordinance within the limits of proper authority the Pradeshiya Sabha. under the Cemetery and Burials Ordinance. 128. Any land or building required for the purpose of Compulsory 8 Pradeshiya Sabha shall be deemed to be for a public purpose acquisition of lands and may be acquired under the Land Acquisition Act buildings. by the Government for such Pradeshiya Sabha. PART V FINANCE 129. (1) Every Pradeshiya Sabha shall for its general Pradeshiya Sabha financial purposes establish a Pradeshiya Sabha Fund. Fund. (2) There shall be payable into the Pradeshiya Sabha Fund— (a) the fines and penalties enumerated in the First Schedule

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78 Pradeshiya Sabhas Act, No. 15 of 1987 (b) the amount of all stamp duties enumerated in the Second Schedule; (c) subject to any special appropriation made by the Minister, all general or special grants allocated to the Pradeshiya Sabha by the Minister; (d) any special grant allocated to the Pradeshiya Sabha by the Minister, in order to ensure that the revenue available to the Sabha is equal to the proposed expenditure of the Sabha; (e) all rates, taxes, duties, fees and other charges levied under the authority of this Act or of any other written law; (f) all sums realized by sales, leases or other transactions of the Pradeshiya Sabha; (g) all revenue derived by the Pradeshiya Sabha from any property vested in the Pradeshiya Sabha or by the administration of any public service; (h) all sums derived from any source of revenue made over to any local authority to which the Pradeshiya Sabha is the successor in pursuance or in supposed pursuance of any repealed enactment; (i) all sums and all sources of revenue from time to time appropriated or made over by the Pradeshiya Sabha by Parliament whether by resolution or otherwise; (j) all sums borrowed by the Pradeshiya Sabha in the exercise of its powers under this Act; (k) all sums otherwise accruing to the Pradeshiya Sabha in the course of the exercise of its powers and duties. moneys by 130. All moneys received by a Pradeshiya Sabha and receive payable into the Pradeshiya Sabha Fund shall be lodged with the Pradeshiya Sabha with an approved bank, and shall be credited to an account to be entitled "the Pradeshiya Sabha Fund", lodged with the bank, In this section "approved bank" means a bank specified by the Minister by Order published in the Gazette as a bank in which the moneys of any Pradeshiya Sabha may be deposited. Power to 331. Any part of the Pradeshiya Sabha Fund may be invested by a Pradeshiya Sabha in any of the securities of the Pradeshiya Sabha specified in section 20 of the Trusts Ordinance. Sabha Fund.

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Pradeshiya Sabhas Act, No. 15 of 1987 79 132. There shall be paid out of the Pradeshiya Sabha

Applicat, Fund established by each Pradeshiya Sabha— (a) all expenses incurred by the Pradeshiya Sabha in the exercise of its powers and the performance and discharge of its duties and functions under this Act or any other enactment or any by-law or rule made thereunder; (b) all sums payable by the Pradeshiya Sabha in respect of any liability under the Workmen's Compensation Ordinance; (c) all sums payable by the Pradeshiya Sabha as premium for the insurance of any property belonging to or vested in each Pradeshiya Sabha, or for insurance against any liability that may be incurred by such Pradeshiya Sabha under the Workmen's Compensation Ordinance; (d) all sums which the Pradeshiya Sabha may decide to award by way of ex gratia payments to any persons or the dependants of any person (other than servants of the Pradeshiya Sabha) who receive injuries or sustain any other damage or are killed in circumstances which, being due to an accident or to a defect in any machinery, plant or equipment used by the Pradeshiya Sabha or to the unauthorized or unlawful interference of a third party, are only indirectly attributable to the exercise of any of the powers vested in the Pradeshiya Sabha or its officers or servants by or under this Act or any other written law; (e) all sums received by the Pradeshiya Sabha, which the Sabha is authorized or required by any written law to refund to the persons by whom they were paid; (f) all expenses incurred by the Pradeshiya Sabha for 'the purpose of any such charities or such measures for the relief of distress caused by rain, floods, fire, gales, earthquake, famine or epidemics as may be approved by the Minister; (g) all expenses incurred by the Pradeshiya Sabha in the maintenance of a fire brigade and the protection of life and property from fire; :

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80 Pradeshiya Sabhas Act, No. 15 of 1987 (h) all expenses incurred by the Pradeshiya Sabha in the establishment and maintenance of any form of public service which the Pradeshiya Sabha is authorized to establish, maintain or provide by or under this Act or any other written law; (i) all contributions voted by the Pradeshiya Sabha, subject to such limits as may be prescribed for the welfare of the servants of the Pradeshiya Sabha or for any fund or scheme constituted or established for the purpose of granting relief or assistance to officers or servants of the Pradeshiya Sabha in cases of sickness, indebtedness or distress; (j) such expenses not exceeding in the aggregate one thousand rupees in any year as may be incurred by the Pradeshiya Sabha, and such other expenses as may be incurred by the Pradeshiya Sabha with the prior sanction in writing of the Minister in connection with civic receptions or the celebration or observance of any events or occasions of public interest or any religious, charitable, cultural, health, recreational or educational purposes; (k) such contributions not exceeding in the aggregate one thousand rupees in any year as may be voted by the Pradeshiya Sabha, and such other contributions as may be voted by the Sabha with the prior sanction in writing of the Minister towards the cost of public entertainments or recreations or towards the support of any libraries or any educational, scientific, charitable or benevolent institutions; (l) all sums payable by the Pradeshiya Sabha in respect of subsistence and travelling allowances to the Chairman, Vice-Chairman, members, officers and servants of the Pradeshiya Sabha by way of reimbursement of expenses incurred by them in the performance of their duties; (m) all such contributions, as may be approved by the Minister, towards the cost of any association of local authorities for the promotion, organization of

- establishment of Local Government; (n) all sums voted by the Pradeshiya Sabha to meet the travelling expenses of members or officers of the Sabha attending any meeting or

nference of members or officers of local authorities for the consideration of matters relating to Local Government,

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Pradeshia Sabhas Act, No. 15 of 1987 81 (o) all expenses incurred by or on behalf of the Secretary of the Pradeshia Sabha in the exercise of any powers and the performance of any duty imposed upon him by this Act or any other written law; (p) all expenses incurred by the Pradeshia Sabha or by the Chairman or the Secretary or any other officer of the Pradeshia Sabha on behalf of the Pradeshia Sabha in the exercise of its powers and the discharge of its functions and duties under this Act or other written law or any by-law, rule or regulation, made thereunder; and (q) all sums which are required or authorized to be paid out of the Pradeshia Sabha Fund, by or under, this Act or any other written law. 133. All orders or cheques for the payment of moneys Orders, out of the Pradeshia Sabha Fund shall be signed by two cheques, &c., for payment officers specially authorized by the Pradeshia Sabha for out of the that purpose subject to the approval of the Assistant Commissioner of the Pradeshia Sabha Fund. The bank in which the Fund is established may pay all orders or cheques against the said Fund which are so signed. RATES AND TAXES 134. (1) Every Pradeshia Sabha may, subject to the Rates and acreage tax approval of the Minister, impose and levy a rate on the annual value of any immovable property or any species of immovable property situated in localities declared by the Pradeshia Sabha, with the approval of the Assistant Commissioner to be built up localities, (2) The Pradeshia Sabha may impose different rates for different built-up localities or parts thereof, having regard to the level of development of such localities or such parts, as the case may be. (3) The Pradeshia Sabha may, subject to the approval of the Minister, impose and levy an acreage tax not exceeding the rates set out below, on each hectare of land situated within the limits of any Pradeshia Sabha and which is under permanent or regular cultivation of any kind: Extent of Land Rate Where such extent is less than five Res. hectare>s but not less than one hectare 50 Per eae Or over a 10 per year for each

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82 Pradeshia Sabhas Act, No. 15 of 1987 Provided that the Pradeshia Sabha shall not impose an acreage tax on any divided portion of land duly declared and notified by Order published in the Gazette to be a special area except unless it is situated in an area declared by the Minister by Order published in the Gazette to be a special area for the purpose of the imposition and levy of that tax: Provided, further, that the Pradeshia Sabha shall not impose an acreage tax on any land which is situated in localities which are declared to be built-up localities for the imposition of a rate. (4) Where a building is used wholly or mainly for purposes connected with or incidental to the cultivation of the land on which it is situated, or for residential purposes by any person or persons engaged in the cultivation of that land, and an acreage tax is levied and paid on that land no rate shall be recovered on that building notwithstanding that it is situated within a built-up locality. (5) Where the Pradeshia Sabha in imposing any rate for any year under subsection (1) or an acreage tax under subsection (3) resolves to levy without alteration the same rate as was in force during the preceding year the approval of the Minister shall not be required for the imposition and levy of such

rate or acreage tax, (6) Such rate or acreage tax under this section shall be payable by such instalments and at such times as the Pradeshiya Sabha may direct. (7) Every Pradeshiya Sabha shall allow a discount of ten per centum of the amount of any annual rate or acreage tax if such rate or tax is paid on or before the thirty-first day of January of that year or where such rate or tax is payable in instalments, a Pradeshiya Sabha shall allow a discount of five per centum of the amount of the instalment of such rate or tax due if such amount is paid within the first one month of the period for which the instalment of such rate or tax is due. 135. There shall be exempt from any rate or acreage tax— (2) all lands or buildings wholly or mainly used for the purpose of public religious worship; (3) Pradeshiya Sabhas set apart as the dwelling of the incumbent of such place of public religious worship;

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Pradeshiya Sabhas Act, No. 15 of 1987 (3) all lands or buildings wholly or mainly used for cultural, social, religious or charitable purposes approved or recognized by a Government department and where such lands or buildings are owned by such institutions; (c) all lands or buildings wholly or mainly used by non-fee levying educational institutions or to which grants from State funds are paid or to which such grants were earlier paid but at present are not paid; (d) all burial and cremation grounds proclaimed or registered under the Cemeteries and Burial Grounds Ordinance; (e) all properties that are specially exempt by a resolution of the Pradeshiya Sabha on the ground of poverty of the owner, 136. All houses, buildings, lands and tenements within the limits of any Pradeshiya Sabha belonging to the State property, and leased or let by the State to any person, shall be liable to be assessed in respect of the rate or rates or acreage tax leviable under section 134 and every lessee or occupier of any such premises shall be liable to pay, and shall pay to the Pradeshiya Sabha, the rate or rates or acreage tax leviable in respect of the house, building, land or tenement held or occupied. 137. No property whatever of the State, whether movable property or immovable, shall be liable to be seized or sold for the recovery of any rate or rates, tax or taxes, which may be not liable to seizure due from any person holding, occupying, or enjoying any land or sale, house, building, land or tenement, the property of the State, under any agreement, contract, or permit, either express or implied, with or from the State. 38. (1) The Pradeshiya Sabha may from time to time Division or consolidation for the purpose of assessment, and whenever there is sufficient ground therefor divide any house, building, land or for assessment, tenement, and consolidate any separate houses, buildings, lands or tenements whatsoever within the limits of any Pradeshiya Sabha and assess, in respect of any rate or rates leviable under this Act, each such divided portion separately, and each such consolidated premises as a whole:

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§4 Pradeshiya Sabhas Act, No. 15 of 1987 Provided that in the case of any such consolidation the consolidated premises shall be assessed at the aggregate annual value of the several houses, buildings, lands or tenements of which such premises are composed, (2) The Pradeshiya Sabha shall cause a notice of such division or consolidation to be given to every occupier, whether he be

proprietor, joint proprietor, or tenant of each such house, building, land or tenement. (3) The assessed annual value of any premises so dealt with shall not, by reason of such division or consolidation be increased or reduced for the year in which the division or consolidation is made, Return for 139. (1) In order to enable a Pradeshiya Sabha to assess Purposes of valuation. the annual value of any house, building, land or tenement liable to be rated or the extent of any cultivated land for the purposes of the acreage tax, the Pradeshiya Sabha may require the owner and occupier of such house, building, land or tenement to furnish returns of the rent or annual value or extent thereof, and for like purpose it shall be lawful for any person authorized in that behalf by the Pradeshiya Sabha at any time between sunrise and sunset to enter and inspect and survey such house, building, land or tenement. (2) It shall be the duty of the owner of any immovable property in a built-up locality to notify in writing to the Pradeshiya Sabha, the completion of any new building or of any addition to any existing building, within fourteen days of such completion or addition. (3) Every person who— (a) fails or neglects to furnish the return herein specified within seven days from the day on which he is required to do so; or (b) knowingly makes a false or incorrect return; or (c) hinders, obstructs or prevents any person authorized as aforesaid from entering or inspecting or, if need be, surveying any such house, building, land or tenement; or (d) fails to comply with subsection (2), shall be guilty of an offence, and shall be liable on conviction to a fine not exceeding one thousand rupees.

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Pradeshiya Sabhas Act, No. 15 of 1987 85 140. (1) For the preparation of a new assessment, the Assessment of annual value of each house, building, land and tenement value of Within the limits of any Pradeshiya Sabha shall be assessed properties. by the Chief Valuer or any person or persons appointed by the Pradeshiya Sabha with the approval of the Assistant Commissioner. (2) For the purpose of ascertaining the extent of all cultivated lands for the purpose of the acreage tax, every Pradeshiya Sabha shall have power to appoint one or more persons to be assessors. (3) For the purpose of assessing or verifying the annual value or the extent of cultivated land, it shall be lawful for the Chief Valuer or any person or persons appointed by the Pradeshiya Sabha under subsection (1) or subsection (2) to enter at any time between sunrise and sunset any building or land and to do or cause to be done therein, all such acts as may be necessary to ascertain the annual value or the extent thereof. 141. (1) Upon the completion of an assessment list or Assessment list and acreage list, the Pradeshiya Sabha shall cause to be given acreage public notice thereof and the place where the assessment list, list or the acreage list may be inspected. (2) Any person shall be permitted free of charge, to inspect any portion of such assessment list or acreage list. (3) The Pradeshiya Sabha shall cause a notice of assessment of the annual value or verification of the extent to be served on, or left at, the premises of every occupier whether he be owner or tenant of the house, building, land or tenement assessed or cultivated land the extent of which was verified. The said notice shall be substantially in the form set out in the Third Schedule. Such notice shall further intimate that written objection to the assessment or verification will be received at the Pradeshiya Sabha office, within thirty days from the date of service of the notice. (4) The Pradeshiya Sabha shall cause to be kept a book to be called the “ Book of Objections” and cause every objection to an assessment or verification to be registered therein. The Pradeshiya Sabha shall cause to be given notice in writing to each objector and the owner or occupier of the house, building, land or tenement or cultivated land on the day on which and the place and the time at which the objections will be investigated.

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86 Pradeshiya Sabhas Act, No. 15 of 1987 (5) At the time and place so fixed the Pradeshiya Sabha shall cause to be investigated the objections in the presence of the objector, owner and occupier or their authorized agents who may be present. Such investigation may be adjourned from time to time for reasonable cause. (6) When any objection to an assessment or verification is disposed of, the Pradeshiya Sabha shall cause the decision thereon to be notified to the objector, owner and occupier and such decision shall be noted in the Book of Objections, and any necessary amendment shall be made in the assessment list or the acreage list, as the case may be. (7) Every assessment against which no objection is taken shall be final for the period for which such assessment list or acreage list, as the case may be, continues to be in force. Procedure 142. (1) Every person who is aggrieved by the decision in case of objection under section 141 with regard to the assessment of any house, to assessment, &c, building, land, or tenement or the verification of the extent of the cultivated land may, within thirty days of receiving the notification of the decision, institute an action objecting to such decision in the Magistrate's Court having jurisdiction in the place where such house, building, land, or tenement or such cultivated land is situated, if the amount of the rate or rates on the annual value of such house, building, land or tenement, or in the case of a consolidation, on the annual value of the houses, buildings, lands or tenements so consolidated, or the acreage tax on the verified extent does not exceed one thousand five hundred rupees, and in the District Court having such jurisdiction where such amount exceeds the sum of one thousand five hundred rupees. (2) Upon the trial of any action under this section, the plaintiff shall not be allowed to adduce evidence of any ground of objection which is not stated in his written objection to the assessment or verification. (3) Every such Court shall hear and determine such action according to the procedure prescribed, by the law for the time being in force, for hearing and determination of civil actions and the decision of such Court shall in all cases be subject to appeal to the Court of Appeal.

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Pradeshiya Sabhas Act, No. 15 of 1987 (4) Every such appeal shall be governed by the provisions of any written law regulating the making of appeals to the Court of Appeal, from any judgment, decree, or order of a Magistrate's Court or a District Court, as the case may be. (5) Neither the lodging of any objection against any assessment or verification nor the institution of such action or any appeal therein shall stay the levying of the whole or any part of such rate or rates or tax, and the excess, if any, collected shall be returned according to the decision on the objection or the decision of such Magistrate, Court or District Court if there be no appeal or of the Court of Appeal, in case of appeal. 143. (1) Where physical alterations affecting the annual Division of assessed value of any house, building, land or tenement or the extent thereof, of cultivated land are made after the assessment or verification has become final by virtue of the provisions to property preceding section, a Pradeshiya Sabha may, notwithstanding anything to the contrary contained in the preceding annual value, Sections, at any time prepare a new assessment or verification for such premises. (2) Every such new assessment or verification shall come into force from the first day of the month following that in which it is entered in the

assessment list or the acreage list, as the case may be: Provided always that such new assessment or verification shall, as far as possible, be made in the manner prescribed by the preceding sections and be subject to the objections, investigations, actions, and appeals referred to therein, 144, The Pradeshiya Sabha shall have power and Division of assessment authority at any time to revise any assessment or verification or verification, if it is satisfied that there are sufficient grounds thereof rates in certain for by increasing or decreasing the same as it may seem fit, cases. and to fix the date upon which the revised assessment or verification shall come into force. 145. (1) If any building other than a building containing Remission of rates furniture, is or remains untenanted, a proportionate remission of the rates payable in respect of such building may be non-tenancy, allowed for the period during which the building is or remains untenanted.

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88 Pradeshiya Sabhas Act, No. 15 of 1987 (2) If any building containing furniture and registered with the Pradeshiya Sabha as a building intended to be let as a furnished building is or remains untenanted, a proportionate remission of one-half of the rates payable in respect of such building may be allowed for the period during which such building is or remains untenanted. (3) The period for which a remission is allowed under subsections (1) and (2) shall in respect of any building, commence on the day on which the Pradeshiya Sabha receives a written notice of its being untenanted and terminate on the date on which it is re-occupied: Provided that, the said period shall terminate on a date one month prior to the said date of re-occupation if within three days of the re-occupation, notice thereof is not given to the Pradeshiya Sabha. Every notice under this subsection shall contain an address to which all communications arising therefrom may be posted. (4) When with reference to any claim for remission under this section a dispute arises regarding the period during which any building is or remains untenanted, a written notice of the decision of the Pradeshiya Sabha thereon shall be posted to the last of the addresses given under subsection (3); and such decision shall be final, unless written application for its revision is presented to the Pradeshiya Sabha within seven days from the date upon which such notice is posted and unless such decision is in consequence revised by the Pradeshiya Sabha. Adoption 146. (1) A Pradeshiya Sabha shall prepare a new assessment or verification only when directed generally or specially by the Minister. The Minister may direct the preparation, of a new assessment or verification in respect of all or any class or species of immovable property within the limits of any Pradeshiya Sabha having regard to the provision of new services or the improvement of existing services within the limits of such Pradeshiya Sabha area. Except when a new assessment or verification is carried out on the directions of the Minister, the Pradeshiya Sabha shall adopt the assessment or verification for the preceding year with such alterations as may, in particular cases, be deemed necessary, as the assessment or verification for the following year.

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Pradeshiya Sabhas Act, No. 15 of 1987 389 (2) The notice of assessment or verification shall be given in the prescribed manner. , 147. (1) A Pradeshiya Sabha may, impose and levy any Power of Pradeshiyas of the following taxes and licence duties within the limits of Sabhas to impose any

Pradeshiya Sabha area :— . taxes and licence duties. (a) a tax on vehicles and animals; (b) a duty in respect of licences issued by the Pradeshiya Sabha ; and (c) any other form of tax approved by the Minister and confirmed by resolution of Parliament. (2) Where the Pradeshiya Sabha, in imposing any tax under this section for any year resolves to levy without alteration the same tax as was in force during the preceding year, the approval of the Minister shall not be required for the imposition and levy of such tax. 148, (1) The tax on vehicles and animals which a Vehicles and Pradeshiya Sabha is authorized to impose by section 147 animals shall be an annual tax in respect of all the vehicles and animals specified in the Fourth Schedule and ordinarily used or to be used within the limits of any Pradeshiya Sabha at the rates specified in that Schedule. (2) The tax on vehicles and animals shall not be leviable or payable in respect of— (a) any vehicle or animal which is the property of the State or of the Pradeshiya Sabha ; or (b) vehicles kept for sale by bona fide dealers in such vehicles, and not used for any other purpose; or (c) vehicles subject to a licence duty under section 3 of the Vehicles Ordinance or to a tax under any enactment for the time being in force relating to motor vehicles. (3) The tax on vehicles and animals shall be payable annually in advance on such date as may be ordered by the Pradeshiya Sabha or prescribed by by-laws... ®—8 094617 (86/12)

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90 Pradeshiya Sabhas Act, No. 15 of 1987 ' (4) The tax on vehicles and animals shall be payable by each person in whose possession or custody or control any vehicle or animal liable to a tax may be found as soon as it has been for thirty days used or kept for use within the limits of the Pradeshiya Sabha area, but no person shall be liable under this section in respect of any vehicle or animal which has been in his possession for less than thirty days. (5) No person by reason of the transfer of ownership shall be liable to pay tax on any vehicle or animal on which the tax has already been paid for the year in which the ownership was transferred. (6) Where any vehicle or animal liable to any tax under this Act is used or intended to be used within the limits of more than one Pradeshiya Sabha, such vehicle or animal shall only be liable to one such tax in respect of the limits of the Pradeshiya Sabha within which it is principally used or intended to be used, and if any question arises as to the limits within which any vehicle or animal liable to any such tax is principally used or intended to be used, the question shall be determined by the Assistant Commissioner. (7) If any person liable to pay tax leviable under this section fails to pay such tax within seven days after demand, the Secretary of the Pradeshiya Sabha shall report the failure to the Magistrate's Court having jurisdiction over the area for which such Pradeshiya Sabha is constituted and the Court shall proceed to recover the amount due as if it were a fine imposed by Court, notwithstanding that such amount exceeds the amount of fine which a Magistrate may impose in the exercise of his ordinary jurisdiction and the amount so recovered shall be paid into the Pradeshiya Sabha Fund. 149. The licence duty a Pradeshiya Sabha is authorized to Power of Pradeshiya levy under section 147 in respect of any licence issued by Sabha to the Pradeshiya Sabha authorizing the use of any premises for certain licence or place for any of the purposes described in this Act or in duties. any by-law made thereunder shall be determined from time to time by the Pradeshiya Sabha according to the annual value of the premises so licensed, and where such licence authorizes the use of such premises for the purposes of any trade, having regard to— (a) the annual value of such premises; (b) the turnover of business of such trade;

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Pradeshia Sabhas Act, No. 15 of 1987 91 (c) the profit that is likely to be earned in such trade ; (d) the essential nature of the goods or services supplied “< in'the course of such trade: Provided that where the annual value of such premises falls within the limits of any item in Column I set out below, the maximum duty shall not exceed the sum set out in the corresponding entry in Column IT: Column I Column II Rs. Wher 'he annual value does not exceed Rs. 750 .. 500 Exceed: Ks. 750 but does not exceed Rs. 1,500 .. 750 Exceeds Rs. 1,500 es ..» 1,000 Provided further, that where any such premises are used for the purposes of a hotel, restaurant or lodging house. and such hvtel, restaurant or lodging house is registered with or approved or recognized by the Sri Lanka Tourist Board for the purposes of the Tourist Development Act, No, 14 of 1968, the duty so levied shall be according to the takings of the hotel, restaurant or lodging house for the year preceding the year in which the licence duty is levied, and shall not exceed one per centum of such takings. Where such hotel, restaurant or lodging house is in its first year of operation, the licence duty shall be determined and levied according to the annual value of such premises.” For the purposes of this section, “takings” in relation to a hotel, restaurant or lodging house means the total amount received or receivable from transactions entered into in respect of that hotel, restaurant or lodging house or for services performed in carrying on the hotel, restaurant or lodging house. 150. (1) A Pradeshia Sabha may by resolution impose Tax on and levy a tax on any trade carried on within the limits of certain trades. any Pradeshia Sabha. (2) The tax levied under subsection (1) shall be an annual tax determined by the Pradeshia Sabha according to the annual value of the premises on which that trade is carried on:) | ;

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92 Pradeshia Sabhas Act, No. 15 of 1987 . Provided that where the annual value of such premises falls within the limits of any item in Column I set out below, the tax levied shall not exceed the sum set out in the corresponding entry in Coulmn II: Column I Column I Rs. Whtre the annual value does not exceed Rs. 750 .. ' 500 Exceeds Rs. 750 but does not exceed Rs. 1,500 .. (750 Exceeds Rs. 1,500 1,000 Provided further, that such tax shall not be leviable or payable in respect of any trade for which a licence is necessary under the provisions of this Act or any by-law made thereunder. (3) The tax levied under subsection (1) shall be payable, on such date as may be determined by the Pradeshia Sabha or prescribed by by-law, by the person who carries on such trade. (4) If any person liable to pay the tax leviable under this section fails to pay such tax within seven days after demand, the Secretary of the Pradeshia Sabha shall report such failure to the Magistrate's Court having jurisdiction over the area for which such Sabha is constituted. The Court shall proceed to recover the amount due as if it were a fine imposed by Court, notwithstanding that such amount exceeds the amount of fine which a Magistrate may impose in the exercise of his ordinary jurisdiction, and the amount so recovered shall be paid into the Pradeshia Sabha Fund. Determina- 151. Where a Pradeshia Sabha resolves to impose and tion of duty or tax where levy a duty in respect of a licence under section 149, or a several trades are tax on a trade under section 150 and the trade carried on carried on, is one of many other trades carried on in the same premises, the Pradeshia Sabha shall determine such duty or tax op the basis of the apportioned annual value of the area of the premises occupied for the purposes of such trade. Tax on 152. (1) A Pradeshia Sabha may by resolution impose businesses and levy annually on every

person who, within the limits and profes- of such Pradeshiya Sabha, carries on any business for which sions, no licence is necessary under the provisions of this Act or any by-law made thereunder, or no tax is payable under

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Pradeshiya Sabhas Act, No. 15 of 1987 93 section 150 a tax according to the takings of the business for wie year preceding tne year in which such tax is payable, at such rates not exceeding the rates sct out below: Column I Column Lf Rs. Where the takings of the business for the year — (i) does not exceed Rs. 6,000 ee Nil (ii) exceeds Rs. 6,000 but does not exceed Rs. 12,000 Ss .. 00 (iii) exceeds Rs. 12,000 but does not exceed Rs. 18,750 sie ar 180 (iv) exceeds Rs. 18,750 but does not exceed Rs, 75,0u0 7 = 360 (v) exceeds Rs. 75,000 but does nut exceed Rs. 150,000 ie ee 1,200 (vi) exceeds Rs. 150,000 = .. 8,000 Provided however, that the preceding provisions of this section shall not apply to itinerant vendors who do _ not carry on business at fixed places or | Other public places, (2) A Pradeshiya Sabha may by resolution impose and levy annually on every person who, within the Pradeshiya Sabha area, practices any profession, a tax of an amount not exceeding an amount specified by the Minister by Tegulation as the maximum amount of tax which the Pradeshiya Sabha may so impose and levy. (3) The tax payable under subsection (1) or subsection (2) shall be payable on such date as may be specified by the Pradeshiya Sabha or prescribed by by-law. (4) If any person liable to pay any tax leviabie under this section fails to pay such tax within seven days after demand, the Secretary of the Pradeshiya Sabha shall report such failure to the Magistrate’s Court having jurisdiction over the area for which such Pradeshiya Sabha is constitu- ted. The Court shall proceed to recover the amount due as if it were a fine imposed by Court. notwithstanding that such amount exceeds the amount of fine which a Magistrate may impose in the exercise of his ordinary iurisdiction. and the amount so recovered by Court shall be paid into the Pradeshiya Sabha Fund.

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94 -Pradeshiya Sabhas Act, No. 15 of 1987 For the purposes of this section— (a) “business” includes any trade or the business of a -manufacturer or of any person taking cummuission or fees in respect of any transaction or services rendered or the business of an independent contrac- tor, but does not include the occupa.vion of selling articles, goods or materials at a private fair or the occupation of maintaining any educational estab- lishment or school to which grants from state funds are paid or to which such grants were earlier paid but at present are not paid; and (b) “taking” in relation to any business means the total amount received or receivable from transactions entered into in respect of that business or for service performed in carrying on that business, and includes — (i) in the case of a financier, money-lender or pawnbroker, the moneys given out by him as loans, the interest received or receivable by him on such loans, and the sums received by him as fees or other charges in respect of such loans; (ii) in the case of an auctioneer, and subject to the provisions of paragraph (iii) in the case of a broker or commission agent— (a) in respect of lands sold by him or in the sale of which he is instrumental, the commissions or fees received or receivable by him for any transactions effected or services performed by him in connection with

such sale; (b) in respect of any goods sold by him or in . the sale of which he is instrumental, the total amount paid or payable by the purchaser of such goods ; (iii) in the case of any broker (other than a share broker or a produce broker), or commission agent, who— (a) on behalf of any person not resident in _ Sri Lanka, sells or is instrumental in selling, any goods of that non-resident person : or

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Pradeshiya Sabhas Act, No, 15 of 1987 95 (b) acts on behalf of an exporter of any goods manufactured in Sri Lanka ; or (c) on behalf of any other person carrying on a business in Sri Lanka, is instrumental in selling in Sri Lanka any goods of that other person, being goods the total proceeds of the sale of which is included in the takings of the business of that other person, the commissions or fees received or receivable by such broker or commission agent in respect of any transactions effected, or services. performed by him in so selling, acting, or in being instrumental in so selling, and in the case of a share broker or a produce broker, the commissions or fees received or receivable by such broker or commission agent in respect of any transactions effected or services rendered by him ; and (iv) in the case of a person carrying on any educational establishment or school, the total amount, excluding profits from investment of the moneys of the educational establishment or school, received or receivable by him in carrying on such educational establishment or school, but does not include any amount received or receivable by the sale of capital assets, 153. (1) Where any land within the limits of a Tax on undeveloped Pradeshiya Sabha area is suitable for building purposes, or land. for the purposes of permanent or regular cultivation, or such land is capable of being developed for any such purpose at a cost which would in the opinion of the Pradeshiya Sabha, be reasonable, and where— (a) no building has been erected on such land; or (b) the extent of such land which is actually covered by buildings bears to the total. extent of such land, a proportion less than that prescribed by the Pradeshiya Sabha by resolution; or fc) such land has not been subject to regular or permanent cultivation,

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96 Pradeshiya Sabhas Act, No, 15 of 1987 the Pradeshiya Sabha shall levy annually on the owner of such land, a tax not exceeding two per centum ot the capital Sile Vaiue OL such and, (2) The provisions of sections 135 and 136 of this Act shail, with the necessary moditications, apply with respect to every assessment of the capital site value of land made under subsection (1). For the purposes of this section, “ capital site value” when used in reference to any land, means the probable price which would be paid for the land, exclusive of all buildings thereon, if the land were sold in the open market, free of all mortgages, leases, encumbrances or other charges. 154. (1) Where any land within the limits of a4 Tax on certain sales Pradeshiya Sabha is sold by public auction or otherwise, of land. by an auctioneer or broker or his servant or agent, the vendor or such auctioneer or broker or his servant or agent, shall pay to the Pradeshiya Sabha, from the proceeds of the sale of such land, a tax equivalent to one per centum of the amount of such proceeds. (2) If the tax payable under subsection (1) is not paid within fourteen days of demand, the Secretary of the Pradeshiya Sabha shall report such failure to the Magistrate's Court having jurisdiction over the area for which such Pradeshiya Sabha is constituted and the Court shall proceed to recover the

amount due as if it were a fine imposed by Court shall proceed to recover the amount due as if it were a fine imposed by Court, notwithstanding that such amount exceeds the amount of fine which a Magistrate may impose in the exercise of his ordinary jurisdiction and the amount so recovered by Court shall be paid into the Pradeshiya Sabha Fund, 155. No movable property found in or upon any house, Movable property building, land or tenement in respect of which any rate exempt from or rates under this Act may be imposed shall be seized by seizure in respect of the Pradeshiya Sabha for any arrears of such rate or rates rates, &c. beyond two quarters next preceding such seizure, unless such. movable property belongs to any person who was the Owner or joint owner of the said house, building, land or tenement at the time the arrears beyond such two quarters accrued and became due. or unless such movable property belongs to any person who has occupied such house build- ins. land or tenement at the time when the said last- mentioned arrears accrued and became due.

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Pradeshiya Sabhas Act, No. 15 of 1987 97 '456. The occupant of any house, building, land or Deduction of tenement not being the owner or joint owner thereof whose amounts paid from rent property has been seized as aforesaid or who to avoid such due. seizure, Or alter seizure, to avoid a sale of such property. has paid the amount of rate or rates due in respect of such house, building, land or tenement, and costs, may deduct the amount so paid by him from the rent due by him on account of the said house, building, land or tenement to the owner or owners thereof ; and the receipt by the Pradeshiya Sabha of the amount so paid shall be deemed an acquittance in full for the like amount of rent: i Provided that nothing herein contained shall affect any such deduction from the rent by any occupant, who by the terms of his lease or other agreement is himself bound and liable to pay such rate or rates. 157. No assessment, valuation or verification, and no Assessment, &c., not charge or payment of any rate or tax under the authority of impeached or affected this Act and no seizure and sale, shall be impeached or "by reason of mistake affected by reason of any mistake in the name of any person liable to pay the rate or tax, or in the description of any property or thing liable to the rate or tax, or any mistake in the amount of assessment or verification or the mode of Seizure and sale ; and no proceedings under this Act or any by-law made thereunder shall be set-aside for want of form by any Court of the provisions of this Act or of such by-law. 158. (1) If the amount of any rate payable under this Warrant for recovery Act or the amount of any tax imposed thereunder, is not of rates and taxes, paid into the Pradeshiya Sabha office within such time as the Pradeshiya Sabha may direct, a warrant signed by the Secretary shall be issued to some collector or other officer of the Pradeshiya Sabha named therein, directing him— (2) in the case of non-payment of any rate or acreage tax. to levy such rate or acreage tax and the cost of recovery by seizure and sale of all movable property of the owner of the premises on account of which such rate or acreage tax may be due and of all movable property to whomsoever the

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Pradeshiya Sabhas Act, No. 15 of 1987/ same may belong which may be found in or upon any such premises, and the movable property on account of which such rate or acreage tax may

be due; and (b) in the case of non-payment of any other tax, to levy such tax and the cost of recovery by seizure and Sale of the property on account of which such taxes may be due and of all and singular the movable or immovable property of the defaulter. (2) A Pradeshivye Sabha may, by resolution, waive the whole or any part of any rate or tax and any costs incurred for the purpose of recovering that rate or tax, if it appears to the Pradeshiya Sabha that the amount to be waived is insubstantial or irrecoverable or that it should be written off on the ground of the poverty of the person liable therefor; and in such case where any such resolution is passed, no warrant under subsection (1) shall be issued and any such warrant that may have been issued shall be recalled. 159. (1) If the amount due as rent for any premises let Warrant for recovery by the Pradeshiya Sabha is not paid into the Pradeshiya office of rent and Sabha within fourteen days after such amount becomes due, it shall be the duty of the Secretary by warrant Pradeshiya Sabha, signed by him to authorize an officer of the Pradeshiya Sabha named therein, and his assistants to levy such amount and the costs of recovery by the seizure and sale of all movable and immovable property situated within its limits and belonging to the tenant, and by the seizure and sale of all movable property to whomsoever the same may belong which may be found in or upon the premises for which rent is due. (2) If the amount due as fees for the removal of any refuse from premises where a trade is carried on is not paid into the Pradeshiya Sabha office within fourteen days after demand, the Secretary may, by warrant, authorize an officer of the Pradeshiya Sabha named therein and his assistants to levy such amount and the cost of recovery by the seizure and sale of movable and immovable property situated within its limits and belonging to the defaulter.

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*.. Pradeshiya Sabhas Act, No. 15 of 1987 99 160. No property of any class or description set out Restrictions hereunder shall be seized or sold in execution of any as to Warrant issued under this Act— seizure of property. (a) the necessary wearing apparel, beds and bedding and cooking utensils of the person whose property is to be seized or of his wife and children; (b) the tools, utensils and implements of trade or business of such person and where such person is an agriculturist, the implements of husbandry and such cattle and seed grain as may be reasonably necessary to enable him to earn his livelihood as such; and (c) professional instruments and library books necessary for the carrying on of the profession or business of such person to the value of five hundred rupees. 161. The amount of the cost of recovery authorized to be Scale of costs, levied under any warrant issued under this Part, shall be determined in accordance with the following provisions:— (a) a charge of— (i) ten per centum on the amount of the tax or rent due; (ii) fifteen per centum on the amount of rate due on bare lands and residential premises; and (iii) twenty per centum on the amount of rate due on properties other than bare lands and residential premises, shall be made in respect of the cost of issue of the warrant; (b) a charge of ten per centum of the amount of the rate, tax, rent or fee to be levied under the warrant may be made in any case, where goods are removed after seizure under the warrant and a further charge not exceeding twenty-five cents per day shall be made for keeping such goods in safe custody during detention but so however, that no such charge shall be made in respect of detention for more than one month; (c) in the case of the seizure of immovable property or where goods seized are not removed after seizure, a charge not exceeding three rupees per day shall be made for keeping a person in possession of the property or goods;

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100 Pradeshiya Sabhas Act, No. 15 of 1987 (d) a charge of ten per centum of the amount of the rate, tax, rent or fee to be levied under the warrant may be made in any case where the property seized is advertised for sale but no sale takes place due to the rates, taxes, rents or fees and costs due being paid before the sale ; (e) in case of seizure of immovable property a charge of ten per centum of the amount of the rate, tax, rent or fee to be levied under the warrant may be made in respect of the cost of issue of notice of seizure ; and (f) where a sale takes place a charge not exceeding two and a half per centum of the proceeds of sale shall be made in respect of the cost of sale. Seizure 162. (1) Subject of the provisions of sections 160 and 161 property, it shall be the duty of the collector or other officer to whom the warrant is issued under this Part for the seizure and sale of any property, to effect any such seizure as far as possible in accordance with the provisions of this section. (2) Such movable property wherever situated of the owner as can be found and as may, in the opinion of the collector or other officer, be sufficient to defray the amount leviable, shall be seized and sold before any property is seized in execution of the warrant. (3) Where no movable property of the owner is found or where the amount realized by sale of movable property seized under subsection (2) is insufficient to defray the amount leviable, such movable property as can be found in or upon the property to which the warrant relates shall be seized and sold. (t) Where no movable property has been seized and sold under the preceding provisions of this section or where the proceeds of sale of any movable property so seized is insufficient to defray the amount leviable, the collector or other officer shall seize and sell the rents and profits from the property to which the warrant relates, for a period sufficient in the opinion of such collector or other officer to defray the amount recoverable.

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Pradeshiya Sabhas Act, No. 15 of 1987 101 (5) Where no such rents and profits are found or where the amount realized by the sale of movable property under subsection (2) or subsection (3) or rents and profits under Subsection (4) is insufficient to defray the amount leviable, the collector or other officer, in accordance with such direction as the Secretary shall issue in that behalf shall seize the immovable property to which the warrant relates. (6) Upon the seizure of such immovable property such Secretary shall cause notice of seizure to be served on, or left at the premises of the occupier of the property whether he is the owner or tenant of the property seized. The said notice shall intimate that the property seized shall be vested in the Pradeshiya Sabha on a date to be specified in the notice, if the rates and costs due thereon are not paid before such date. The date to be specified shall be a date after the expiry of a period of twenty-eight days from the date of seizure but not later than forty-two days from the date of such seizure. (7) The Secretary shall cause a notice to be published in the Gazette and in a newspaper circulating in the area setting out the immovable properties seized under subsection (5), of the dates specified in the notice under subsection (6) on which such property shall be vested in the Pradeshiya Sabha, if all the rates, taxes, rents or fees, as the case may be, and costs due thereof are not paid before such date. This notice shall be published at least twenty-four days before the specified date referred to in subsection (6). (8) No collector or other officer shall be liable in damage by reason of his failure to carry out

any seizure and sale in accordance with the provisions of this section, unless the person who claims such damages proves to the satisfaction of the Court that at the time when that person's immovable property was being seized he or some other person on his behalf pointed out to the collector or officer free and unclaimed property which would have been sufficient to defray that amount leviable and which should lawfully have been seized in the first instance as hereinbefore provided, and that the collector or officer failed to seize the property so pointed,

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102 Pradeshiya Sabhas Act, No. 15 of 1987 (9) No seizure of any immovable property under sub-section (5) shall be deemed to be invalid or be impeached or affected by reason that the order in which property must be seized had not been followed or movable property that could be seized and sold had not been seized and sold, unless the person who makes such application had made written declaration to the collector or officer and the Secretary of the Pradeshiya Sabha setting out free and unclaimed property which would have been sufficient to defray the amount leviable and which could lawfully have been seized in the first instance as hereinbefore provided, and that the collector or officer or such Secretary failed to seize the property as declared. Sale of 163. (1) The movable property seized in execution of movable any warrant issued under this Part, shall be sold by public property. auction in accordance with the provisions of this section by the collector or officer to whom the warrant was issued or by some other person authorized in that behalf by the Secretary. (2) No property which in the opinion of the collector or officer seizing such property exceeds rupees one thousand in value shall be sold under this section— (a) except after the expiry of a period of twenty-four days from the date of such seizure; and (b) unless notice of the date time and place fixed for the sale has, not less than eleven days before the date so fixed, been published in the Gazette and a news- paper circulating in Sri Lanka. (3) The Secretary of the Pradeshiya Sabha shall cause any movable property seized in execution of any warrant to be sold within a period of sixty days from the date of such seizure. (4) No property seized in execution of any warrant shall be sold under this section if at or before the time fixed for the sale of such property payment of the amount and of the Costs recoverable under the warrant is duly made to the Secretary. ciate

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- Pradeshiya Sabhas Act, No. 15 of 1987 103 164, Where any movable property seized in execution Buyrplus of of a warrant is sold under this Part, the Secretary of the Pradeshiya Sabha shall, after deducting from the proceeds of sale the amount, and cost leviable under the warrant, on application made by the owner of the property or joint owners, pay the surplus, if any, to the owner or owners as the case may be: Provided, however, that where no such application is made before the expiry of one year from the date of the sale of any movable property, the amount of such surplus shall be credited to the Pradeshiya Sabha Fund and no person shall thereafter be entitled to demand or receive such amount.
1. The person to whom any warrant under this Part Power to break open is addressed may break open in the day time any house or houses. building for the purpose of seizing property in pursuance of such warrant.

2. (1) In every case where no movable property of Default in the payment and description other than property referred to in section of rate or 160 can be found or where the collector or other officer to tax, whom the warrant is issued, reports that it is impracticable to seize movable property, the Secretary shall serve a written notice in the form set out in the Fifth Schedule hereto on the person who had made default in the payment of the rate or tax, calling upon him to pay such rate or tax along with the warrant cost within a period of thirty days from the date of service of the notice and informing him that in the event of any default in the payment of the rate or tax and costs within that period, steps will be taken for the seizure and sale of the building or land in respect of which the rate or tax is due. (2) In default of compliance by any person with any notice served on him under subsection (1) within the time specified in such notice, the Secretary shall certify the aggregate amount due from that person to the Magistrate's Court where the amount of rate or tax does not exceed rupees one thousand five hundred, and to the District Court where the rate or tax due exceeds one thousand five hundred rupees within whose jurisdiction the property lies and upon such application being made, and the Court shall issue to the fiscal a writ for the recovery of such amount of rates or taxes and costs by the seizure and sale of such immovable property.
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104 Pradeshiya Sabhas Act, No, 15 of 1987 (3) The provisions of the Civil Procedure Code relating to the seizure and sale of property by the fiscal in execution of a writ issued by Court shall apply to the seizure and sale of immovable property for the recovery of the sum certified by the Secretary. (4) For the purpose of the application of such provisions, the sum so specified shall be deemed to be due on a decree entered by the Court and the Secretary shall be deemed to be the judgment-creditor and the person liable to pay such sum shall be deemed to be the judgment-debtor. (5) Every sum paid or recovered under this section shall be credited to the Pradeshiya Sabha Fund. Closure 167. (1) Where a person convicted by any Court for the offence of using any premises for any trade or business Magistrate, without a licence issued in that behalf under this Act or under any by-law made thereunder, continues to use such premises without a licence for such trade or business, whether by himself or by any other person on his behalf, @ Magistrate may, upon an application for a closure order made by the Chairman or Secretary of the Pradeshiya Sabha or any officer authorized in that behalf by such Chairman or Secretary, as the case may be, order the closure of such trade or business at such premises, until such time such person obtains a licence from the Pradeshiya Sabha. (2) In any proceedings under subsection (1), a certificate issued by the Chairman, or Secretary of the Pradeshiya Sabha or any officer authorized in that behalf by such Chairman or Secretary, as the case may be, setting out that the person mentioned in the certificate, continues to use such premises without obtaining a licence for any trade or business, shall be prima facie evidence of the matters stated therein. _ (°) In any case where such person fails to comply with the closure order issued under subsection (1), the Magistrate shall forthwith order the Fiscal of the Court requiring and authorizing such fiscal before a date specified in such order not being a date earlier than three or later than seven clear days from the date of issue of such order,

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Pradeshia Sabhas Act, No. 15 of 1987 105 to close any trade or business at such premises. Such order shall be sufficient authority for the said fiscal or any police officer authorized by him in that behalf, to enter the premises with such assistants as the fiscal or such officer shall deem necessary to close any trade or business at such premises, PART VI SUPERVISION and CONTROL or PrRapeSHtVYA SasHAS 168. (1) The Chairman of every Pradeshia Sabha shall each year on or before such date and in such form as may be specified by rules, prepare and submit to the Pradeshia Sabha, a budget for the next succeeding year, and containing an estimate of the available income and details of the proposed expenditure for the ensuing year. (2) Every Pradeshia Sabha shall finally consider and adopt the budget together with the amendments, if any, before the commencement of the year to which such budget relates, (3) The Chairman of the Pradeshia Sabha may at any time prepare a supplementary budget and lay it before the Pradeshia Sabha. (4) The Pradeshia Sabha may pass, modify or reject all or any of the items in any budget or supplementary budget or add any item thereto. 169. If the Pradeshia Sabha modifies or rejects all or Charmaurs any of the items in any budget or supplementary budget or powers with. yegara bo adds any item thereto, and the Chairman does not agree' ous33, with any such decision of the Pradeshia Sabha, he shall re-submit the budget or supplementary budget to the Pradeshia Sabha for further consideration. Where & budget or supplementary budget is not passed by the Pradeshia Sabha within two weeks after it is re-submitted, such budget or supplementary budget shall, notwithstanding that it has not been passed by the Pradeshia Sabha, be deemed to be the duly adopted budget or supplementary budget of that Pradeshia Sabha, 170. The Chairman may, in case of necessity during the Variation a . course of any year, reduce or increase the expenditure under expenditures : any head, or transfer the moneys appropriated under one D in badeas head to any other head, in the budget or in any Supplementary budget adopted for that year, but 30 how- ever, that the total amount or expenditure sanctioned by such budget is not exceeded. a, at t0—€ 004617 (86 /19)

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166 Pradeshia Sabhas Act, No. 15 of 1987 Rules as to 171. The administration by a Praaeshiya Sabha of administration of Fund and the Pradeshia Sabha Fund and of the property ve-ted in, property, or used or occupied by, the Pradeshia Sabha, shall be further subject to such rules of procedure as may be made under this section for prescribing— {a) the form in which estimates and budgets shall be prepared; (6) the period within which, and the manner in which, the approval of the Minister or of the Assistant Commissioner shall be obtained in any matter connected with a budget, which requires such approval ; {c) the steps to be taken in any matter connected with a budget in the event of its being disapproved by the Minister or the Assistant Commissioner; (d) the form in which books of accounts shall be prepared and kept by a Pradeshia Sabha ; ' (e) the form of the periodical statements of accounts which shall be prepared by a Pradeshia Sabha; (f) the manner in which, the intervals at which, and the persons by whom, the books, accounts, documents and other records of a Pradeshia Sabha, the work of construction, maintenance or repair undertaken or executed by a Pradeshia Sabha, and the lands and buildings vested in or used or occupied by @& Pradeshia Sabha shall be inspected ; and (g) the mode of giving notice within the limits of a Pra- deshiva Sabha of the financial proposals of a Pra- deshiva Sabha, and of publishing the periodical statements of accounts. 172. (1) Article 154 of the Constitution shall apply to the audit of

the accounts of every Pradeshiya Sabha. (2) Every Pradeshiya Sabha shall pay to the Government, as a contribution towards the cost of such audit, a fee according to such rates as may from time to time be determined by the Minister in charge of the subject of Finance. .

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Pradeshiya Sabhas Act, No. 15 of 1987 107 (3) In auditing the accounts of a Pradeshiya Sabha under _ this section, the Auditor-General shall disallow every item of the accounts which is contrary to law, and surcharge the same on the person making or authorizing the making of the illegal payment, and shall charge against any person the amount of any deficiency or loss incurred by the negligence or misconduct of that person and any sum which ought to have been, but is not. brought into account by that person and shall in each case certify the amount due from such person and communicate his decision in writing to such person through the Commissioner of Local Government. The communication shall be transmitted by the Commissioner of Local Government to such person by registered post, and if so transmitted shall be deemed to be received by such person at the time when the letter containing the decision would be delivered in the ordinary course of post, and in proving that such letter was posted it shall be sufficient to prove that such letter was properly addressed and put into the post: Provide: that no expenses incurred by a Pradeshiya Sabha shall be disallowed by the Auditor-General if such expenses have been sanctioned by the Minister. (4) Where any item of the accounts of a Pradeshiya Sabha relating to any expenditure authorized by a resolution of that Pradeshiya Sabha is disallowed by the Auditor-General as being contrary to law under subsection (3) of this section, the Chairman of that Pradeshiya Sabha and every other member of that Pradeshiya Sabha who voted in favour of such resolution, shall each be deemed to be a person who made or authorized the making of the payment for the purpose of that subsection. (5) Before making any surcharge or disallowance against . 8Nnv person, the Auditor-General shall afford an opportunity to such person to be heard or to make any representation with regard to the matter which he may think fit, and shall, in the event of his making such surcharge or disallowance, furnish such person in writing, on application being made

- to him for that purpose. with the reasons for his decision in respect of such surcharge or disallowance.
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108 Pradeshiya Sabhas Act, No. 15 of 1987 (6) (a) Any person aggrieved by any surcharge or disallowance may appeal therefrom to the Court of Appeal, and the Court of Appeal may either confirm such surcharge or disallowance if it is opinion that surcharge is not in accordance with the law, or modify or set aside such surcharge or disallowance. (b) Every appeal under paragraph (a) shall be presented, prosecuted, and enforced within the time and in the manner and subject to the rules prescribed for and observed in appeal from interlocutory orders of District Courts, (7) (a) In lieu of an appeal under subsection (8), any person aggrieved by any surcharge or disallowance may within thirty days of the date on which the decision of the Auditor-General is communicated to him, appeal against such decision to the Secretary to the Ministry of the Minister and it shall be lawful for such Secretary, upon any such appeal, to decide the question at issue according to

the merits of the case. (6) The Secretary to the Ministry of the Minister may by order direct the recovery from the person making such appeal, the whole or any portion of the amount charged or disallowed, if he thinks that there are grants therefor, and if he finds that any surcharge or disallowance has been lawfully made but that the subject matter thereof was incurred under such circumstances as to make it fair and equitable that the surcharge or disallowance shall be remitted, he may by order direct that the same shall be remitted, but that the amount of costs and expenses which may have been incurred by the Auditor-General in the enforcing of such surcharge or disallowance or such portion of it as may be determined by the Secretary, shall be recovered from such person. (8) Every sum certified to be due from any person by the Auditor-General as aforesaid, shall be paid by such person to the Commissioner of Local Government within fourteen days after the decision of the Auditor-General has been communicated to such person unless there is an appeal against the decision; and if such sum is not so paid and there is no such appeal, it shall be the duty of the Commissioner of Local Government to recover the sum due from such person in the manner specified in subsection (9) or subsection (10).

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Pradeshia Sabhas Act, No. 15 of 1987 (9) If any sum referred to in subsection (8) is not paid within the time limit allowed therefor by that subsection to the Commissioner of Local Government by the person from whom it is due, such Commissioner may make an application to the District Court within whose jurisdiction such person resides, for the recovery of such sum by seizure and sale of the immovable property of such person and upon such application being made, the Court shall issue to the fiscal a writ for the recovery of such sum by the seizure and sale of such immovable property. The provisions of the Civil Procedure Code relating to the seizure and sale of immovable property by the fiscal in execution of a writ issued by a Court and to the making and adjudication of claims in respect of immovable property seized by the fiscal shall apply to the seizure and sale of immovable property for the recovery of the sums specified in the Commissioner's application and to the making and adjudication of claims in respect of immovable property seized for the recovery of such sum. For the purpose of the application of such provisions, the sum so specified shall be deemed to be due on a decree entered by the Court and such Commissioner shall be deemed to be the judgment-creditor and the person liable to pay such sum shall be deemed to be the judgment-debtor. (10) Where the Commissioner of Local Government is of the opinion in any case that recovery from any person of any sum referred to in subsection (8) by seizure and sale of such person's immovable property is impracticable or inexpedient, or where the full amount of such sum has not been so recovered, such Commissioner may issue a certificate containing particulars of the amount due from such person and the name and last known place of business or residence to such person to a Magistrate having jurisdiction in the place in which such person resides. The Magistrate shall thereupon summon such person before him to show cause why proceedings for the recovery of the amount due should not be taken against such person and if no sufficient cause is shown by such person, the amount due shall be deemed to be a fine imposed by a sentence of the Magistrate on such defaulter for an offence punishable with a fine only or not punishable with imprisonment, and may be recovered accordingly. .

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110 Pradeshiya Sabhas Act, No. 15 of 1987 (11) Any amount directed to be recovered from any such person by any order made by the Secretary to the Ministry of the Minister under this section may, forthwith be recovered by the Commissioner of Local Government in the same manner as any sum certified by the Auditor-General is recoverable under the provisions of this section. (12) The correctness or validity of any certificate or surcharge or disallowance made by the Auditor-General under subsection (3) or an order made by the Secretary of the Ministry of the Minister under subsection (7) or the certificate given by the Commissioner of Local Government under subsection (10) of this section shall not be called in question in any District Court or Magistrate's Court in any proceedings for the recovery of any sum due under this section. (13) Every sum paid or recovered under this section other than any sum paid or recovered as costs and expenses incurred in the enforcement of any surcharge or disallowance, shall be credited to the Pradeshiya Sabha Fund of the Pradeshiya Sabha, Contracts ' 173. Any contract for the execution or performance of or for the execution any work or service or for the supply of any articles or of work to be materials or for any other matter necessary for the purpose of this Act which involves an estimated expenditure exceeding revenue exceeding the limits as may be prescribed by prescribed Limits, regulations or which will or is expected to endure for more than one year, shall be reduced to writing and signed by the Chairman and the Secretary of the Pradeshiya Sabha on behalf of the Pradeshiya Sabha and sealed with the common seal of the Pradeshiya Sabha and in addition to such other matters as may be deemed necessary for inclusion: in any such contract, shall specify— (i) the work or services to be executed or performed or the articles or materials to be supplied; (ii) the price or rate to be paid for the work, service articles or materials ; (iii) the time or times within which the work or services is to be completed or the articles or materials are to be supplied; (iv) any penalty or penalties to be imposed in case of breach, |

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Pradeshiya Sabhas Act, No. 15 of 1987 112 174. Before any contract as is referred to in section 178 Procedure for entering is entered into— into contracts referred (i) the Secretary shall, if the Pradeshiya Sabha so directs, take sufficient security for the due performance of the contract ; (ii) the Secretary or the Chairman shall call for tenders or quotations in the prescribed manner ; (iii) the invitation to tender and the tenders or quotations if any or copies thereof shall be laid before the Sabha which shall either accept one of such tenders or quotations or reject all of them and where a tender or a quotation other than the lowest, where it relates to expenditure, and the highest where it relates to revenue, is accepted, the resolution shall give satisfactory reasons for not accepting the lowest or the highest, as the case may be ; and (iv) the contract shall be sanctioned by the Pradeshiya Sabha after satisfying itself that: the necessary funds have been provided for the same in a sanctioned budget or supplementary budget: Provided that it shall not be necessary for the Secretary of the Pradeshiya Sabha or the Chairman to call for tenders or quotations where the work or service or the supply of any article or material or any other matter necessary for the purpose of this Act, is to be carried out by the Government Department, Public Corporation or a Co-operative Society. . . . 175. (1) For the purpose of resolving any doubts as to the legality of any item of expenditure authorized by a local authority

by a resolution of a Pradeshiya Sabha, the Chairman of the Pradeshiya Sabha may refer the matter for decision, through the Assistant Commissioner to the Commissioner of Local Government. The Commissioner shall communicate his decision on any such reference through the Assistant Commissioner to the Chairman. (2) Where the Commissioner of Local Government has, on any reference made to him under subsection (1), confirmed the legality of any item of expenditure authorized by a resolution of a Pradeshiya Sabha, the Chairman of the

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Pradeshiya Sabhas Act, No. 15 of 1987 Council and every other member thereof shall not, notwithstanding anything to the contrary in section 172, be liable to a surcharge by the Auditor-Generaj under that section in respect of any payment relating to that item of expenditure. 176. (1) A Pradeshiya Sabha may, with the approval of the Minister given after consultation with the Minister in charge of the subject of Finance, grant, out of the Pradeshiya Sabha Fund of that Pradeshiya Sabha to any person— (a) who retires or has retired from service as an officer or servant of that Pradeshiya Sabha, or (b) who is or was transferred from such service to, and retires or has retired from, the service of the Government, a person, gratuity, or retiring allowance in respect of any period of his service as such officer or servant for which no pension, gratuity or retiring allowance, or no adequate pension, gratuity, or retiring allowance is payable under any by-laws or rules of the Pradeshiya Sabha or under any pension scheme established under the Local Government Service Law, No. 16 of 1974 (2) Where no pension, annuity, or gratuity, or no adequate pension, annuity, or gratuity is payable to the widow, children, next of kin or dependants of any deceased officer or servant of a Pradeshiya Sabha under any by-laws or rules of that Pradeshiya Sabha or under any scheme of fund established under the Local Government Service Law, No. 16 of 1974, that Pradeshiya Sabha may, with the approval of the Minister given after consultation with the Minister in charge of the subject of Finance, grant to such widow, children, next of kin or dependents a pension, an annuity or a gratuity out of the Pradeshiya Sabha Fund of the Sabha. (3) Nothing in subsection (1) or subsection (2) of this section shall be construed to confer on any person a right to any pension, annuity, gratuity or retiring allowance “under either of those subsections.

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Pradeshiya Sabhas Act, No. 15 of 1987 113 “497. (1) A Pradeshiya Sabha may, with the approval of Power to establish the Minister given with the concurrence of the Minister in charge of the subject of Finance, make by-laws providing scheme for the establishment of, and may establish in accordance with such by-laws, a scheme for the payment of gratuities to temporary officers and servants of that Pradeshiya Sabha upon their discontinuance from the service of that Pradeshiya Sabha. (2) The by-laws made under subsection (1) may be applicable to temporary officers and servants of that Pradeshiya Sabha who have been discontinued from the service of that Pradeshiya Sabha before coming into operation of the by-laws. LOANS 178. (1) It shall be lawful for a Pradeshiya Sabha Power? Pradeshiya subject to the approval of the Minister, to borrow from the Sabha to Sri Lanka Government, or any person or persons or body borrow on the security? of

persons, whether incorporated or not, such sum or sums of rates of money as may be necessary for any of the purpose of the and taxes. Pradeshiya Sabha : Provided that the approval of the Minister shall not be necessary for borrowing any such sum if the amount outstanding in respect of all loans already raised by such Pradeshiya Sabha does not exceed the total income received by such Pradeshiya Sabha during the three years immediately preceding the year in which that sum is to be borrowed. — (2) Every loan raised by a Pradeshiya Sabha shall be subject to such rate of interest and to such conditions for the payment thereof as may, where that loan is raised with the approval of the Minister, be approved by the Minister, and in any other case, be determined by the Pradeshiya Sabha. (3) For the purpose of securing the payment of the sum or sums borrowed by a Pradeshiya Sabha and the interest accruing thereon, the Pradeshiya Sabha may mortgage and assign to the lender or lenders, by or on whose behalf such sum or sums or any part thereof may be lent, the proceeds of any rate or tax levied or imposed under this Act or any portion thereof, or any property belonging to the Pradeshiya Sabha or any other source of income accruing to the Pradeshiya Sabha or any portion thereof. ~

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114 Pradeshiya Sabhas Act, No. 15 of 1987 Limitation 173. (1) The amount at any time outstanding in respect of borrowing powers of all loans due from Pradeshiya Sabha (whether raised under the authority of this Act or any other written law) shall not exceed in the aggregate ten times the fair average annual income received by the Pradeshiya Sabha from all rates and taxes, properties and other sources of income for the preceding five years, or in the case of a Pradeshiya Sabha which has not been in existence for five years, ten times its income for one year as appraised by the Pradeshiya Sabha subject to the approval of the Minister. (2) All securities given in respect of loans under this Part shall be free of stamp duty. Form 188. The form and manner of execution of any security given for the purpose of any loan under this Part, the mode and order of repayment of any sums borrowed and the arrangements for the liquidation of any loan, shall, subject to the provisions of the Local Loans and Development Ordinance be such as may be prescribed by the laws made under this Act, and, in the absence of any such by-laws, shall be in accordance with the provisions of the Municipal Councils Ordinance, and the said provisions, with the necessary modifications, shall in such circumstances apply to any loan made to any Pradeshiya Sabha under this Act. When Chair. 181. If the Pradeshiya Sabha fails to sanction the Chairman may exercise raising of loans for the purpose of fulfilling any duty imposed on the Pradeshiya Sabha for carrying out any work. Pradeshiya Sabha which the Chairman considers to be necessary, the Chairman relating to raising of money may, with the approval of the Commissioner, raise loans, such loans and may exercise all the powers vested in the Pradeshiya Sabha under the provisions of section 178 as though such powers were conferred by that section on the Chairman, Waiver of 182. A Pradeshiya Sabha may by resolution, waive the sums due to whole or any part of any sum of money due to the Pradeshiya Sabha, Pradeshiya Sabha from any person on the ground that the amount to be waived is inconsiderable or irrecoverable or on the ground of the poverty of such person. A resolution relating to the waiver of an amount exceeding fifty rupees, shall be subject to the approval of the Minister.

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Pradesiviya Sabhas Act, No, 15 of 1987 1—an PART Vii SUPPLEMENTARY Prov.SIONS RELATING TO PRADESHIYA SABHA 183. All costs, charges and expenses arising from or in Payment of respect of any suit, action, or legal proceeding, which a costs awarded against Pradeshiya Sabha. may become liable to pay, shall be paid Pradeshiya from the Pradeshiya Sabha Fund; and no member of the Sabha. Pradeshiya Sabha or inhabitant living within the limits of a Pradeshiya Sabha shall be personally liable for the payment thereof. 184. (i) The Minister may make rules not inconsistent Rules as to with the provisions of this Act, on any matter connected with meetings, and tax and with the execution or enforcement of these provisions, and finance, without prejudice to the generality of the powers hereby conferred, may make. such rules on all or any of the following matters :— (a) the form of the notice summoning meetings of a Pradeshiya Sabha, the intervals at which ordinary meetings are to be held, and the procedure to be followed in the conduct of meetings ; (b) the manner in which any rent or fee which is not payable in advance under the by-laws made by a Pradeshiya Sabha, may be recovered summarily by the Pradeshiya Sabha in the event of default being made in the payment thereof ; (c) the several matters appertaining to finance and the administration of funds and other property. for which rules are required under section 171 to be made and all other matters connected therewith of incidental thereto ; (d) the rates of subsistence and travelling allowances payable to members and officers or servants of a Pradeshiya Sabha by way of: reimbursement of expenses incurred in the performance of any duty ; (e) the rates of travelling allowances payable to members of a Pradeshiya Sabha for attendance at meetings of the Pradeshiya Sabha ; (f) the rates of allowances payable to the Chairman, Vice-Chairman and members of a Pradeshiya Sabha;

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116 Pradeshiya Sabhas Act, No. 15 of 1987 (g) the returns to be rendered periodically by the Pradeshiya Sabha to the Minister ; (h) the receipt and disposal of stores and equipment, the keeping of inventories and the manner in which such inventories shall be kept; (i) the appointment, discipline, suspension and dismissal of officers and servants of Pradeshiya Sabhas who are not members of the Local Government Service, and— (i) the qualifications necessary for appointment to posts or offices not being Local Government Service posts within the meaning of the Local Government Service Law, No. 16 of 1974, (ii) the scales of the salaries to be assigned to such posts or offices, (iii) the terms and conditions, and the duration, of any leave of absence that may be granted to such officers and servants, (iv) provident fund for the benefit of such officers and servants of Pradeshiya Sabhas who are not members of the Local Government Service; (j) the powers and duties of the Chairman in his capacity as the chief executive officer of a Pradeshiya Sabha ; (k) the procedure to be followed by a Pradeshiya Sabha before any area, to which by-laws under section 126 (xii) are to apply, is defined. (2) Every rule made by the Minister under this section shall be published in the Gazette and shall be brought before Parliament as soon as may be after such publication for approval. (3) Every rule made by the Minister, when approved by Parliament, shall prevail over any by-law made or deemed to be made by, or any power vested in, a Pradeshiya Sabha in respect of the same matter or for the same purpose. Notification of such approval shall be published in the Gazette.

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Pradeshiya Sabhas Act, No. 15 of 1987 117

1. (1) If any time the Minister is satisfied that there Removal — Chairman ens is sufficient proof of— dissolu‘jOn of Prageshiys ’ (a) incompetence and mismanagement, or Sabha. (b) persistent refusal or wilful neglect to perform the duties imposed by this Act, or | {c) misconduct in the performance of those duties, or (d) persistent disobedience to or disregard of the direc- tions, instructions or recommendations of the Minister, or the Commissioner, or (e) abuse of the powers conferred by this Act on the part of the Chairman of a Pradeshiya Sabha or any of the members of the Pradeshiya Sabha, the Minister may as the circumstances of each case may require, by Order published in the Gazette. (i) remove the Chairman from office, or ~ (ii) remove all or any of the members from office; or (i) dissolve the Pradeshiya Sabna, and such Order shall as soon as may be convenient he laid before Parliament. (2) The Minister shall before making an Order under subsection (1), appoint, for the purpose of satisfying hiniself in regard to any of the matters referred to in subsection (1), & retired judicial officer to inquire into and report upon such matter within a period of three months, and such off’cer shall in relation to such inquiry have the powers of a Com- mission of Inquiry appointed under the Commissions of Inquiry Act. (3) (@) When the Minister appoints a retired judicial officer under subsection (2) to inquire into any matter, the Minister may, as the circumstances of each case may require, by Order published in the Gazette— (i) suspend the Chairman from office and direct the Vice- ' Chairman or, where the office of the Vice-Chairman is vacant or where the Vice-Chairman has been suspended, the Assistant Commissioner of the region, to exercise the powers and perform the duties of the Chairman ; or . “° (ii) suspend any of the members from office: or
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118 —«~Pradeshiya Sabhas Act, No. 15 of 1987 (iii) suspend the Pradeshiya Sabha and direct the Assistant Commissioner of the region to exercise the powers _ and perform the duties of that Pradeshiya Sabha and its Chairman. (b) Upon the receipt of the report of the person aointed under subsection (2), the Minister may make an Order under subsection (1) or revoke the Order made under para- graph (a) of this subsection. (4) Where the Minister removes any member of a Pradeshiya Sabha from office by Order under subsection (1), the member appointed in place of such member who is removed, shall hold office for the unexpired period or portion of the term of office of his predecessor. . (5) Where the Minister dissolves a Pradeshiya Sabha by Order under subsection (1), he may by the same or any sub- subsequent Order— (a) appoint for a stated period, or frem time to time, a Special Commissioner or Commissioners to adrninister the affairs of the Pradeshiya Sabha and, for that purpose and subject to such conditions, oF limitations as may be specified in the Order, to exercise the powers and perform the duties of a Pradeshiya Sabha under this Act, and (b) give such directions as may be necessary for cons- tituting for that Predeshiya Sabha area, a new Pradeshiya Sabha consisting of a larger or a smaller number of members, as to him may seem exyedient. (6) Where the Minister appoints any Special Commis- sioner or

Commissioners under subsection (5), all the property and the rights under contracts and all the powers vested in the Pradeshiya Sabha shall be deemed to be vested in such Special Commissioner or Commissioners, and all the liabilities and duties of the Pradeshiya Sabha shall be transferred to and shall be discharged by such Special Commissioner or Commissioners until the end of the period stated in the Order or until the Minister otherwise directs. (7) Where upon the termination of the administration of the affairs of a Pradeshiya Sabha by a Special Commissioner or Commissioners, a new Pradeshiya Sabha is constituted for that Pradeshiya Sabha area, the new Pradeshiya Sabha shall be the successor of the Special Commissioner or Commissioners, as the case may be.

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Pradeshiya Sabhas Act, No. 15 of 1987 119 186. Every breach of a by-law made or deemed by Breach of by-laws. ~ virtue of any written law to have been made under this Act, ' shall be an offence triable in the manner provided for by the Code of Criminal Procedure Act, No. 15 of 1979, by the Magistrate Court having jurisdiction over the area in which the breach takes place. 187. (1) If at any time it appears to the Minister that Power of Minister when any Pradeshiya Sabha is omitting to perform any duty or to Pradeshiya Sabha make carry out any work imposed upon the Pradeshiya Sabha by default &c. _ this Act or any other written law, or that the Pradeshiya Sabha has otherwise made default in the performance of any of its duties or the discharge of any of its responsibilities under this Act or any other written law, the Minister may In writing give notice to the Pradeshiya Sabha that, unless within such time as shall be specified in the notice the Pradeshiya Sabha shows cause to the contrary, the Minister will appoint a person or persons to inquire into and report upon such commission or default to the Minister and to make recommendations as to the measure that should be taken for the purpose of performing such duty or carrying out such work or making good such default. (2) Where any cause or sufficient cause is not shown by any Pradeshiya Sabha to which notice is given under sub- section (1), the Minister shall appoint a person or persons to hold the inquiry referred to in the notice. Such inquiry Shall be held as far as practicable in public. ” 188, (1) On the receipt of the report of the person or Minister to determine persons appointed to hold an inquiry under section 187, the measures to be taken Minister shall determine what measures shall be taken for upon the purpose of performing any duty or carrying out any receipt of report work which the Pradeshiya Sabha has omitted to perform under section 187, ‘or carry out or in respect of which the Pradeshiya Sabha has made any default, and make in writing an Order requiring the Pradeshiya Sabha within such time as shall : ; be specified in the order to take such measures accordingly, _ and to raise the funds necessary for the purpose by levying . any One or more of the rates or taxes leviable under this Act or by means of a loan.

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120 Pradeshiya Sabhas Act, No. 15 of 1987 (2) If a Pradeshiya Sabha fails to comply with an Order made under subsection (1), within the time specified: therein, the Minister may in writing appoint some person to- take measures specified in the Order, and may in writing fix. the remuneration to be paid to such person, and direct that such remuneration and the cost of the measures taken in accordance with the Order of the Minister shall be paid or defrayed out of the

Pradeshiya Sabha Fund and that, if necessary, any one or more of the rates or taxes leviable- under this Act shall be imposed, or increased, and levied. (3) For the purpose of carrying out a direction of the- Minister under subsection (2), any person appointed under that subsection shall have the power — (a) to impose, or increase, and levy any such rate or tax as may be imposed, or increased, and levied by the Pradeshiya Sabha affected by such direction ; and (b) to sign and issue a cheque or an order of payment for the withdrawal of and to withdraw, any sum from the Pradeshiya Sabha Fund of the Pradeshiyo Sabha, and he shall, after paying or defraying all sums and expenditure authorized by such direction to be paid or defrayed by him, pay to the Pradeshiya Sabha Fund the surplus, if any, of the moneys received by him in the exercise of his powers under this subsection. 189. The Minister may direct a person appointed under subsection (2) of section 188 in respect of any Pradeshiya Sabha area, in addition to imposing, or increasing, and levying any rate or tax within the limits of a Pradeshiya Sabha area or in lieu thereof, to raise a loan from the Local Loans and Development Commissioners on the security of any rate or tax within its limits for the purpose of performing any duty, or carrying out any work, or making good any default under that section. Power to 190. The Minister may from time to time certify the amount of the expenses that have been incurred, or an estimate of the expenses about to be incurred, by any person appointed under subsection (2) of section 188 and the amount of any loan, required to be raised for the purposes of defraying the expenses that have been so incurred, or are estimated as about to be incurred, and a certificate of the Minister shall be conclusive as to all matters to which it relates.

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Pradeshiya Sabhas Act, No. 15 of 1987 121 191. (1) Whenever the Minister under section 188 certifies a loan to be necessary in respect of any Pradeshiya Sabha, Local Loans Commissioner- the Local Loans and Development Commissioners may lend money to the Commissioner of Local Government or the person advance loans, appointed under subsection (2) of section 188 the amount of such loan on the security of any rate or tax within the limits of that Pradeshiya Sabha area without requiring any other security. (2) The Commissioner of Local Government or the person appointed under subsection (2) of section 188 may, as security for any such loan referred to in subsection (1) as is obtained for any Pradeshiya Sabha, mortgage any rate or tax in that area, and such mortgage shall have the same effect as if it had been made by that Pradeshiya Sabha. 192 (1) The principal and interest due in respect of Recovery of principal any loan raised for payment of any expenses incurred or to and interest be incurred under this Part within the limits of any from the Pradeshiya Sabha area shall be deemed to be a debt due Sabha. . from the Pradeshiya Sabha and, in addition to any other remedies, may be recovered in the manner provided by the Local Loans and Development Ordinance. (2) The surplus of any loan, after payment of such expenses in respect of any Pradeshiya Sabha as are referred to in subsection (1), shall, after that surplus is certified by the Minister, be paid to the Pradeshiya Sabha Fund. 193. Any power, duty or function vested in or imposed Delegation on or assigned to the Commissioner of Local Government by or powers of duties of Commissioner- or under this Act, may be exercised, performed or discharged by any Assistant Commissioner generally or specially authorized thereto in writing by the Commissioner, to Assistant Commissioner- subject to the direction and control of the Commissioner, for such period and to such extent, if any, as may be specified in such written authority. | 194 The Ministry may in writing direct the Chairman of. Minister's power to a Pradeshiya Sabha to transmit to him

for 'nspection any call for and such book or document as relate: to any affairs of that . i b n o s o p k
e c o t r any ". document . Pradeshiva Sabha. ofa . Pradeshisy Sapha. 11—S 094617 (86/12)

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122 Pradeshiya Sabhas Act, No. 15 of 1987 EOYs to "195. The Minister or the Commissioner may — TMm "gecommen- * @) bring to the notice of any Pradeshiya Sabha any a to Jter .; 1 Maeasure which, in the opin.on of the Minisier or' aa the Commissioner, ought to be taken within the : area administered by the Pradeshiya Sabha in the interest of public health or safety; or @ bring to the notice of any Pradeshiya Sabha any general question of adm nistrative policy as to which it is desirable, in the oninion of the Minister or the Commissioner, that the Pradeshiya Sabha should co- ordinate :ts policy with the administra- tive policy generally in force in Sri Lanka or in any part of Sri Lanka. Power of 196. (1) The Minister or the Commissioner or any person ee igs generally or specially authorized in that behalf by the doner. Minister or the Commissioner may— .(@) inspect any public building, immovable property or institution, used or occupied by, or under the con- trol of, a Pradeshiya Sabha or any work in orogress ' under the direction of the Pradshiya Sabha ; (6) call for, inspect, or take charge of, any books or) documents in the possession, or under the control of, the Pradeshiya Sabha; (c) require any person entrusted with, or having domi- nion of, any money or property or any Pradeshiya Sabha, to produce such money or property for . inspection or verification; (d) inquire into any matter pertaining to the administra- | tion of the Pradeshiya Sabha or the exercise of the powers and the performances of the duties and fun- ctions, by the Pradeshiya Sabha under this Act or any other law; (e) require any Pradeshiya Sabha to furnish statements, ~" accounts, reports or copies of documents relating to _ the Pradeshiya Sabha or any committee therefor. -(2) Any person who neglects or refuses to produce any books, documents, moneys or properties or to furnish any statements, accounts, reports or copies of documents when required to do so under subsection (1) shall be guilty of an offence and shall. be liable on conviction to a fine not ex- ceeding one hundred rupees and a further fine not exceeding - fifty rupees per day for each day during which such offence: ts continued after such conviction. ;

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Pradeshiva Sabhas Act, No. 15 of 1987 123 197. The Commissioner or any officer authorized in that Additional powers of behalf shall, within the limits of a Pradeshiya Sabha area Commis- have the same powers and authority required for the due sioner. exercise and discharge of their respective powers and . functions as officers of the Pradeshiya Sabha: Provided that the Commissioner or authorized officer shall, in the exercise and discharge of their powers and functions under this section, act in consultation with the Chairman of that Pradeshiya Sabha. Naming of i98. The Minister shall, either of his own motion or on road or path, application made in that behalf by a Pradeshiya Sabha, determine the name by which any road or path in the Pradeshiya Sabha area shall be known and in like manner alter at any time the name of any road or path. PART VIII GENERAL RECOVERY OF CHARGES AND EXPENSES 199. Whenever under the provisions of this Act or any Power of other enactment, or any by-law, rule, or regulation made Pradeshiya Sabha on thereunder, a Pradeshiya Sabha requires any work to be default made by executed by the owner or occupier of any house, building, . Owner or or land, and default is

made in the execution of such work, occupier to execute the Pradeshiya Sabha, whether or not any penalty is provided for such default, may cause such work to be executed, recover expenses, and the expenses therein incurred by the Pradeshiya Sabha shall be paid by the person by whom such work ought to have been executed, and shall be recoverable as provided by this Part. 200. (1) If the person making any default referred to in section 198 is the owner of the house, building, or land charges the Pradeshiya Sabha may, by way of additional remedy, on application, - whether or not an action or proceeding has been brought or who may taken against such owner, require the payment of all or any deduct the same from part of the expenses payable by the owner for the time being, from the person who then or at any time thereafter occupies the house, building or land under such owner. (2) The whole or any part of any expense referred to in subsection (1) shall, in default of payment by the occupier on demand, be levied by distress of the assets and effects of such occupier.

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124 Pradeshiya Sabhas Act, No. 15 of 1987 (3) Where any sum in respect of expenses incurred by the Pradeshiya Sabha is paid by or recovered from the occupier under subsection (1) or subsection (2), the occupier shall be entitled to deduct such sum from the rent payable by him to the owner and to retain possession of the house, building, or land until such sum is fully reimbursed to him. Occupiers 201. (1) No occupier of any house, building, or land not to be shall be liable to pay more money in respect of any expenses liable to more than charged by this Act or any other enactment, or any by-law, the rule, or regulation made thereunder, on the owner thereof amount of rent due, than the amount of rent due from him for the premises in respect of which such expenses are payable at the time of the demand made upon him, or which at any time after such demand and notice to pay the same to his landlord has accrued, and becomes payable by him, unless he neglects or refuses. upon application made to him for that purpose by the Pradeshiya Sabha, truly to disclose the amount of his rent and the address of the person to whom such rent is payable. (2) The burden of proof that the sum demanded of any occupier is greater than the rent which was due by him at the time of such demand or which has since accrued, shall be upon such occupier. (3) Nothing herein contained shall be taken to affect any special contract made between any owner and occupier respecting the payment of the expense of any such works as aforesaid. 202. (1) Whenever default is made by the owner of Occupier in default of any house, building or land in the execution of any work owner may execute works required to be executed by him, the occupier of such house, and building, or land may with the approval of the Pradeshiya Sabha deduct expenses. cause such work to be executed, and the expenses from rent thereof shall be paid to him by the owner, or the amount may be deducted out of the rent from time to time becoming due from him to such owner. (2) The owner of any house, building, or land shall not be entitled to eject the occupier thereof until any expenses incurred by the occupier under subsection (1) shall have been fully paid or deducted as provided by that subsection.

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Pradeshiya Sabhas Act, No. 15 of 1987 203. If the occupier of any house, building, or land Obstruction by | prevents the owner thereof from carrying into effect, in occupiers. respect of such

house, building, or land, any of the provisions of this Act or of any by-law made thereunder, after notice of his intention so to do has been given by the owner to such occupier, the Pradeshiya Sabha, upon receipt thereof and upon application of the owner, make an order in writing requiring such occupier to permit the owner to execute all such works with respect to such house, building, or land as may be necessary for carrying into effect the provisions of this Act, or of any by-law made thereunder and may also, if it thinks fit, order the occupier to pay to the owner the costs relating to such application or order, and if after the expiration of eight days from the date of the order, such occupier continues to refuse to permit such owner to execute such works, such occupier shall be guilty of an offence punishable with a fine not exceeding five hundred rupees for every day during which he so continues to refuse, and every such owner, during the continuance of such refusal, shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works. 204. If neither the owner nor the occupier of any house, building, or land pays the expenses incurred by the Pradeshiya Sabha, the amount of the expenses shall be a charge on the owner or occupier payable as a debt due to the Pradeshiya Sabha, 295. Except as herein otherwise provided, in all cases where damages, costs or expenses are payable under the provisions of this Act or any other enactment, or of any damages, costs &c. by-law or rule made thereunder, the amount, in case of dispute, and, if necessary, the apportionment of the same, shall be ascertained and determined by the Magistrate's Court having local jurisdiction 'upon application being made to such Court in that behalf by the Pradeshiya Sabha or any person to whom such damages, costs or expenses is due. 206. If the amount of damages, costs or expenses determined by the Magistrate under section 205 is not paid by - damages. the person liable to pay the same within seven days after demand, the default may be reported to such Magistrate and the amount thereof shall be recovered in the same manner as if it was a fine imposed by such Magistrate.

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126 Pradeshiya Sabhas Act, No, 15 of 1987 Recovery of 207. Where a Pradeshiya Sabha incurs any expenses in expenses on executing any of the works or performing any of the acts account of improvement which under this Act or any other enactment, or any by-law to private or rule, made thereunder, the owner of any house, building property. or land is required to execute or perform, the Sabha may either recover the amount of such expenses in the manner provided by section 205, or, if it thinks fit, may accept any undertaking given by the owner for the payment by instalments of such sums as will be sufficient to defray the whole amount of the expenses, with interest thereon at the rate of nine per centum per annum, within a period not exceeding five years and such sums when due may be recovered by the same process by which rates payable under this Act may be recovered. PAYMENT OF COMPENSATION Pradeshiya 208. A Pradeshiya Sabha may pay compensation out of Sabha the Pradeshiya Sabha Fund to all persons sustaining any may make compensation damage by reason of the exercise of any of the powers cut of Pradeshiya vested in the Pradeshiya Sabha, its officers, or servants Sabha Fund. under and by virtue of this Act, or any by-law made there- under. 209. Except as here'n otherwise provided, in all cases Determina- tion and where compensation is by this Act, or by any by-law payment of made thereunder, directed to be paid, the amount and, if compensation. necessary the apportionment of such compensation in case of dispute, shall be determined in the same manner as & claim for damages, costs or expenses

under section 205, and the provisions of that section shall, with the necessary modifications, apply to the determination of all questions under this section. **PROCEDURE AND LEGAL PROCEEDINGS** 210. (1) Any notice, order or other document required Service of notices. or authorized to be served under this Act, or any by-law made hereunder, may be served by delivering the document to or at the residence of the person to whom it is addressed, or when addressed to the owner or occupier of any premises, by delivering the document or a true copy thereof to some person on the premises, or if there is no person on the premises who can be served, by affixing the document on some conspicuous part of the premises.

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Pradeshia Saohas Act, No, 15 of 1987 — «127 (2) Any notice, order or other document may 'also be served by post by registered letter, and if so served, shall be deemed to have been served at the time when the letter containing the same would be delivered in the ordinary course of post, and in proving such service, it shall be sufficient to prove the notice, order or other document was properly addressed and put into the post. « (3) Any notice, order or other document required by this Act to be given to the owner or occupier of any premises may be addressed by the description of the "owner" or "occupier" of the premises (naming them) in respect of which the notice is given, without further name or description. : 211. All notices which a Pradeshia Sabha or any officer Notices may thereof is empowered or required to give or receive and be given of received by all notices for the giving or receipt of which by the Pradesh- Ser reine @ shiva Sabha occasion may otherwise arise, may be given or may be received by the Secretary of the Pradeshia Sabha or authorize thereunto any other of its officers authorized by by-law for the purpose, 212, Every offence under this Act shall be triable Offence to be tried by summarily by the Magistrate having local jurisdiction, and Magistrate any penalty prescribed by this Act may be imposed by such Magistrate, notwithstanding that such penalty may exceed the limits placed on his jurisdiction by any other written law. 213, No person shall be liable to any fine or penalty under this Act, or any by-law made thereunder, for any offence. Offence triable by a Magistrate, unless the complaint: respecting such offence shall have been made within six months next after the commission of such offence. 214. (1) No action shall be instituted against any No action Pradeshia Sabha or any member or any officer of the to be instituted Pradeshia Sabha or any person acting under the direction against « of the Pradeshia Sabha for anything done or intended to. Pradeshia Sabha unit! be done under the powers conferred by this Act, or any after one by-law made thereunder, until the expiration of one month month's notice not next after notice in writing shall have been given to the after six months after: Pradeshia Sabha or to the defendant, stating with cause of reasonable certainty the cause of such action and the name of action, and the place of abode of the intended plaintiff and of his attorney-at-law or agent, if any, in such action.

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1. Pradeshia Sabhas Act, No. 15 of 1987 (2) Every action referred to in subsection (1) shall be commenced within six months after the accrual of the cause of action and thereafter. (3) If any person to whom notice of action is given under © subsection (1) shall before action is brought, tender sufficient amends to the plaintiff, such plaintiff shall not recover in any such

action when brought, and the defendant shall be entitled to be paid his costs by the plaintiff. (4) If no tender of amends is made under subsection (3), it shall be lawful for the defendant by leave of the Court before which such action is pending, at any time before issue is joined, to pay into Court such sum of money as he may think fit, and thereupon such proceedings shall be had as in other cases where defendants are allowed to pay money into Court. (5) Upon the trial of any action referred to in subsection (1) the plaintiff shall not be permitted to prove any cause of action other than the cause of action stated in the notice given by him under that subsection; and unless such notice be proved, the Court shall find for the defendant.

Protection 215. (1) No matter or thing done and contract entered into by any Pradeshiya Sabha, and no matter or thing done by any Pradeshiya Sabha and its officers, member or officer of such Pradeshiya Sabha or by any other person whomsoever, shall, if the matter or thing so done or the contract so entered into was done or entered into bona fide for the purposes of this Act or any other enactment relating to the powers and duties of a Pradeshiya Sabha, or any by-law, or rule made thereunder, subject to any member of the Pradeshiya Sabha or any such officer or other person, in his private capacity, to any action, liability, claim, or demand whatsoever; and any expenses incurred by any such Pradeshiya Sabha or by any member, officer, or other person acting as aforesaid, shall be borne and repaid out of the Pradeshiya Sabha Fund. (2) Subject and without prejudice to any other powers, a Pradeshiya Sabha in any case where the defendant in any action, prosecution, or other proceeding is a member of the Pradeshiya Sabha, or its officer, agent, or servant, may, if it thinks fit, except so far as the Court before which .

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Pradeshiya Sabhas Act, No. 15 of 1987 129 the action, prosecution, or other proceeding is heard and determined otherwise directs, pay out of the Pradeshiya Sabha Fund, all or any part of any sums payable by the defendant in, or in consequence of the action, prosecution, or proceedings, whether in respect of costs, charges, expenses, damages, fines, or otherwise: Provided that nothing in this section shall exempt any member of any Pradeshiya Sabha from liability to be surcharged with the amount of any payment which may be disallowed upon the audit of the accounts of such Pradeshiya Sabha and which such member authorized or joined in authorizing.

Powers AND RESPONSIBILITIES OF OFFICERS 216. A Pradeshiya Sabha may, by resolution, grant a Powers of general authority to any officer of the Pradeshiya Sabha to do, give, or receive, as may be necessary, from time to time, subject to the general control of the Chairman, all general authorities, acts, receipts, and approvals which the Pradeshiya Sabha its officers. is empowered to do, give, or receive by this Act or any other enactment, or by any by-law or rule made thereunder, and all acts, receipts and approvals done or given or received by such officer, as long as such resolution remains in force shall be as binding and valid, as if such acts, receipts, and approvals were done or given by the Pradeshiya Sabha.

217. Whoever shall wilfully obstruct any officer of a Pradeshiya Sabha in the performance of any duty or in hindering the exercise of any authority vested in or conferred upon of Pradeshiya Sabha. him or by virtue of any of the provisions of this Act, or any other enactment, or any by-law or rule, made thereunder, shall be guilty of an offence, and be liable, upon conviction after summary trial before a Magistrate, to a fine not exceeding five hundred rupees, or to imprisonment of either description

for a term not exceeding six months.. 218. Any officer of a Pradeshiya Sabha who, under Penalty for pretence of performing any act under the authority of this misuse of power by Act, or any by-law or rule made thereunder, uses any un- officers of Pradeshiya necessary violence or causes any vexation or annoyance to Sabhas. any person, shall be guilty of an offence and liable on conviction thereof after summary trial before a Magistrate to a fine ne+ exceeding five hundred rupees.

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136 Pradeshiya Sabhas Act, No. 15 of 1987 Officers and 219. (1) No member, or servant of any Pradeshiye servanis of Sabha shall, whether directly or indirectly, be concerned o Pradeshiya Sabbs ~ have any financial interest in any contract or work made set to be with or executed for the Pradeshiya Sabha. interested in covéeracts, (2) If any member, or servant of a Pradeshiya Sabhs is concerned or has any financial interest in any such con- tract or work, he shall be guilty of an offence punishable with a fine not exceeding five thousand rupees, and shall, as the case may be, be disqualified from sitting as a member of the Pradeshiya Sabha or from hoiding any office or employment under the Pradeshiya Sabha: Provided, however, that no person being a shareholder of any incorporated company shall be liable to such fine by reason only of any contract between such company and the Pradeshiya Sabha or any work executed by such company for the Pradeshiya Sabha. Ofaesrs and 220. Every officer or servant of a Pradeshiya Sabhe who servents of is paid out of the Pradeshiya Sabha Fund and every con- Pradeshiya Ssbka to be tractor or agent to whom the collection of any tax or of any public payment on account of any land or building of Pradeshiya scryante. Sabha is entrusted by, or under the authority of a Prade- shiya Sabha and every servant or other person employed by such contractor or agent for ihe collection of such tax or payment, shall be deemed to be a public servant within the meaning of that term as used in the Penal Cede, REPEAL, TRANSITIONAL ARRANGEMENTS AND MISCELLANEOUS PROVISIONS 221. A reference in any written law in operation ot Bfect of a reference the date appointed under section i of this Act— to a Town Council, (a) to a Town Council or a Village Council, shall Village Ceuncil be deemed to be a reference to & or iecal Pradeshiya Sabha ; and authority in any (b) to a local authority, shall unless the context written law. otherwise requires, be deemed to include 4 Pradeshiya Sabha. Repeal 222. For the purposes of any Pradeshiya Sabha, the enactments enumerated in the Sixth Schedule hereto shall be repealed as from the date on which such Pradeshiya Sabha is constituted: - Provided that nothing in this section contained shall be deemed to affect or in anv wav derogate from such of the rights, powers, and duties of the Minister as are not

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Pradeshiya Sabhas Act, No. 15 of 1987 —181 otherwise expressiy provided for in this Act, in respect of principal thoroughfares or any portions thereof situated within the limits of any Pradeshiya Sabha, 223. In connexion with the preliminary arrangements Adjustment of ques- necessary for bringing this Act into operation, either gene- tions 2.0% providsd tally or with reference to any special matter or matters, Zor, either throughout Sri Lanka or in any specified place or area, the Minister, by Order published in the Gazette, may issue all such directions as he may deem necessary with a view to providing for any unforeseen or special circums- tances, or for

determining or adjusting any question or matter, for the determination or adjustment of which no provision or effective provision is made by this Act, 224. A member of the First Parliament deemed to be Transferee provision. elected for an electoral district composed within the limits of a Pradeshiya Sabha, may attend and address meetings of such Sabha but shall not be entitled to vote on any matter coming up for decision thereat, 225, (1) The Town Councils Ordinance and the Village Repeal and Councils Ordinance are hereby repealed. transitional provisions, (2) All by-laws made by a Town Council constituted for a town or by a Village Council constituted for a village area, and deemed, under section 18 (2) (e) of the Development Councils Act, No. 35 of 1980 to be by-laws made by a Development Council shall, with effect from the date appointed under section 1 of this Act, be deemed to be by-laws made by the Pradeshiya Sabha constituted for the Pradeshiya Sabha area within which such town or village area was situated. 226. In this Act, unless the context otherwise requires— Interpret= “annual value” means the annual rent which a tenant might reasonably be expected, taking one year with another, to pay for any house, building, land or tenement, if the tenant undertook to pay all public rates and taxes, and if the landlord undertook to bear the cost of insurance, repairs,

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132 Pradeshiya Sabhas Act, No. 15 of 1987 maintenance and upkeep, if any, necessary to maintain the house, building, land or tenement in a state © to command that rent: Provided that in the computation and assessment of annual value— (a) the probable annual average cost of such insurance, repair, maintenance, and upkeep shall be deducted; (b) no allowance or reduction shall be made for any period of non-tenancy whatsoever; “ Assistant Commissioner”, in relation to any Pradeshiya Sabha area, means the Assistant Commissioner of Local Government appointed for that area- “Commissioner of Local Government” includes any Deputy Commissioner of Local Government; “Co-operative Society” means any society registered under any law for the time being in force relating to such societies; “ District”? means an administrative district; “First Parliament” means the First Parliament referred to in Article 161 of the Constitution; -“fiscal” includes a Deputy Fiscal within the province of the Fiscal;

- Government Agent” includes an Assistant Government Agent: “Grama Seva Niladhari” includes a police vidane; “local authority ” means a Municipal Council, or Urban Council and includes any Authority created and established by or under any written law to exercise, perform and discharge powers, duties and functions corresponding to or similar to the powers, duties and functions exercised. performed and discharged by any such Council; “Local Loans and Development Commissioners ” means the Local Loans and Development Commissioners appointed under section 2 of the Local Loans and Development Ordinance (Chapter 404); “Local Government Service” means the Local Government Service constituted by the Local Government Service Law, No. 16 of 1974; “river”, “road”, “thoroughfare” and “canal” shall have the same meaning respectively as in the Thoroughfares Ordinance (Chapter 193). “
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Pradeshia Sabhas Act, No. 15 of 1987 133 FIRST SCHEDULE (Section 129) All fines, penalties and other sums, recovered by a Pradeshia Sabha or by a Magistrate's Court having jurisdiction over the Pradeshia Sabha area, in respect of breaches, committed within that area, of the following provisions of written law :— (1) the by-laws made or deemed by virtue of any written law to have been made under this Act; (2) the Nuisance Ordinance; (3) all fines and penalties recovered within the administrative limits of the Pradeshia Sabha area under— (a) the Excise Ordinance; (b) the Street Collections (Regulation) Ordinance; (c) the Poisons, Opium and Dangerous Drugs Ordinance; (d) Food Act, No. 26 of 1980; (e) the Pawnbrokers Ordinance; (f) the Public Performances Ordinance; (9) the Prevention of Cruelty to Animals Ordinance; (h) the Local Authorities Elections Ordinance. SECOND SCHEDULE (Section 129)

1. All stamp duties and fees paid by or recovered from the inhabitants of the Pradeshia Sabha area under— (a) the Boats Ordinance, (b) the Butchers Ordinance, (c) the Vehicles Ordinance, (d) any other enactment the operation of which is extended to the Pradeshia Sabha.
2. All stamp duties and fees paid by the inhabitants of the Pradeshia Sabha area in respect of licences under— (a) the Masters Attendant Ordinance, (b) the Petroleum Ordinance, (c) the Explosives Ordinance, (d) the Firearms Ordinance, (e) the Poisons, Opium, and Dangerous Drug Ordinance, (f) the Public Performances Ordinance.
3. (1) All stamp duties paid by inhabitants of the Pradeshia Sabha area— (a) as attorney-at-law on certificate of admission under section 2 of the Legal Practitioners Ordinance or on the declaration made under section 4 of that Ordinance:

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134 Pradeshia Sabhas Act, No. 15 of 1987 (b) as notaries, on warrants, certificates and declarations issued under sections 3, 27 and 28 of the Notaries Ordinance ;. (c) in respect of articles of apprenticeship or upon any _ contracts whereby any person first becomes bound in order to qualify himself as a notary; (d) as pawnbrokers, on licences issued under section 3 of the Pawnbrokers Ordinance. (2) Such portion of the stamp duty on the annual certificate issued under section 3 of the Legal Practitioners Ordinance to an inhabitant of the Pradeshia Sabha area, being an attorney-at-law, as is equivalent to the stamp duty which was payable on such certificate on September 15, 1960. 4. All stamp duties paid under the Stamp Duty Act, No. 43 of 19382, in respect of transfers, mortgage bonds, gifts and leases affecting any land situated within the administrative limits of the Pradeshia Sabha area. THIRD SCHEDULE (Section 141) Form or Notice or ASSESSMENT Pradeshia Sabha Office, 19 eoe NOs: aces rees To. i ee ee ee oe2 Y .Take notice that by virtue of the Pradeshia Sabha Act, the Pradeshia Sabha has ordered you to be assessed in respect of the undermentioned property at the sums hereunder set forth :— Property Annual assessed/ Value as extent assessed/extent verified verified Date of service :— see reese seneesetrescenseeeew~vese day of eveetenereoenneeae ey i9 ee*” If you are aggrieved by the assessment for the verified extent you may lodge your objection at the office of the Pradeshia Sabha within thirty days from the date of service of this notice. Such objections must be set out on a written statement which must also contain the grounds of the

objection. Chairman, Pradeshia Sabha.

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Pradeshia Sabhas Act, No. 15 of 1987 135 FOURTH SCHEDULE (Section 148) For every vehicle other than motor car, motor tricar, Rs, ¢, motor lorry, motor bicycle, cart, jinricksha, bicycle, tricycle _ oe we os 25 0 For every bicycle or tricycle or bicycle, car or cart— (a) if used for trade purposes .. i 18 0 (b) if used for other than trade purposes .. 4 0 For every cart ae ee ans 20 0 For every handcart = ee se 10 0 For every jinricksha ie re -. @ 50 For every horse, pony or mule a8 .. 16 9 For every elephant ee an oe 50 0 Children's vehicle the wheels of which do not exceed 26 inches 'n diameter, wheel-barrows, handcrafts used for trade purposes solely within private prem'ses and handcrafts not used for trade purposs are exempted from payment, In this Schedule, "trade purposes" includes the carriage or transport, in connection with any business or trade and whether for sale or otherwise, of any articles or goods or of any written 3 printed matter, FIFTH SCHEDULE (Section 166) Notice Pror to Seizure anp SALD OF IMMOVABLE PROPERTY Pradeshia Sabha Building bearing assessment number stelpieles'e%s To: Occupier of eeepeenteeesceanpaecee oe coe Land known ag @eeesvoeeneae e@weuooeoeceogceseoevene ae Whereas the00% . .rate/tax due on the above arentioned land/building for the period ending . ccecececece 19 Fis -. , has not been paid and movable scanty which may oe seized and sold for the recovery of the said rate/tax has not deen found; you are herzby called upon to pay the aforesaid tate/taxes and costs within a period of 30 days from the date | of Service of this notice and you are hereby informed that in

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136 Pradeshia Sabhas Act, No, 15 of 1987 default of such payment steps will be taken for the seizure and sale of the building or land in respect of which the rate/tax is due. Chairman eeeeeceveeeeseeaeaseevPeenaceenes Pradeshia Sabha © S'9ceigrereie exerece secoeeesse Pradeshia Sabha area SIXTH SCHEDULE (Section 222)

1. The Contagious Diseases Ordinance, and all enactments passed in amendment thereof. 2, The Northern Province Markets Ordinance, and all enactments passed in amendment thereof,
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